

5/4.

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)

WRIT PETITION NO. 14085 /2019 (S)

BETWEEN:

Sri.H.S.Manjunath

...Petitioner

AND:

The State of Karnataka & others

...Respondents

INDEX

Sl. No.	Particulars	Page No.
1)	Synopsis	1-3
2)	Memorandum of Writ Petition	4-11
3)	Verifying Affidavit	12
4)	Annexure-A: Copy of the FIR in crime no. 19/2010	13-16
5)	Annexure-B: Copy of report submitted under Section 12(3) of the Act by Lokayukta.	17-22
6)	Annexure-C: Copy of entrustment order dated 17.09.2011.	23-24
7)	Annexure-D: Copy of Charge Memo dated 01.09.2012 issued by Enquiring Authority	25-31
8)	Annexure-E: Copy of order dated 23.11.2017 in Special Case No.286/2010	32-35
9)	Annexure-F: Copy of the status of Cr.Petition no. 335/2018	36-38
10)	Annexure-G: Copy of O.M. dated 19.09.2013	39-42
11)	Annexure-H: Copy of the relevant extract of seniority list of AEs	43-48
12)	Annexure-J: Copy of Order Sheet dated 18.02.2019 in enquiry No.297/11	49-132

13)	Annexure-K: Copy of representation dated 06.12.2017 of the Petitioner .	132
14)	Annexure-L: Copy of representation dated 11.01.2018 of the Petitioner .	134-135
15)	Annexure-M: Copy of impugned endorsement dated 30.10.2018 issued by respondent No.3	136-140
16)	Annexure-N: Copy of the Government order dated 28.6.2001	141-144
17)	Annexure-P: Copy of O.M. dated 30.03.2012	145
18)	Vakalath	146

Bengaluru
Date:

Vijay Kumar
Advocate for Petitioner

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)**

WRIT PETITION NO. _____/2019 (S)

BETWEEN:

SRI.H.S.MANJUNATH

...PETITIONER

AND:

**THE STATE OF KARNATAKA
& OTHERS**

...RESPONDENTS

LIST OF EVENTS & SYNOPSIS

12.10.1988	Petitioner was appointed as Junior Engineer and subsequently promoted as Assistant Engineer (Elec.) (Non-Graduate).
14.07.1993	Government of Karnataka has issued O.M. prescribing the procedure to be followed for application of Sealed Cover Procedure.
21.12.2001	Respondent No.2 adopted 14.07.1993 Government order
25.05.2010	FIR was registered in Crime No.19/2010 for the offences punishable under Section 7, 13 (1) (d), 13 (2) of Prevention of Corruption Act 1988 against the Petitioner .
20.08.2011	During the pendency of the of criminal proceedings, a report under Section 12(3) was submitted by the Lokayukta for entrustment of enquiry on the very same charges.
17.09.2011	Respondent No.3 entrusted the enquiry to Lokayukta under 14A of Conduct, Disciplinary Regulations 1987 of KPTCL.
01.09.2012	Charge Memo was issued in the departmental enquiry on the very same allegation based on which criminal proceedings was initiated.
19.09.2013	Respondent No.3 promoted some of the juniors to the Petitioner as Assistant Executive Engineer,

2

	whereas applying sealed cover procedure in the case of Petitioner.
23.11.2017	Petitioner was discharged by the order of the Trial Court in Special Case No.286/2010.
06.12.2017	Petitioner submitted a representation requesting to open sealed cover in view of delay in concluding the departmental enquiry contrary to the Rules and grant promotion from the date his juniors were promoted.
11.01.2018	One more representation was submitted by the Petitioner to the respondent No.3 requesting to open sealed cover and give promotion.
23.03.2018	Respondent No.2 has preferred Criminal Revision Petition before this Court against the order dated 23.11.2017 passed in Special Case No.286/2010. No stay has been granted by the High Court in the said Criminal Revision Petition.
30.10.2018	Respondent No.3 proceeded to reject the claim of Petitioner for opening the sealed cover on the ground that the same cannot be extended during the pendency of departmental enquiry/criminal proceedings. Hence, this Writ Petition.

BRIEF FACTS OF THE CASE: The Petitioner while working as Assistant Engineer at Lingarajapuram, on a complaint alleging that he had demanded illegal gratification for doing an official favour and criminal proceedings was initiated in Crime No.19/2010 for the offences punishable under Section 7, 13 (1) (d), 13(2) of Prevention of Corruption Act, 1988.

During the pendency of the said criminal proceedings, the Lokayukta submitted report for entrustment of enquiry and issued

charge memo on 01.09.2012. The said department enquiry is pending before the Lokayukta and is at the evidence stage.

During the pendency of the department enquiry, the Petitioner was discharged in the Special case No.286/2010 on 23.11.2017. Though a Criminal Revision Petition has been preferred against the said order before this Hon'ble Court by respondent No.2, no stay has been granted by this Court in the said Criminal Revision Petition.

Considering the delay in concluding the departmental enquiry, the Petitioner submitted representation on 06.12.2017 and thereafter on 11.01.2018 requesting to open the sealed cover and promote him as Assistant Executive Engineer. Now by the impugned endorsement dated 30.10.2018 the respondent No.3 rejected the claim of Petitioner on the ground that sealed cover cannot be opened during the pendency of the departmental enquiry and criminal proceedings. The Apex Court in the case of Chaman Lal Goel has directed that delay in view of enquiry if not attributable to the delinquent official, the same cannot be a reason to deny promotion and he should be granted promotion during the pendency of departmental enquiry. Hence, this Writ Petition.

Bengaluru

Dated:

**Advocate for Petitioner
(Vijay Kumar)**

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)**

WRIT PETITION NO. _____/2019 (S)

BETWEEN:

Sri.H.S.Manjunath.

S/o late Shankarappa,
Aged about 54 years,
Working as Assistant Engineer (Elec),
BESCOM, Bommanahalli,
S-8 Sub-Division,
Bengaluru,
Residing at No.750,16th Main,
HSR Layout, 3rd Sector,
Bengaluru

...Petitioner

A N D :-

1. **The State of Karnataka,**
Represented by its Principal Secretary,
Energy Department,
Vikas Soudha,
Bengaluru-560 001
2. **The Karnataka Power Transmission
Corporation Ltd,**
Represented by its Managing Director,
Cauvery Bhavan,
Bengaluru-56009
3. **The Director (Admin &HR),**
Karnataka Power Transmission
Corporation Ltd,
Cauvery Bhavan,
Bengaluru-56009

...Respondents

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
AND 227 OF THE CONSTITUTION OF INDIA**

The Petitioner above named respectfully submits as
under:-

5

The Petitioner in this writ petition has questioned the correctness and validity of the endorsement dated 30.10.2018, issued by the respondent No.3, rejecting the claim of the Petitioner for promotion to the post of Assistant Executive Engineer from the date his juniors were promoted, by opening the sealed cover, on the ground that criminal proceedings and departmental enquiry are pending against him and therefore adopted sealed cover procedure in terms of the Government Order dated 14.07.1993. Hence this Writ Petition.

FACTS OF THE CASE

1. The Petitioner is a holder of Diploma in Electrical Engineering and was appointed as Junior Engineer on 12.10.1988. Subsequently he was promoted as Assistant Engineer in 2003. Presently he is on deputation to BESCOM at Bommanahalli, Bengaluru.

2. The Petitioner while working as Assistant Engineer, E5 Sub-Division, Lingarajapuram, a complaint was made alleging that the Petitioner had demanded illegal gratification for doing an official favour. Based on the said complaint, the Lokayukta police has initiated criminal proceedings in Crime No.19/2010 for the offences punishable under Section 7, 13 (1) (d) R/W 13 (2) of the Prevention of Corruption Act, 1988. A copy of the FIR dated: 21.9.2010 is produced as **ANNEXURE-A**.

3. During the pendency of the criminal proceedings, the Lokayukta submitted a report under Section 12 (3) of the Karnataka Lokayukta Act, 1984 and sought entrustment of enquiry on

20.08.2011. A copy of the report submitted under Section 12(3) of the Act by Lokayukta is produced as **Annexure-B**. Based on the said report, the respondent No.3 without authority has proceeded to entrust enquiry under 14A of the Conduct and Disciplinary Control Regulation 1987 of KPTCL. A copy of the entrustment order dated 17.09.2011 is produced as **Annexure-C**. Accordingly, the Enquiring Authority issued a Charge Memo on 01.09.2012. A copy of the Charge Memo dated 01.09.2012 is produced as **Annexure-D**.

4. In the meantime, the Petitioner, was discharged in the Special CC NO. 286/2010, by the 77th Additional City Civil Judge & Sessions Judge, on 23.11.2017. A copy of the order dated 23.11.2017 in Special Case No.286/2010 is produced as **Annexure-E**. It is learnt that against the said order of discharge, the respondent No.2 has preferred a Criminal Revision Petition No 335/2018; no interim order has been granted in the said Cr.Revision Petition by this Hon'ble Court. A copy of the status report of the Cr.Revision Petition as on date is produced as **ANNEXURE-F**.

5. The Petitioner submits that during the pendency of the above proceedings, after holding meeting of DPC, some of the juniors to the Petitioner, have been promoted by the order dated 19.09.2013 to the post of Assistant Executive Engineer (Elec.) (Non-Graduate). A copy of the O.M. dated 19.09.2013 and relevant extract of the Seniority List of Assistant Executive Engineer in KPTCL are produced as **Annexure-G & H**.

6. The Petitioner submits that a Charge Memo was issued by the Lokayukta on 01.09.2012 and the enquiry is yet to be concluded. Presently the enquiry proceedings are in evidence stage. A perusal of the Order Sheet of the enquiry also reveals that at no point of time, the Petitioner has taken any time or delayed the process of enquiry. A copy of the Order Sheet dated 18.02.2019 in enquiry No.297/11 is produced as **Annexure-J**.

7. The Petitioner being aggrieved by the continuation of enquiry proceedings beyond seven years and consequent of his discharging from the criminal proceedings, submitted a representation on 06.12.2017 requesting to consider his claim for promotion to the post of Assistant Executive Engineer (Electrical) (Non-Graduate) pending departmental enquiry in the light of similar benefits having been extended to other similarly placed persons of the Corporation. A copy of the representation dated 06.12.2017 is produced as **Annexure-K**. Subsequently, he submitted another representation on 11.01.2018. A copy of the representation dated 11.01.2018 is produced as **Annexure-L**. Ignoring the same, the respondent No.3 by the impugned endorsement bearing No.Kavi Pra Ni Ni /57/71502/2017-18 dated 30.10.2018 rejected the claim of Petitioner for promotion to the post of Assistant Executive Engineer on the ground that there is no provision for such promotion and in view of Sealed Cover Procedure adopted as per Government Order dated 14.07.1993. A copy of the impugned endorsement dated 30.10.2018 is produced as **Annexure-M**. Being aggrieved, the

8

Petitioner has preferred this Writ Petition on the following amongst other grounds.

8. The Petitioner has no other efficacious, speedy and alternative remedy than to approach this Hon'ble Court under Articles 226 & 227 of the Constitution of India.

9. The Petitioner has not filed any other Writ Petition or other proceedings on the same cause of action before this Hon'ble Court or any other Court.

GROUND

10. The Petitioner respectfully submits that he was discharged in the criminal proceedings by the terms and conditions in Special Case No.286/2010 on 23.11.2017. Though a Criminal Revision Petition has been filed by the respondent No.2, no stay has been granted in the said Criminal Revision Petition. Further, the departmental enquiry was initiated by issuing a Charge Memo on 01.09.2012 and the same is pending till today and is presently in the evidence stage. A perusal of the Order Sheet reveals that the Petitioner has participated in the enquiry proceedings and the delay in concluding is not because of the Petitioner. Under such situation, the impugned endorsement issued by the respondent No.3 denying promotion to the Petitioner for the post of Assistant Executive Engineer would be highly arbitrary, illegal and violative of Article 14 and 16 of the Constitution of India.

11. The Petitioner further submits that admittedly the respondent No.3 has adopted the Sealed Cover Procedure in case

of the Petitioner in terms of Government Order dated 14.07.1993. In the representation submitted by him, the Petitioner made out a case for grant of promotion by opening the sealed cover and making it subject to pending disposal of enquiry proceedings and in view of observation made by the Apex Court in **Chaman Lal Goyal's case** reported in 1995 (1) SCC SLJ page 233 (State of Punjab and others -vs- Chaman Lal Goyal) wherein it is observed as under:

"Para.13: Applying the balancing process, we are of the opinion that the quashing of charges and of the order appointing enquiry officer was not warranted in the facts and circumstances of the case. It is more appropriate and in the interest of justice as well as in the interest of administration that the enquiry which had proceeded to a large extent be allowed to be completed. At the same time, it is directed that the respondent should be considered forthwith for promotion without reference to and without taking into consideration the charges or the pendency of the said enquiry and he should be promoted immediately."

In the instant case, Order Sheet reveals that the delay in completion of departmental enquiry is not attributable to the Petitioner. Therefore on this ground, the claim of the Petitioner ought to have been considered for promotion to the post of Assistant Executive Engineer.

12. The respondent No.1 has prescribed by OM dated 28.06.2001 that the enquiry should be concluded in 9 months. A copy of the Government order dated 28.6.2001 is produced as **ANNEXURE-N**. The departmental enquiry may not come in the way.

10

of promotion of Government Servant. The departmental enquiry initiated in 2012 is yet to be concluded and the enquiry is still in the evidence stage. Therefore, denial of promotion in view of the pendency of the departmental enquiry would be highly arbitrary and illegal.

13. The Petitioner further submits that under identical circumstances considering the claim of similarly placed persons, the respondent No.2 and 3 have granted promotion to the higher post during the pendency of the departmental enquiry in respect of I.M.Nagaiah and Shiva Venkatreddy. A copy of the O.M. dated 30.03.2012 is produced as **Annexure-P**. Denial of similar promotion would be discriminatory and violative of article 14 and 16 of Constitution of India.

14. GROUNDS FOR INTERIM PRAYER: NIL

PRAYER

WHEREFORE, the Petitioner respectfully prays for the following reliefs:

- i. To call for records relating to issue of impugned endorsement No.Kavi Pra Ni Ni /57/71502/2017-18 dated 30.10.2018 issued by respondent No.3 vide **Annexure-M** and after perusal set aside the same,
- ii. To direct the respondents to consider the case of the Petitioner for promotion to the post of Assistant Executive Engineer from the date his juniors were

promoted and consider the representations dated 06.12.2014 vide **Annexure-K** and representation dated 11.01.2018 vide **Annexure-L** within the time frame specified by this Hon'ble Court,

- iii. To pass such other order/s as this Hon'ble Court deems fit under the facts and circumstance of the case.

INTERIM PRAYER NIL

Bengaluru
Dated:

**Advocate for Petitioner
(Vijay Kumar)**

Address for Service:

Bajentri & Associates,
B B Bajentri, Vijay Kumar,
Nagaraj.S and Vijay Kumar.V.B.,
Advocates
No. 1202, 22nd Cross, 2nd Block,
Rajajinagar, Bangalore-560 010.

8494 387344

12

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)**

WRIT PETITION NO. _____/2019

BETWEEN:

Sri.H.S.Manjunath

...Petitioner

AND:

The State of Karnataka and others

...Respondents

AFFIDAVIT VERIFYING THE ACCOMPANYING WRIT PETITION

I, H.S.Manjunath. S/o late Shankarappa, Aged about 54 years, Working as Assistant Engineer (Elec), BESCOM, Bommanahalli, S-8 Sub-Division, Bengaluru, Residing at No.750,16th Main, HSR Layout, 3rd Sector, Bengaluru do hereby solemnly affirm and state on oath as follows.

1. I am the Petitioner in the above writ petition and I know the facts and circumstances of the case. Hence, I am swearing to this Affidavit.

2. I state that the averments made in paragraphs 1 to 14 of the accompanying Writ Petition are true to the best of my knowledge, belief and information and on legal advice, which I believe to be true.

3. I state that Annexures-'A' and 'P' are true copies of the originals.

Bengaluru

Date:

Identified by me:

Advocate.

No.of corrections:-

(ಸಿ.ಎಂ. 281)
(ದೂರದೂರದ ಸಂಖ್ಯೆ)

1 ಆದೇಶ ಸಂಖ್ಯೆ: 1539 ಮತ್ತು 1540

ದಿನಾಂಕ: 23-08-2010

ದಿನಾಂಕ: 25-05-2010

ಪರಿಷತ್ ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು



ದೂರದೂರದ ಸಂಖ್ಯೆ

ದಿನಾಂಕ: 19/2010

ದಿನಾಂಕ: 25-05-2010

ಪರಿಷತ್ ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ದೂರದೂರದ ಸಂಖ್ಯೆ

ದಿನಾಂಕ: 19/2010

ದಿನಾಂಕ: 25-05-2010

ಪರಿಷತ್ ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ದೂರದೂರದ ಸಂಖ್ಯೆ

ದಿನಾಂಕ: 19/2010

ದಿನಾಂಕ: 25-05-2010

ಪರಿಷತ್ ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ದೂರದೂರದ ಸಂಖ್ಯೆ

ದಿನಾಂಕ: 19/2010

ದಿನಾಂಕ: 25-05-2010

ಪರಿಷತ್ ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಸಭೆಯು

ಕಾಲಂ ನಂ. 5 ಮುಂದುವರಿದಿದೆ :-

- 2) ಮಾನ್ಯ ನಿರ್ದೇಶಕರು, ಆಡ.ತ. ಮತ್ತು ಮಾನವ ಸಂಪನ್ಮೂಲ, ಕ.ವಿ.ಪ್ರ.ನಿ.ನಿ. -ಇವರಿ ಭವನ, ಬೆಂಗಳೂರು ನಗರ ರವರು ನೀಡಿರುವ ಅಭಿಯೋಜನಾ ಮಂಜೂರಾತಿ ಆಧಾರ ಸಂಖ್ಯೆ:ಕವಿಪ್ರನಿ/ಬಿ21/17314/2010-11, ದಿನಾಂಕ:16.08.2010ರ ಅಸಲು ಪ್ರತಿ.
- 3) ಪ್ರಥಮ ವರ್ತಮಾನ ವರದಿ ಮತ್ತು ದೂರಿನ ನಕಲು ಹಾಗೂ ಪಿರಾದಿ ದೂರಿನೊಂದಿಗೆ ಹಾಜರುಪಡಿಸಿದ ಜೆರಾಕ್ಸ್ ದಾಖಲಾತಿಗಳು, ಸಾಕ್ಷಿದಾರರು ಹಾಜರಾಗಲು ನೀಡಿದ ಮನವಿ ಪತ್ರ, ಪ್ರಾಯೋಗಿಕ ಮತ್ತು ಟ್ರಾಪ್ ಪಂಚನಾಮೆಗಳ ನಕಲು, ಪ್ರಾಯೋಗಿಕ ಪಂಚನಾಮೆಯ ಸಮಯದಲ್ಲಿ ನಮೂದಿಸಿದ್ದ ನೋಟುಗಳ ನಂಬರ್‌ಗಳ ವಿವರದ ಅಸಲು.
- 4) ಟ್ರಾಪ್ ಪಂಚನಾಮೆ ಸಮಯದಲ್ಲಿ ಪಿರಾದಿ ಹಾಜರುಪಡಿಸಿದ ಮತ್ತು ಆರೋಪಿತನ ನಡುವೆ ನಡೆದ ಸಿಡಿಯಲ್ಲಿನದ್ದ ಸಂಭಾಷಣೆಯ ಲಿಪಿಕರಣ ಅಸಲು, ಸೀಲು ಸ್ವೀಕೃತಿ ಪತ್ರದ ಅಸಲು.
- 5) ಆರೋಪಿತ ಶ್ರೀ.ವಿ.ದಯಾನಂದ ರವರ ಸ್ವ-ಹೇಳಿಕೆಯ ಅಸಲು ಪ್ರತಿ ಮತ್ತು ಆರೋಪಿತನ ಮೇಲಾಧಿಕಾರಿಯವರ ವರದಿಯ ಅಸಲು ಪ್ರತಿ, ತಿಳುವಳಿಕೆ ಪತ್ರದ ನಕಲು, ಹಣ ಸ್ವೀಕರಿಸಿದ ರಶೀದಿಯ ಅಸಲು.
- 6) ಸಾಕ್ಷಿದಾರರಾದ ಕು.ಮಹೇಶ್ವರಿ, ಶ್ರೀ.ಅಜ್ಜತುಲ್ಲಾಖಾನ್, ಮತ್ತು ಶ್ರೀ.ಕೆ.ಶ್ರೀನಿವಾಸ್ ರವರ ಸ್ವ-ಹೇಳಿಕೆಗಳ ಅಸಲು.
- 7) ಆರೋಪಿತನ ಮೇಲಾಧಿಕಾರಿಯಾದ ಶ್ರೀ.ಕೆ.ಶಿವಣ್ಣ ರವರ ವರದಿ ಅಸಲು.
- 8) ಮಾಲು ಪಟ್ಟಿ ಸಂಖ್ಯೆ:27/10 ದಿನಾಂಕ: 25.05.2010ರ ನಕಲು.
- 9) ಆರೋಪಿತ ಶ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಎ.ಇ.ರವರ ಸೇವಾವಿವರಗಳ ಅಸಲು ಮತ್ತು ಮೇಲಾಧಿಕಾರಿಯವರ ಕರ್ತವ್ಯ ಹಂಚಿಕೆ ಇತ್ಯಾದಿ ವರದಿಗಳ ಅಸಲು.
- 10) ಮೇ 2010ನೇ ತಿಂಗಳ ಹಾಜರಾತಿ ಮುಸ್ತಕದ ದೃಢೀಕೃತ ಜೆರಾಕ್ಸ್ ಪ್ರತಿಗಳು, ಕ್ಲಾಕ್ ರಶೀತಿ ಅಸಲು.
- 11) ತನಿಖೆಯ ಕಾಲದಲ್ಲಿ ವರಪಡಿಸಿಕೊಂಡ ದೃಢೀಕೃತ ದಾಖಲಾತಿಗಳ ಜೆರಾಕ್ಸ್ ಪ್ರತಿಗಳು.
- 12) ಆರೋಪಿತನ ಹೆಸರಿನಲ್ಲಿರುವ ದ್ವಿ-ಚಕ್ರ ವಾಹನ ಸಂಖ್ಯೆ:ಕೆಎ-51-ಎ-6171ನೇ ವಾಹನ 'ಬಿ'ಎಕ್ಸ್‌ಟ್ರಾಕ್ಟ್‌ನ ಅಸಲು ಪ್ರತಿ.
- 13) ಪಿರಾದಿಯವರಿಗೆ ಸಂಬಂಧಿಸಿದ ಕಾರಿನ ಅರ್.ಸಿ.ಮುಸ್ತಕದ ಜೆರಾಕ್ಸ್ ಪ್ರತಿ.
- 14) ಆರೋಪಿತ, ಪಿರಾದಿ ಮತ್ತು ಕು.ಮಹೇಶ್ವರಿ(ಸಾಕ್ಷಿ)ರವರ ಮೊಬೈಲ್ ಕಾಲ್ ಡಿಟೈಲ್‌ಗಳ ಅಸಲು.
- 15) ಕೃತ್ಯ ನಡೆದ ಸ್ಥಳದ ನಕಾಶೆ ಅಸಲು ಪ್ರತಿ.
- 16) ಶ್ರೀ.ಬಸವರಾಜ ಗೋವಿನಗಿಡದ್, ಸಹಾಯಕ ರಾಸಾಯನಿಕ ತಜ್ಞರು ನೀಡಿರುವ ಅಸಲು ರಾಸಾಯನಿಕ ವರದಿ.
- 17) ಮಾನ್ಯ 17ನೇ ಎ.ಪಿ.ಎಂ.ಎಂ.ನ್ಯಾಯಾಲಯದ ನ್ಯಾಯಾಧೀಶರಲ್ಲಿ ಕಲಂ:164 ಸಿ.ಆರ್.ಪಿ.ಸಿ.ರೀತ್ಯಾ ಹೇಳಿಕೆ ಪಡೆದುಕೊಳ್ಳಲು ಕೋರಿದ ಪತ್ರ.
- 18) ದಿನಾಂಕ:09.08.2010 ರಂದು ಆರೋಪಿತ ಮುದ್ದು ಕಛೇರಿ ಹಾಜರಾಗಿ ಕೊಟ್ಟ ಸ್ವ-ಹೇಳಿಕೆಯ ಅಸಲು ಪ್ರತಿ ಮತ್ತು ರಿಮಾಂಡ್ ಅರ್ಜಿಯ ನಕಲು.
- 19) ಸಾಕ್ಷಿದಾರರುಗಳಾದ 1) ಶ್ರೀ.ಕೆ.ಎಂ.ನಾಗರಾಜು (ಪಿರಾದಿ) 2)ಕು.ಮಹೇಶ್ವರಿ.ಟಿ. [ಸಾಕ್ಷಿ] 3) ಶ್ರೀ.ಅಜ್ಜತುಲ್ಲಾಖಾನ್ [ಸಾಕ್ಷಿ] 4) ಶ್ರೀ.ಕೆ.ಹೆಚ್.ಶ್ರೀನಿವಾಸ್ [ಸಾಕ್ಷಿ] 5) ಶ್ರೀ.ಎಂ.ಹೆಚ್.ಬನ್ಸಾ ಪಿ.ಸಿ., 6)ಶ್ರೀ.ಆರ್.ವಿ.ಕುಲಕರ್ಣಿ [ಪಂಚಸಾಕ್ಷಿ] 7)ಶ್ರೀ.ನಂಜಪ್ಪ [ಪಂಚಸಾಕ್ಷಿ] 8)ಶ್ರೀ.ದೊಡ್ಡಮಾರಯ್ಯ ಜಿ.ಇ., 9)ಶ್ರೀ.ನರಸಿಂಹಮೂರ್ತಿ ಲೈನ್‌ಮನ್ 10)ಶ್ರೀ.ಕೆ.ಶಿವಣ್ಣ, ಎ.ಇ.ಇ., 11) ಶ್ರೀಮತಿ.ಲಲಿತಾರಾಜ್ 12)ಶ್ರೀ.ವೈ.ಎನ್.ದೇಶಿಕಾ ಹೆಚ್.ಪಿ., 13)ಶ್ರೀ.ರಾಮಯ್ಯ ಪಿ.ಸಿ., 14) ಶ್ರೀ.ಡಿ.ಸುರೇಶ್ ಪಿ.ಸಿ.ರವರ ಹೇಳಿಕೆಯ ಅಸಲು ವರದಿಗಳು.

ಕಾಲಂ.6 ಮುಂದುವರಿದಿದೆ.

4. ಶ್ರೀ.ಕೆ.ಹೆಚ್.ಶ್ರೀನಿವಾಸ್ ಬಿನ್ ಹನುಮಂತಪ್ಪ 26ವರ್ಷ, ಗ್ರಾಂಗಮನ್, ಲಿಂಗರಾಜಪುರಂ ಬೆಸ್ಕಾಂ ಓ & ಎಂ ಇ-5 ಕಛೇರಿವಿಪನ್, ಬೆಂಗಳೂರು, ವಾಸ ಕೊಂಡವಾರಪಲ್ಲಿ, ಮಲ್ಲಸಂದ್ರ, ಬಾಗೇಪಲ್ಲಿ ತಾಲ್ಲೂಕು, ಚಿಕ್ಕಬಳ್ಳಾಪುರ.
5. ಶ್ರೀ.ಎಂ.ಹೆಚ್.ಬನ್ಸಾ ಪೊಲೀಸ್ ಕಾನ್‌ಟೇಬಲ್, ಕರ್ನಾಟಕ ಪೊಲೀಸಾಯುಕ್ತ, ನಗರ ವಿಭಾಗ, ಬೆಂಗಳೂರು ನಗರ.
6. ಶ್ರೀ.ಆರ್.ಪಿ.ಕುಲಕರ್ಣಿ ಬಿನ್ ವೆಂಕಟೇಶ್.ಎನ್.ಕುಲಕರ್ಣಿ 50ವರ್ಷ, ಕಛೇರಿ ಅಧೀಕ್ಷಕರು, ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ, ಅಂಗವಿಕಲರ ಮತ್ತು ಹಿರಿಯ ನಾಗರಿಕರ ಕಲ್ಯಾಣ ಇಲಾಖೆ, ಎ.ವಿ.ಗೋಪುರ, ಪೊಡಿಯಂ ಬ್ಲಾಕ್, ಬೆಂಗಳೂರು, ವಾಸ ನಂ.4/1, 1ನೇ ಮುಖ್ಯ ರಸ್ತೆ, 1ನೇ ಕ್ರಾಸ್, ಸುಬೇದಾರ್‌ಪಾಳ್ಯ, ಯಶವಂತಪುರ ಬೆಂಗಳೂರು-22.
7. ಶ್ರೀ.ನಂಜಪ್ಪ ಬಿನ್ ಹೊನ್ನಯ್ಯ 56ವರ್ಷ, ದ್ವಿತೀಯ ದರ್ಜೆ ಸಹಾಯಕ, ಮಾನ್ಯ ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ, ಅಂಗವಿಕಲರ ಮತ್ತು ಹಿರಿಯ ನಾಗರಿಕರ ಕಲ್ಯಾಣ ಇಲಾಖೆ, ಎ.ವಿ.ಗೋಪುರ, ಪೊಡಿಯಂ ಬ್ಲಾಕ್, ಬೆಂಗಳೂರು, ವಾಸ ನಂ.4/1, 1ನೇ ಮುಖ್ಯ ರಸ್ತೆ, 1ನೇ ಕ್ರಾಸ್, ಸುಬೇದಾರ್‌ಪಾಳ್ಯ, ಯಶವಂತಪುರ ಬೆಂಗಳೂರು-22.

01/10/20 Id (File #)

சென்னை, 15.05.2019

[illegible]

8. ಶ್ರೀ.ದೂಡೇಪುರಯ್ಯ ಬನ್ ಲೇಖ ಮಂಚಯ್ಯ 55ವರ್ಷ. ಕಿರಿಯ ಅಧಿಯಂತರರು. ಲಿಂಗನಾಪುರ ಬಸ್ಸುಂ ೬ & ಎಂ ಇ-5 ಸ್ಟಾಂಡಿಂಗ್, ಬೆಂಗಳೂರು. ವಾಸ ೨೦.79. 4ನೇ ಕ್ರಾಸ್. 4ನೇ ಮುಖ್ಯ ರಸ್ತೆ. ಸಂಪುಟನಗರ ಅಂಚೆ. ನಾಗರೇಪ್ಪಹಳ್ಳಿ ಬೆಂಗಳೂರು -94.
9. ಶ್ರೀ.ಸುರಕುಂದಪುರಾಣಿಕ ಬನ್ ಮುನಿಪುರಯ್ಯ 38ವರ್ಷ. ಕಿರಿಯ ಲೈನ್ಮಾನ್. ಲಿಂಗನಾಪುರ ಬಸ್ಸುಂ ೬ & ಎಂ ಇ-5 ಸ್ಟಾಂಡಿಂಗ್, ಬೆಂಗಳೂರು. ವಾಸ ೨೦.72/೫. ಎಲ್ಯಾಪುರ (ಎಸ್.ಆರ್.ಪುಲ್ಕ) ಆರೋಪಣ ಕಾಲೇಜ್ ಅಂಚೆ. ಬೆಂಗಳೂರು-45.
10. ಶ್ರೀ.ಕೆ.ಬಜ್ಜೆ ಬನ್ ಕಿರಿಯ 44ವರ್ಷ. ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಯಂತರರು. ಲಿಂಗನಾಪುರ ಬಸ್ಸುಂ ೬ & ಎಂ ಇ-5 ಸ್ಟಾಂಡಿಂಗ್, ಬೆಂಗಳೂರು. ವಾಸ ೨೦.16/2. 5ನೇ ಮುಖ್ಯ ರಸ್ತೆ. 2ನೇ ಹಂತ. ಬಸ್ಸು ಆರ್. ಕಾರ್. ರಸ್ತೆ. ಮಹಾಲಕ್ಷ್ಮೀಪುರಂ. ಬೆಂಗಳೂರು.
11. ಶ್ರೀ.ಮತಿ.ಲಲಿತಾಪುರ್ ಕೋಂ ಗೋವಿಂದಪುರ್ 39ವರ್ಷ ಗೃಹಿಣಿ. ವಾಸ ೨೦.207. ಸ್ವಗಿರಿ ನವಾಸ. 2ನೇ ಹೆಜ್ ಕ್ರಾಸ್ (ಹಳೇ 5ನೇ ಕ್ರಾಸ್) ಕಮಿಷನರ್ ಮುಖ್ಯ ರಸ್ತೆ. ಬೆಂಗಳೂರು-84.
12. ಶ್ರೀ.ಬಿ.ಎಸ್.ಕಿರಿಯಂ, ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್(ಎ). ಆರ್.ಕೆ ಪೂರ್ವ ಲಿಂಗನಾಪುರ-5.
13. ಶ್ರೀ.ನರಸಪುರ ಗೋವಿಂದಪುರ್, ಸಹಾಯಕ ನಾಪಾಯಿನಿ ಕಚ್ಚು. ಕೇಪಾಲ್ ರಸ್ತೆ. ಬೆಂಗಳೂರು.
14. ಶ್ರೀ.ಮಲ್ಲೇಶ್ವರಯ್ಯ, ಕಿರಿಯ ಅಧಿಯಂತರರು. ೨೦.1. ಕಟ್ಟಡಗಲ್, ೨ನೇ ಲಿಂಗನಾಪುರ. ಬಿ.ಎ.ಪುರ್. ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆ. ಬೆಂಗಳೂರು.
15. ಶ್ರೀ.ಕವೀಂದ್ರ.ಬಿ.ಬಿ.ಕಳಸಪುರ. ನಿರ್ದೇಶಕರು. (ಆರೋಪಣ ಮಂಚಮಂಚ ಸಂಪುಟ) ಕೆ.ಎ.ಪು.ಬಿ.ಎ. ಕಾಲೇಜ್ ಭವನ. ಬೆಂಗಳೂರು.
16. ಶ್ರೀ.ಮತಿ.ನಾಗರೇ. 17ನೇ ಎ.ಎ.ಎಂ.ಎಂ.ಪುರಯ್ಯದ ನ್ಯಾಯಾಲಯ. ಬೆಂಗಳೂರು.
17. ಶ್ರೀ.ಪ್ರ.ಎಲ್.ಬಿ.ಕೆ. ಹೆಚ್.ಎ. ಕರ್ನಾಟಕ ಲೋಕೋಪಯ್ಯ ನಗರ ಲಿಂಗನಾಪುರ. ಬೆಂಗಳೂರು.
18. ಶ್ರೀ.ರಾಜಯ್ಯ. ಕೆ.ಎ. ಕರ್ನಾಟಕ ಲೋಕೋಪಯ್ಯ ನಗರ ಲಿಂಗನಾಪುರ. ಬೆಂಗಳೂರು.
19. ಶ್ರೀ.ಡಿ.ಸುರೇಶ್. ಪೂರ್ವಾ ಕರ್ನಾಟಕ ಲೋಕೋಪಯ್ಯ ನಗರ ಲಿಂಗನಾಪುರ. ಬೆಂಗಳೂರು.
20. ಶ್ರೀ.ಕೆ.ಪುಟ್ಟ. ಕೆ.ಎ. ಕರ್ನಾಟಕ ಲೋಕೋಪಯ್ಯ ನಗರ ಲಿಂಗನಾಪುರ. ಬೆಂಗಳೂರು.

④

51

No: COMPT/UPLOK/BCD/4/2011

M.S. Building,
Dr. B.R. Ambedkar Veedhi,
Bangalore, Dated: 20/08/2011.**REPORT UNDER SECTION 12(3) OF THE KARNATAKA LOKAYUKTA
ACT**

Sub: Proceedings against Sri.H.S.Manjunath,
Assistant Engineer in BESCOM (O & M.),
E-5 Sub-Division at Lingarajapuram in
Bangalore, about his misconduct - reg.,

On the basis of the material placed by the Superintendent of Police, Karnataka Lokayukta, Bangalore City Division at Bangalore that Sri.H.S.Manjunath, Assistant Engineer in BESCOM (O & M.), E-5 Sub-Division at Lingarajapuram in Bangalore (herein after referred to as 'respondent' for short), has committed misconduct as a public servant in the official work of Sri.K.M.Nagaraju S/o Masaiah of M/s Nandan Electricals R/o Hennur, Bangalore - 43 (herein after referred to as 'complainant' for short), an investigation was taken up u/s 7 (2) of the Karnataka Lokayukta Act, 1984..

2. Brief facts of the case are:

- (a) The complainant working as an electrical contractor got a contract for getting supplied electricity (power) to a newly constructed building named as "Lalith Raj residency" on Kacharanahalli - Kamanhalli Main Road, Bangalore. So, for that, the complainant had made application with D.D. and relevant documents in the office of the respondent on 06/04/2010. In that connection, the complainant met the respondent 5 - 6 times but it was in vain. So, the complainant met the respondent on 22/05/2010 and enquired about the

18
power supply. For that the respondent asked to bring the transformer, otherwise complainant has to pay expenses for that. So, the complainant asked about expenses. Then, instead of telling that the work will or can't be attended or that it takes some more time and / or procedure and / or record(s) etc., as per law nor asking to come after some days, the respondent demanded bribe of Rs.10,000/- from the complainant and promising to supply power within a week.

(b) Since the complainant was not willing to pay bribe to the respondent, he approached the Police Inspector, Bangalore City Division of Karnataka Lokayukta (herein after referred to as Investigating Officer -I.O.' for short) and lodged a complaint against the respondent, on which basis, a case in Cr. No. 19/2010 was registered for offences punishable under Section 7 and 13 (1) (d) r/w Section 13(2) of Prevention of Corruption Act, 1988.

(c) During the investigation into the said crime, after the tainted (bribe) amount was given in the hands of Kum.T.Maheshwari, Office Assistant as asked by the respondent on 25/05/2010 in the office of the respondent it was seized from said Kum.T.Maheshwari under mahazar in the presence of complainant, panchas and staff after following post-trap formalities and also taken the statement of the respondent in writing and recorded statements of complainant, panchas and others and also collected connected records, including report from Chemical Examiner, and submitted report.

3) Said facts supported by the material on record show that the respondent, being a public servant, has failed to maintain absolute integrity, devotion to duty and acted in a manner unbecoming of a *any*

government servant, and thereby committed misconduct and liable for disciplinary action.

4) Therefore, investigation was taken up against the respondent and an observation note was sent to him to show cause as to why recommendation should not be made to the Competent Authority for initiating departmental inquiry against him in the matter. For that, the respondent gave his reply. However, his reply is not convincing to drop the proceedings.

5) Since said facts and material on record prima facie show that the respondent has committed misconduct under Rule 3(1) of Karnataka Electricity Board Employees (Conduct) Regulations, 1988, now, acting under section 12(3) of the Karnataka Lokayukta Act, recommendation is made to the Competent Authority to initiate disciplinary proceedings against the respondent and entrust the inquiry to this Authority under Rule 14-A(1)(a) of Karnataka Electricity Board Employees' (Classification, Disciplinary, Control and Appeal) Regulations, 1987.

6) Further, as per U/s 12(4) of Karnataka Lokayukta Act, 1984, the Competent Authority to intimate this Authority within three months from the date of receipt of this report, the action taken or proposed to be taken on this report.

Connected records are enclosed:

(Justice S.B. Majage)
Upalokayukta,
State of Karnataka

document is referred to as
in the
signature
of the
Oath Commissioner
5/8

Te

20

Typed copy of Annexure-B

KARNATAKA LOKAYUKTA

No: COMPT/UPLOK/BCD/4/2011

M.S. Building,
Dr. B.R. Ambedkar Veedhi,
Bangalore

Dated: 20/08/2011

REPORT UNDER SECTION 12(3) OF THE
KARNATAKA LOKAYUKTA ACT

Sub:- Proceedings against Sri. H.S. Manjunatha,

Assistant Engineer in BESCOM (O & M), E-5, Sub-Division
At Lingarajapuram in Bangalore, about his misconduct - reg.,

On the basis of the material placed by the Superintendent of Police, Karnataka Lokayukta, Bangalore City Division at Bangalore that Sri. H.S. Manjunath, Assistant Engineer in BESCOM (O & M.), E-5 Sub-Division at Lingarajapuram in Bangalore (herein after referred to as 'respondent' for short), has committed misconduct as a public servant in the official work of Sri. K.M. Nagaraju S/o. Masaiah of M/s. Nandan Electricals R/o Hennur, Bangalore-43 (herein after referred to as 'complainant' for short), an investigation was taken up u/s. 7 (2) of the Karnataka Lokayukta Act, 1984.

2. Brief facts of the case are:

a. The complainant working as an electrical contractor got a contract for getting supplied electricity (power) to a newly constructed building names as "Lalith Raj Residency" on Kacharanahalli, Kamanahalli Main Road, Bangalore. So, for that, the complainant had made application with D.D. and relevant documents in the office of the respondent on 06/04/2010. In that connection, the complainant met the respondent 5-6 times but it was in vain. So, the complainant met the respondent on 22/05/2010 and enquired about the power supply. For that the respondent asked to bring the transformer, otherwise complainant has to pay expenses for that. So, the complainant asked about expenses. Then, instead of telling that the work will or can't be attended or that it takes some more time and / or procedure and / or record(s) etc., as per law nor asking to come

after some days, the respondent demanded bribe of Rs. 10,000/- from the complainant and promising to supply power within a week.

b. Since the complainant was not willing to pay bribe to the respondent, he approached the Police Inspector, Bangalore City Division of Karnataka Lokayukta (herein after referred to as Investigating Officer- 'I.O.' for short) and lodged a complaint against the respondent, on which basis, a case in Cr. No. 19/2010 was registered for offences punishable under section 7 and 13 (1) (D) r/w Section 13(2) of Prevention of Corruption Act, 1988.

C) During the investigation into the said crime, after the tainted (bribe) amount was given in the hands of Kum. T. Maheshwari, Office Assistant as asked by the respondent on 25/05/2010 in the office of the respondent it was seized from said Kum. T. Maheshwari under mahazar in the presence of complainant, panchas and staff after following post-trap formalities and also taken the statement of the respondent in writing and recorded statements of complainant, panchas and others and also collected connected records, including report from Chemical Examiner, and submitted report.

3) Said facts supported by the material on record show that the respondent, being a public servant, has failed to maintain absolute integrity, devotion to duty and acted in a manner unbecoming of a government servant, and thereby committed misconduct and disciplinary action.

4) Therefore investigation was taken up against the respondent and an observation note was sent to him to show cause as to why recommendation should not be made to the competent Authority for initiating department inquiry against him in the matter. For that, the respondent gave his reply. However, his reply is not convincing to drop the proceedings.

5) Since said facts and material on record prima facie show that the respondent has committed misconduct under Rule 3(1) of Karnataka Electricity Board Employees (Conduct) Regulations, 1988, now, acting

under section 12(3) of the Karnataka Lokayukta Act, recommendation is made to the Competent Authority to initiate disciplinary proceedings against the respondent and entrust the inquiry to this Authority under Rule 14-A(1)(a) of Karnataka Electricity Board Employees' (Classification, Disciplinary, Control and Appeal) Regulations, 1987.

6) Further, as per U/s 12 (4) of Karnataka Lokayukta Act, 1934, the Competent Authority to intimate this Authority within three months from the date of receipt of this report, the action taken or proposed to be taken on this report.

Connected records are enclosed.

(Justice S.B. Majage)
Upalokayukta,
State of Karnataka.

20/9/11

30/9/11

೨೨' ANNEXURE - C

ಕರ್ನಾಟಕ ವಿದ್ಯುತ್ ಪ್ರಸಾರಣ ನಿಗಮ ನಿಯಮಿತ

ಕವಿಪ್ರನಿನಿ ಹಾಗೂ ಶಿಸ್ತುಪ್ರಾಧಿಕಾರದ ನಡವಳಿಕೆಗಳು

ವಿಷಯ: ಶ್ರೀ ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), ೧-5 ಉಪ ವಿಭಾಗ, ಬೆವಿಹಂ, ಲಿಂಗರಾಜಪುರ, ಬೆಂಗಳೂರು (ಪಾಲಿ 220 ಕೆವಿ ಸ್ಟೇಷನ್, ಕವಿಪ್ರನಿನಿ, ಹೊಸಕೋಟೆ) ರವರ ವಿರುದ್ಧದ ಲಂಚಾರೋಪ ಸಂಬಂಧ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಹೊಡುಪ ಬಗ್ಗೆ.

ಓದಲಾಗಿದೆ:

1. ಅಪರ ಪ್ರೊಲೋ ಮತ್ತು ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ಲೋಕಾಯುಕ್ತ ರವರ, ದಿನಾಂಕ: 29.05.2010 ರ ಪತ್ರ-ಪೂಜೆ: ಲೋಕ್/ಬಿಎನ್‌ಎ(ಪಿ)/ಬಿ/ಕ್ರ.೧9/2010.
2. ಮಾನ್ಯ ಉಪಲೋಕಾಯುಕ್ತ ರವರ, ದಿನಾಂಕ: 20.08.2011 ರ ಪರದಾ ಸಂಖ್ಯೆ: ಕಂಪ್ಲಂಟ್/ಉಪಲೋಕ್/ಬಿಎಂ/4/2011/ಎಆರ್‌೧-10
3. ಅಪರ ನಿರಂಧಕರು ವಿಚಾರಣೆಗಳು-10, ಕರ್ನಾಟಕ ಲೋಕಾಯುಕ್ತ, ಬೆಂಗಳೂರು ರವರ, ದಿನಾಂಕ: 23.08.2011 ರ ಪತ್ರ ಸಂಖ್ಯೆ: ಕಂಪ್ಲಂಟ್/ಉಪಲೋಕ್/ಬಿಎಂ/4/2011/ಎಆರ್‌೧-10

ಪಿಲಿಕ್:

ಫಿರ್ಕಾದುದಾರರಾದ (ಶ್ರೀ.ಹೆ.ಎಂ.ನಾಗರಾಜು, ನಂದನ ಎಲೆಕ್ಟ್ರಿಕಲ್ಸ್, ವಿದ್ಯುತ್ ಗುತ್ತಿಗೆದಾರರು, ಬೆಂಗಳೂರು ರವರು ಪಾಕೆಟ್‌ನಲ್ಲಿ ಕಮ್‌ನಲ್ಲಿ ಬೆಂಗಳೂರು ಕುಖಲ್ ರಸ್ತೆಯಲ್ಲಿ ಹೊಸದಾಗಿ ನಿರ್ಮಾಣವಾಗಿರುವ ಲಲಿತರಾಜ್ ರೆಸಿಡೆನ್ಸಿಯಲ್ ಕಟ್ಟಡಕ್ಕೆ ವಿದ್ಯುತ್ ಸಂಪರ್ಕಕ್ಕಾಗಿ ಗುತ್ತಿಗೆಯನ್ನು (ಶ್ರೀಮತಿ.ಲಲಿತರಾಜ್ ರವರಿಂದ ಮುಖಾಂತರಿಸಿದ್ದು, ಸದರಿ ಕಟ್ಟಡಕ್ಕೆ ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಕೊಡಿಸಲು ಮಂಜೂರಾತಿಗಾಗಿ ಬೆವಿಹಂ ಗೆ ಪಾವತಿಸಬೇಕಾದ ಮೊತ್ತವನ್ನು ಫಿರ್ಕಾದುದಾರರು ಪಾವತಿಸುವುದಾಗಿರುವ, ಕಟ್ಟಡಕ್ಕೆ ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ನೀಡುವಂತೆ ಶ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), ರವರನ್ನು 5-6 ಬಾರಿ ಬೇಟೆ ಮಾಡಿ ವಿಚಾರಿಸಿದಾಗ ಆತರು ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ನೀಡಲು ಮುಂದೆಕೆದನ್ನು ಕಂಪನಿ ಹಾಕಿ ಇಲ್ಲವೆ ಆದರೆ ಖರ್ಚು ಕೊಡಲು ಫಿರ್ಕಾದುದಾರರವರನ್ನು ಕೇಳಿ ಸದರಿ ವಿಚಾರ ದೂ.10.000/- ಎಂದು ತಿಳಿಸಿರುವುದಾಗಿರುವ, ಸಂದಾಯ ಮಾಡಬೇಕಾದ ಹಣವನ್ನು ಕೂಗಾಗಲೇ ಸಂದಾಯ ಮಾಡಿರುವುದರಿಂದ ಪೂಜೆ ಯಾಕೆ ನೀಡಬೇಕೆಂದು ಕೇಳಿದಾಗ ಆರೋಪಿಯು ದೂ.10.000/-ಗಳ ಲಂಚವನ್ನು ನೀಡಿದ್ದು ಇನ್ನೆ ಕೆಲಸ ಮಾಡುವುದಿಲ್ಲವೆಂದು ತಿಳಿಸಿರುವುದಾಗಿರುವ, ಲಂಚದ ಹಣವನ್ನು ಕೊಟ್ಟು ಕೆಲಸಮುಗಿಸಿಕೊಳ್ಳಲು ಇಪ್ಪತ್ತಿರುವ ಕಾರಣ ಆಗುತ್ತದೆಯೆಂದು ತಿಳಿಸಿರುವುದಾಗಿರುವ, ಲಂಚದ ಹಣವನ್ನು ಕೊಟ್ಟು ಕೆಲಸಮುಗಿಸಿಕೊಳ್ಳಲು ಇಪ್ಪತ್ತಿರುವ ಕಾರಣ ಫಿರ್ಕಾದುದಾರರು ಆರೋಪಿ ಅಧಿಕಾರಿಯ ವಿರುದ್ಧ ಕಾನೂನು ಕ್ರಮ ಕೈಗೊಳ್ಳಲು, ದಿನಾಂಕ:25.05.2010 ರಂದು ಬೆಂಗಳೂರು ನಗರ ಲೋಕಾಯುಕ್ತ ಪ್ರೊಲೋ ತಾನೆಗೆ ದೂರನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಲಂಚವನ್ನು ಕೇಳಿರುವುದು ಮೇಲ್ಕೊಟ್ಟ ಸಾಬೀತಾಗಿರುವುದು ಕಂಡುಬರುತ್ತದೆ.

ಸದರಿ ಲಂಚಾರೋಪ ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಮಿತಿಯ ಸಮನುಬದ್ಧಿ ಸಂಸ್ಥಾಪಿತ ದಾಖಲೆಗಳು ಮತ್ತು ಪುರಾವೆಗಳು ಆರೋಪಿ ಅಧಿಕಾರಿಯಾದ (ಶ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), ೧-5 ಉಪ ವಿಭಾಗ, ಬೆವಿಹಂ, ಲಿಂಗರಾಜಪುರ, ಬೆಂಗಳೂರು ರವರು ಮೇಲೆ ತಿಳಿಸಿದಂತೆ ಫಿರ್ಕಾದುದಾರರಿಂದ ಲಂಚವನ್ನು ಪಡೆದು ದುರ್ವೇಶತೆಯನ್ನು ಎಸಗಿರುವುದು ಮೇಲ್ಕೊಟ್ಟ ಸಾಬೀತಾಗಿರುವುದಾಗಿರುವ, ಆದುದರಿಂದ ಸದರಿ ಆರೋಪಿ ಅಧಿಕಾರಿಯ ವಿರುದ್ಧ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಹೊಡುಪ ಮತ್ತು ಅದನ್ನು ಉಪಲೋಕಾಯುಕ್ತಕ್ಕೆ ಮುಖಾಂತರಿಸುವುದು ಸಂಬಂಧಿಸಿದಂತೆ ದೂ.20.09.2011 ರ ಫಿರ್ಕಾದಿನಲ್ಲಿ ತಿಳಿಸಿರುವುದಾಗಿರುತ್ತದೆ. ಸದರಿ ದೂರು ಮತ್ತು ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದ ದಾಖಲೆಗಳ ಪ್ರತಿಗಳನ್ನು ಅಪರ ನಿರಂಧಕರು ವಿಚಾರಣೆಗಳು-10, ಕರ್ನಾಟಕ ಲೋಕಾಯುಕ್ತ, ಬೆಂಗಳೂರು ರವರ, ದಿನಾಂಕ: 23.08.2011 ರ ಪತ್ರದೊಂದಿಗೆ ರವಾನಿಸಿರುತ್ತಾರೆ.

24

ಪ್ರಸ್ತುತ ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮಾನ್ಯ ಉಪಲೋಕಾಯುಕ್ತ ರವರ ಮತ್ತು ಇತರ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ, ಸದರಿ ದಾಖಲೆಗಳು ಮತ್ತು ಪುರಾವೆಗಳು ಪ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), ಇ-5 ಉಪ ವಿಭಾಗ, ಬೆಂಗಳೂರು, ಬೆಂಗಳೂರು ರವರ ವಿರುದ್ಧದ ಲಂಚಾರೋಪವು ಮೇಲ್ವಿಚಾರಣೆಗೆ ಸಾಬೀತಾಗಿರುವುದಾಗಿ ಕಂಡು ಬರುವುದರಿಂದ, ಸದರಿ ಆರೋಪ ಅಧಿಕಾರಿಯ ವಿರುದ್ಧ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಆದೇಶಿಸಲು ಹಾಗೂ ಅಧ್ಯಕ್ಷ ಮಾನ್ಯ ಉಪಲೋಕಾಯುಕ್ತರವರಿಗೆ ವಹಿಸಲು ನಿಗದಿಪಟ್ಟ ತೀರ್ಮಾನಿಸಿದೆ. ಆದರನ್ನಯ ಈ ಕೆಳಕಂಡ ಆದೇಶವನ್ನು ನೀಡಲಾಗಿದೆ:-

ಆದೇಶ ಸಂಖ್ಯೆ: ಕವಿಪ್ರನಿ/ಎ21/17314/2010-11

ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 17 SEP 2011

ನಿಗಮವು, ಕೆವಿಮಂ ನೌಕರರ (ಪ.ಶಿ.ನಿ. ಮತ್ತು ಮೇ.) ನಿಬಂಧನೆಗಳು, 1987 ರ ನಿಬಂಧನೆ 14ಎ(1) ಎ(1) ರ ಅನ್ವಯ ಕನಗಿರುವ ಅಧಿಕಾರವನ್ನು ಚಲಾಯಿಸಿ ಪ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), ಇ-5 ಉಪ ವಿಭಾಗ, ಬೆಂಗಳೂರು, ಬೆಂಗಳೂರು (ವಾಲಿ 220 ಕೆವಿ ಸ್ಟೇಷನ್, ಕವಿಪ್ರನಿ, ಹೊಸಕೋಟೆ) ರವರ ವಿರುದ್ಧ ಲಂಚಾರೋಪ ಸಂಬಂಧ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಆದೇಶಿಸಿದ ಹಾಗೂ ಅಧ್ಯಕ್ಷ ಮಾನ್ಯ ಉಪಲೋಕಾಯುಕ್ತ ರವರಿಗೆ ವಹಿಸಿದೆ. ಈ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಮೇಲೆ ವಿವರಿಸಿದ ನಿಬಂಧನೆಗಳ ನಿಬಂಧನೆ 11 ರ ಅಡಿಯಲ್ಲಿ ನಡೆಸುವುದು.

ನಿಗಮವು, ಪ್ರಸ್ತುತ ಇಲಾಖಾ ವಿಚಾರಣೆಯಲ್ಲಿ ತಮ್ಮ ಪ್ರಾಧಿಕಾರಿಯಾಗಿ ಕಾರ್ಯನಿರ್ವಹಿಸುತ್ತಿದ್ದ ಹಾಗೂ ಮೇಲೆ ತಿಳಿಸಿದ ನಿಬಂಧನೆಗಳ ನಿಬಂಧನೆ 9 ರ ಅಡಿಯಲ್ಲಿ ಸೂಚಿಸಿರುವ ಒಂದು ಅಥವಾ ಹೆಚ್ಚಿನ ದಂಡನೆಗಳನ್ನು ವಿಧಿಸಲು ಅಧಿಕಾರ ಹೊಂದಿರುತ್ತದೆ.

‘ಆದೇಶದ ಮೇರೆಗೆ’

ನಿರ್ದೇಶಕರು

(ಆಡಳಿತ ಮತ್ತು ಮಾನವ ಸಂಪನ್ಮೂಲ)

ಕವಿಪ್ರನಿ

ಪ್ರೀ.ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ್, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್(ಎ), 220 ಕೆವಿ ಸ್ಟೇಷನ್, ಕವಿಪ್ರನಿ, ಹೊಸಕೋಟೆ.	ಕಾರ್ಯ ನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್(ಎ), ಕವಿಪ್ರನಿ, ನೆಲಸುಂಗು ರವರಿಗೆ ಆದೇಶದ ಎರಡು ಪ್ರತಿಗಳನ್ನು ಮಾಹಿತಿಗಾಗಿ ರವಾನಿಸಿದೆ. ಆದೇಶದ ಒಂದು ಪ್ರತಿಯನ್ನು ಸಂಬಂಧಿಸಿದವರಿಗೆ ಜಾಂ ಮಾಡಿ ಮಾತೃವಾಂವ ಪ್ರತಿಯಲ್ಲಿ ಸದರಿಯವರ ಸ್ವೀಕೃತಿಯನ್ನು ದಿನಾಂಕದೊಂದಿಗೆ ಪಡೆದು ಈ ಕಚೇರಿಗೆ ಒಂದುಗುಡಿಸಲು ಕೋರಿದೆ.
--	---

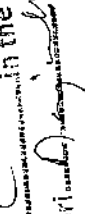
✓**ಅಪರ ನಿಬಂಧಕರು ವಿಚಾರಣೆಗಳು-10, ಕರ್ನಾಟಕ ಲೋಕಾಯುಕ್ತ, ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ, ಡಾ|| ಅಂಬೇಡ್ಕರ್ ವೀಧಿ, ಬೆಂಗಳೂರು-1 ರವರಿಗೆ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ಮುಂದಿನ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಸಲ್ಲಿಸಿದೆ.**

ಪ್ರತಿಗಳನ್ನು ಮಾಹಿತಿಗಾಗಿ:

1. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್(ಎ), ಬೆಂಗಳೂರು ಗ್ರಾಮೀಣ ಶ್ರೇಷ್ಠ ವಲಯ, ನೃಪತುಂಗ ರಸ್ತೆ, ಕವಿಪ್ರನಿ, ಬೆಂಗಳೂರು.
2. ಉಪ ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು (ಸಿಬ್ಬಂದಿ), ನಿಗಮ ಕಾರ್ಯಾಲಯ, ಕವಿಪ್ರನಿ, ಕಾವೇರಿ ಭವನ, ಬೆಂಗಳೂರು.
3. ಲೆಕ್ಕಾಧಿಕಾರಿ, ಟವರ್ ಮತ್ತು ಎಸ್ ಎಸ್ ವಿಭಾಗ, ಕವಿಪ್ರನಿ, ನೆಲಸುಂಗು ರವರ ಮಾಹಿತಿಗಾಗಿ ರವಾನಿಸಿದ ಹಾಗೂ
ನಿಗಮದ, ದಿನಾಂಕ: 29.01.2002 ರ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಕವಿಪ್ರನಿ/ಎ21/ 5761/2001-02 ರಲ್ಲಿ
ತಿಳಿಸಿರುವಂತೆ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ಸಂಬಂಧಿಸಿದ ಅಧಿಕಾರಿಯ ಸೇವಾ ಪುಸ್ತಕದಲ್ಲಿ ಇಂಪುಂಚೆ ತಿಳಿಸಲಾಗಿದೆ.
4. ವ್ಯವಸ್ಥಾಪಕರು (ಸಿಬ್ಬಂದಿ-1), ನಿಗಮ ಕಾರ್ಯಾಲಯ, ಕವಿಪ್ರನಿ, ಕಾವೇರಿ ಭವನ, ಬೆಂಗಳೂರು.

This document is referred to as

Annexure in the

affidavit Smt./Sri.  64-1

Signature

19/12/12

4/2/13

1449045888

25

ANNEXURE-D

manjunath
7411632554

KARNATAKA LOKAYUKTA

NO: LOK/INQ/14-A/297/2011/ARE-3

M.S. Building,
Dr. Ambedkar Veedhi,
Bangalore, Dated: 01/09/2012

ARTICLES OF CHARGE

Sub: Departmental enquiry against
Sri H.S.Manjunath, Assistant
Engineer (Elcl.), E-5 Sub-Division,
BESCOM, Lingarajanapuram, Bangalore
(Presently working at 220 KV Station,
KPTCL, Hosakote) - reg.,

Ref: 1) Order No. ಕವಿಪ್ರಸನ್ನ ಬಿ21 17314 2010-11,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 17/09/2011.

2) Nomination Order No: LOK/INQ/14-A/
297/2011 Dated: 24/09/2011 of Hon'ble
Upalokayukta-1, Bangalore.

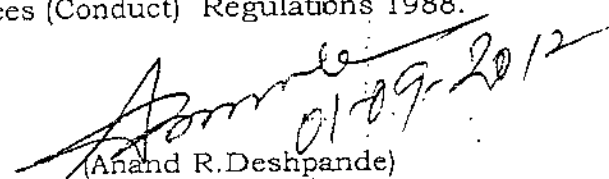
Whereas by virtue of the Order No. ಕವಿಪ್ರಸನ್ನ ಬಿ21 17314 2010-11, ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 17/09/2011, the Disciplinary Authority i.e., the Director (Admn., & H.R), KPTCL, Bangalore having ordered for holding departmental enquiry against you Sri. H.S.Manjunath, Assistant Engineer (Elcl.), E-5 Sub-Division, BESCOM, Lingarajanapuram, Bangalore (Presently working at 220 KV Station, KPTCL, Hosakote) (hereinafter referred to as Delinquent Government Official, in Short DGO) has entrusted the matter to Hon'ble Upalokayukta for holding inquiry and where as Hon'ble Upalokayukta-1 vide his order in No. LOK/INQ/14-A/297/2011, Bangalore Dated: 24/09/2011, has nominated Additional Registrar of Enquiries-3, Karnataka Lokayukta, Bangalore as Inquiry Officer for framing charge and conduct Inquiry against you. Therefore, I Anand R Deshpande, Additional Registrar of Enquiries - 3, Karnataka Lokayukta, Bangalore do here by charge you as follows:

Anand R Deshpande
01-09-2012

26 ANNEXURE-I

CHARGE :

That you, Sri. H.S.Manjunath, (here in after referred to as Delinquent Government Official, in short DGO), while working as the Assistant Engineer (Elcl.), E-5 Sub-Division, BESCOM, Lingarajanapuram, Bangalore demanded and accepted a bribe of ₹ 10,000/- on 25/05/2010 through Miss.T.Maheshwari, office Assistant, Ovarseer, O/o Assistant Executive Engineer, O&M Sub-Dn. E-5 Sub-Dn. BESCOM Bangalore and gangman Srinivas from complainant Sri. K.M.Nagaraju S/o Masaiah of M/s Nandan Electricals R/o Hennur, Bangalore-43 for supplying the electricity (power) to a newly constructed building named as Lalithraj residency situated on Kacchalanahally-Kammanhalli Main road, Bangalore that is for doing an official act, and thereby you failed to maintain absolute integrity and devotion to duty and committed an act which is unbecoming of a Board Employee and thus you are guilty of misconduct under Rule 3 (1) of Karnataka Electricity Board Employees (Conduct) Regulations 1988.


(Anand R. Deshpande)
Additional Registrar (Enquiries-3),
Karnataka Lokayukta,
Bangalore.

27

ANNEXURE-II

STATEMENT OF IMPUTATION OF MISCONDUCT:

The complainant Sri. K.M.Nagaraju S/o Masaiiah of M/s Nandan Electricals R/o Hennur, Bangalore-43 filed a complaint on 25/05/2010 before the Police Inspector, Karnataka Lokayukta, City Division, Bangalore alleging that he has been doing the electrical contact work since 5 years under the name as Nandan Electricals and that he had obtained the electrical contract work of wiring and getting supplied the electricity (power) to Lalithraj residency situated on Kacchanalli-Kammanahalli Main road, Bangalore and that he had filed an application along with necessary documents and he had deposited the prescribed amount with the BESCOM office on 06/04/2010 and that in connection with the work of supply of electricity to the said building, he had met Sri. H.S.Manjunath, Assistant Engineer (Elcl.), E-5 Sub-Division, BESCOM, Lingarajanapuram, Bangalore, (here in after referred to as Delinquent Government Servant, in short DGO) 5 or 6 times but the purpose of all those his visits were in vain and therefore he met the DGO on 22/05/2010 and enquired him about the supply of power to the said residency and at that time the DGO asked him to bring the transformer or to pay him the expenses and that when he asked the DGO about the expensed, the DGO demanded a bribe of Rs. 10000/- and that he recorded the conversation between himself and the DGO in his mobile and the same is got re-recorded in a CD.

As the complainant was not willing to pay any bribe to the DGO, he went to Police Inspector, Karnataka Lokayukta City Division, Bangalore on 25/05/2010 and lodged a complaint along with CD. On the basis of the same a case was registered in City Division, Bangalore

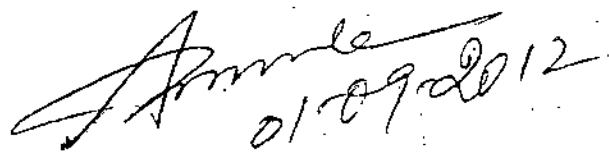
Annex
01-09-2012

28

Lokayukta Police Station Cr. No. 19/2010 for offences punishable under sections 7, 13(1) (d) r/w section 13(2) of the P.C. Act, 1988 and FIR was submitted to the concerned learned special judge.

After registering the case, investigating officer observed all the pre trap formalities and entrustment mahazar was conducted and you, the DGO was trapped on 25/05/2010 by the Investigating Officer after your demanding and accepting the bribe amount of ₹10,000/- through Miss.T.Maheshwari, office Assistant, Ovarseer, O/o Assistant Executive Engineer, O&M Sub-Dn. E-5 Sub-Dn. BESCOM Bangalore and gangman Srinivas from the complainant in the presence of shadow witness and the said bribe amount which you had received from the complainant was seized from Sri Ajamatullah.Khan the cashier with whom the tainted currency notes were exchanged by Miss.T.Maheshwari under the seizure mahazar after following the required post trap formalities. During the investigation the I.O has recorded the statements of Panchas and other witnesses and further statement of the complainant. The I.O during the investigation has sent the seized articles to the chemical examiner and obtained the report from him and he has given the result as positive.

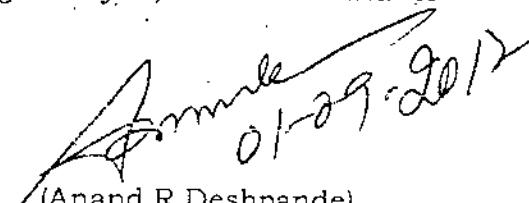
The materials collected by the I.O. during the investigation prima facie disclose that you, the DGO, demanded and accepted bribe of ₹ 10,000/- through Miss.T.Maheshwari, office Assistant, Ovarseer, O/o Assistant Executive Engineer, O&M Sub-Dn. E-5 Sub-Dn. BESCOM Bangalore and gangman Srinivas from the complainant on 25/05/2010 for doing an official act i.e., for supplying the electricity (power) to a newly constructed building named as Lalithraj residency situated on Kacchalanahally-Kammanhalli Main road, Bangalore. Thus you, the DGO, have failed to maintain absolute integrity and devotion to duty


01.09.2012

29

and this act on your part is unbecoming of a Government servant. Hence, you have committed an act which amounted to misconduct as stated under Rule 3 (1) Karnataka Electricity Board Employees (Conduct) Regulations 1988.

In this connection an observation note was sent to you, the DGO and you have submitted your reply which, after due consideration, was found not acceptable. Therefore, a recommendation was made to the Competent Authority under Section 12(3) of the Karnataka Lokayukta, Act 1984, to initiate Departmental Proceedings against you, the DGO. The Government after considering the recommendation made in the report, entrusted the matter to the Hon'ble Upalokayukta to conduct departmental/disciplinary proceedings against you, the DGO and to submit report. Hence the charge


(Anand R. Deshpande)
Additional Registrar Enquiries-3,
Karnataka Lokayukta,
Bangalore.

1. Mahakudra - DCC

2.

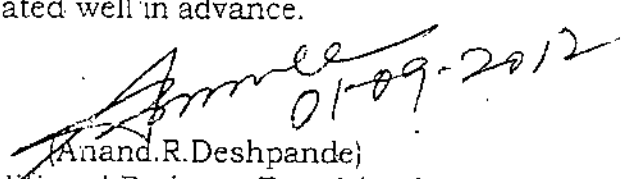
3.

30
ANNEXURE-III

LIST OF WITNESSES IN SUPPORT OF THE ARTICLES OF CHARGE:

1. Sri. K.M.Nagaraju S/o Masaiah of M/s Nandan Electricals R/o Hennur, Bangalore-43
2. Sri R.V.Kulkarni S/o Venkatesh M. Kulkarni, Superintendent, Handicapped & Senior Citizens Welfare Department, V.V.Tower, Podium Block, Bangalore.
3. Sri Nanjappa S/o Honnaiah, SDA, Handicapped & Senior Citizens Welfare Department, V.V.Tower, Podium Block, Bangalore
4. Sri Krishnappa, Police Inspector, Karnataka Lokayukta, City Division, Bangalore.

During the course of enquiry, examination of any other witnesses, if felt necessary the DGO will be intimated well in advance.

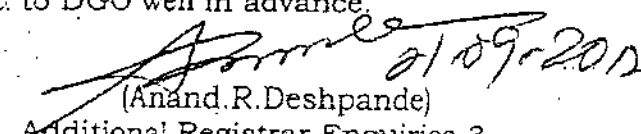

(Anand.R.Deshpande)
Additional Registrar Enquiries-3,
Karnataka Lokayukta,
Bangalore

ANNEXURE-IV

LIST OF DOCUMENTS INSUPPORT OF THE ARTICLES OF CHARGE:

1. The documents furnished by IO during the course of investigation.

During the course of enquiry, reliance to any other documents, if felt necessary, the same will be intimated to DGO well in advance.


(Anand.R.Deshpande)
Additional Registrar Enquiries-3,
Karnataka Lokayukta,
Bangalore.

ANNEXURE-V

1. The DGO is hereby directed to submit his written statement of Defence on the hearing date without fail. The DGO to note that failure on his part to submit his written statement of defence on the hearing date necessarily implies that he has nothing to say in the matter.
2. The DGO is at liberty to produce the documentary evidence, if any, in his possession along with written statement of defence.
3. The DGO is directed to furnish the list of witnesses whom he proposes to examine in support of his defence. The DGO may set out the details of the documents, which are required to substantiate his defence. S/11/12
4. The DGO is directed to appear before this authority on 05/10/2012 at 10.30 A.M. without fail.
5. The DGO is permitted to look into the records and documents of the departmental enquiry and to make note of, before submission of written statement.
6. The DGO shall note that on his failure to appear on the said date or on subsequent date adjourned by this Authority, the enquiry will be proceeded and determined ex parte.

Anand R. Deshpande
 (Anand. R. Deshpande)
 Additional Registrar Enquiries-3,
 Karnataka Lokayukta, Bangalore.

To:

Sri H.S. Manjunath,
 Assistant Engineer (Elcl.),
 E-5 Sub-Division,
 BESCO,
 Lingarajanapuram,
 Bangalore
 (Presently working at 220 KV Station,
 KPTCL, Hosakote)

Documents is referred to at
 venue D in the
 affidavit submitted by Sri Anand R. Deshpande Hg
 Oath Commissioner

ORDER SHEET

IN THE COURT OF THE XXIII ADDL CITY CIVIL SESSIONS
JUDGE AND SPECIAL JUDGE AT BANGALORE CITY

Spl.C.C.No.

986/2010

Complainant

State by Karnataka Lokayuktha,
City Division, Bangalore.

V/s.

Accused

Sri. H.S. Manjunath,
Assistant Engineer, Lingarajapuram,
BESCOM O & M, E-5, Sub Division,
Bangalore.

Sl. No.	Date of order or proceeding	Order or proceeding with signature of Presiding Officer	Signature of parties or pleaders when necessary
------------	-----------------------------------	--	---

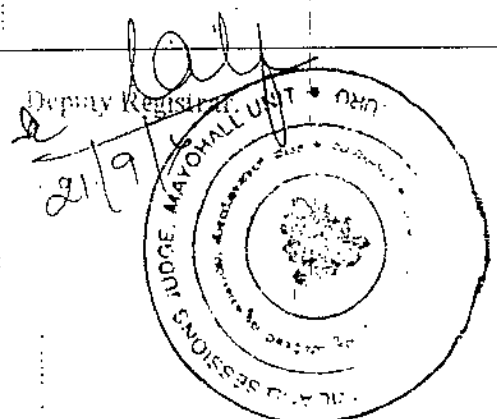
The charge sheet is submitted by the Inspector of Police, Karnataka Lokayuktha, City Division, Bangalore, on 27-08-2010.

The offences alleged against the above named accused are punishable Under Section 7, 13 (1) (d) rw 13 (2) of P.C. Act, 1988.

Prays that for the reasons stated therein this Hon'ble Court may be pleased to prosecute the above named accused for the aforesaid offences.

1. F.I.R. Complaint, Crime papers in Cr. No. 19/2010 are enclosed herewith.
2. Connected documents are produced.
3. Statements of witnesses are produced.
4. Accused copy is furnished.
5. Connected properties are not produced.
6. Accused is on Bail.

Place it before the XXIII Addl. Sessions Judge and Special Judge for kind orders.



33

SPL. C.C. No. 286/2010

21/09/2010

Heard SPP.

Perused the records.

There is sufficient material to proceed against the accused. Hence Cognizance taken against the accused for the offences punishable U/S. 7, 13 (1) (d) r/w 13 (2) of PC Act 1988.

Register the case and Call on 23/10/2010.

~~21/10/2010~~ 21/10/2010

XXIII Addl. Sessions Judge,
Bangalore.

23-10-2010

St by — Spt. PP.

Ad by —

To furnish CFS to AGO.

[Signature]

P.O is on leave. Case called out. Accused pr. Case is adjourned to 25-11-2010.

25-10-10

St by — Spt. PP.

Ad by —

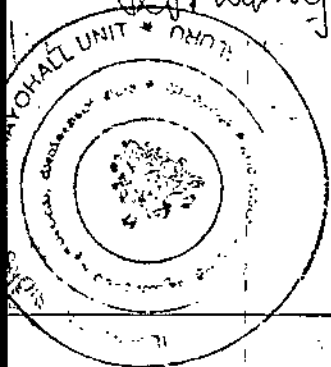
To furnish CFS to AGO.

[Signature]

Addl. City Civil and
Sessions Judge
Bangalore

P.O is on leave. Case called out. Accused present. Case is adjourned to 6-12-10.

Addl. City Civil and
Sessions Judge
Bangalore



Splice 2886/2000

6-12-00

8463-84-80

Adley

90 Service c/o to ASD

Splice 2886/2000

Splice 2886/2000

all

21-12-00

8463-84-80

Adley

90 Service c/o to ASD

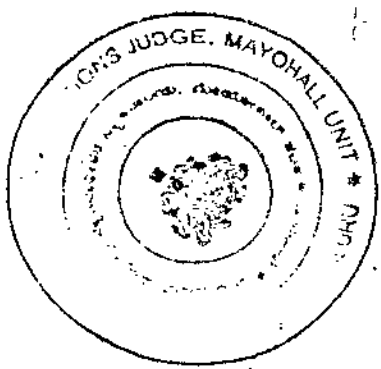
Splice 2886/2000

Splice 2886/2000

Accused present

Counsel for the accused Sri.Kemparaju filed vakalat and bail application under section 139 of Cr.P.C for release of accused and also furnished surety of 1)Sd.Aruna S/o Lingiah, aged about 29 Years, R/at No.104, 3rd Main Road, Behind KTC, Hegganahalli, Bangalore North, Bangalore and 2)Sri.Rajappa, I.D. S/o Benappa, aged about 50 Years, R/at Hugasaghatta village, Yarikere Taluk, Chikmagalur District for accused and surety Sd.Aruna has produced his surety certificate and xerox copy of identity card and surety Rajappa has produced the xerox copy of the sale deed, xerox copy of the RTC extract and identity card.

The above sureties are present before the court and sworn to an affidavit and willing to stand as surety for accused and to abide by the conditions of the bond. Satisfied about their solvency. Sureties are accepted.



35
--A-- Sfr 226/10

Learned Public Prosecutor has orally submitted objections.

Considering the nature of the offence committed by the accused, the application is allowed subject to executing PB and SB for Rs. 25,000/- with following conditions.

Accused is directed to appear before the court on all hearing dates. Accused should not tamper with the prosecution witnesses.

Office is directed to take bonds from accused and his sureties.

Furnish copy of the charge sheet paper to the accused.

Call on 19.01.2011

Accused and Two sureties
Brought to bond before

Sfr 226/10
SPECIAL JUDGE, BANGALORE URBAN
BANGALORE.

12/10
Asst. Magistrate
City Div. Court
Bangalore

19-1-2011
SB by — Sfr 226/10

Ad by — temporary
for HSC

Admitted
Magistrate Judge
Civ 226/10

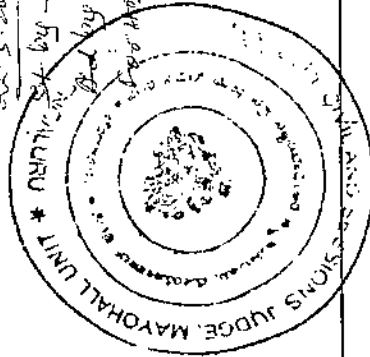
19.2.2011
SB by — Sfr 226/10

Ad by — temporary

HSC

Admitted
Civ 226/10
Civ

30-3-2011
Ad by — Sfr 226/10
Ad by — temporary
Civ 226/10



Admitted
Civ 226/10
Civ

Solu 286/1200

20-5-2011

St by 281/08

Ad by — Karpas

For H8c

Admnd 21-5-

2005 29.6.11

2015-

~~29-6-2011~~

St by 281/08

Ad by — Karpas

For H8c

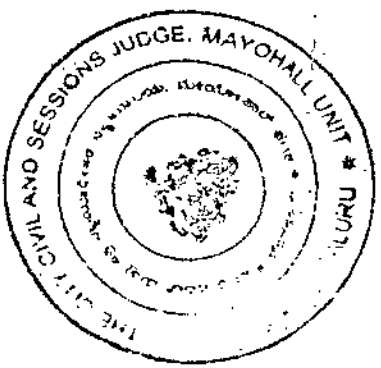
Admnd Mark

heard

dr order

by 30/11

29/11



37

30-6-2011

By — Spl PP

Ad by — Karpurey

For order on charge

By — 286/10

And about

later present

He and

Call on 17

By 30/6

01-07-2011

By — Spl PP

Ad by — Karpurey

For order on charge

Accused Present.

Learned Counsel for accused present.

Learned Spl.P.P present.

Heard.

Perused the prosecution papers including Complaint 25.05.2010, sanction order dtd.16.08.2010, mahazar, PF, copy of the pre-trap mahazar and other related documents.

The learned counsel submits that the charge may be framed.

There are grounds to frame charge against the accused for the offence punishable u/s.7, 13(1) (d) r/w 13(2) of the PC Act. Hence the case is posted for framing charge.

Call on 01/07/2011 for

1/8
2

[Handwritten signature]

[Handwritten signature]



38

add 886/10

1-3-2012

Stby - 886/10

Atby - Karpov

CDT

Find M

can pay

can M

13/14

by 1/3

13/11/12

Stby - 886/10

Atby - Karpov

For FOT

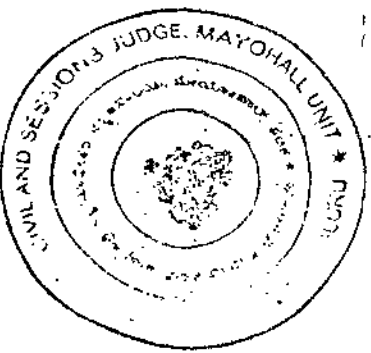
Find M

can pay

(all on

20/12

M 13/14



39

Spdx 286/10

16-11-2011

87 km - Spdx

Add km - Receipt

For 500

Hand meet

his card ab

Call 27

4/11/12

M J

16/11

87 km - Spdx

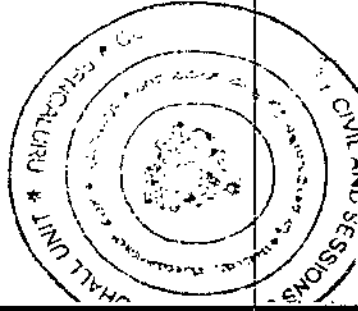
Add km - Receipt

For

Hand meet

Call 27

Call 27 1/2



1/2

40

28/10/10

-)-

1-8-2011

St by - SP 100

Ad by - Karpaleg

For charge

Accused present.

Charge framed. Read over and explained in the language known to the him.

He pleads not guilty and claims to be tried for the offence punishable u/s.7, 13(1)-(d) r/w 13(2) of PC Act.

Call on for FDT by 14.10.2011.

XXIII ACC and Spl. Judge.,
Bangalore City.

14-10-2011

St by - SP 100

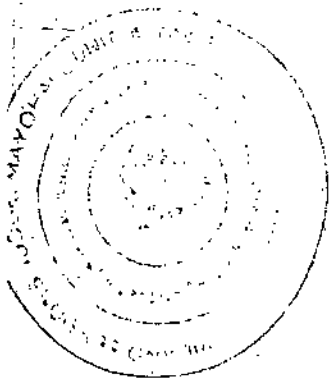
Ad by - Karpaleg

FDT

Accused present
charge not read
(computer problem)

call on 16/11

For FDT 14/10



41

9/28/10

1-3-2012

Stacy - Splice

Adley - Kuperberg

ADS

13/11/12

27

13/11/12

Stacy - Splice

Adley - Kuperberg

For FDI

Adley

Adley

Adley

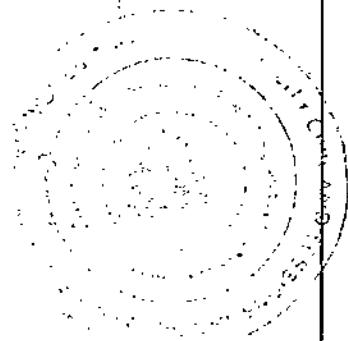
13/11

1/3

Adley went
Adley
Adley

26/5

Adley



26/1/12

St John - SOLIDP

Adrian - Kew Gardens

For FDT

42

SOLIC 286/10

Accord or

can pay

can pay 13th

DT-29/1/2012

Received 1st of

Makshani, Amnabul Khan
and Soninas from 1st MCHM
Please Put by this file.

11/1/12

St boy - SPLDPR

Ad boy - Kew Gardens

FDT

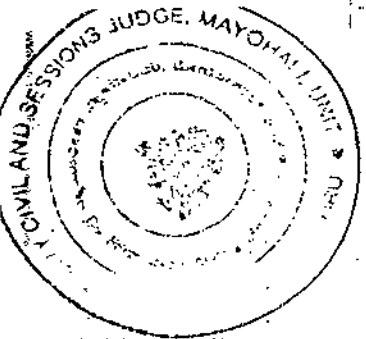
Accord

can pay

can pay

15/10

14/12



UB

SPICE 286/10

5/9/12

Stay - SPLPP

Ad by - Kempuray

FDT

Ad by MR

Ad by PRT

coll AD

10/1/10

✓ 15/2

19-10-12

Stay - SPLPP

Ad by - Kempuray

FDT

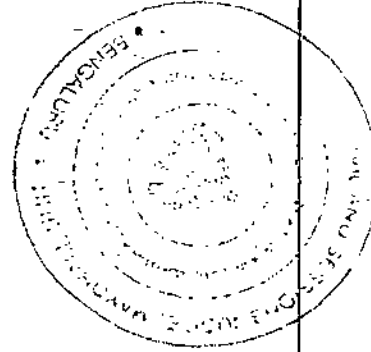
Ad by MR

Traced & rec'd

2d
20/10

W 55 to 100 /

by 9-1-13



✓ 19/11

46

SPICE 286/10

9/1/2013

St by - SP

Ad by - Kumpung

SS to Cu,

unServed

Acad Mr

Lnst abt

Re - em es

by 25/12

ad
10/11

✓ 9/11

25/2/2013

St by - STP

Ad by - Kumpung

SS to Cu,

- 10/10/2013

Acad Mr

1 Mr

Lnst

and the sound

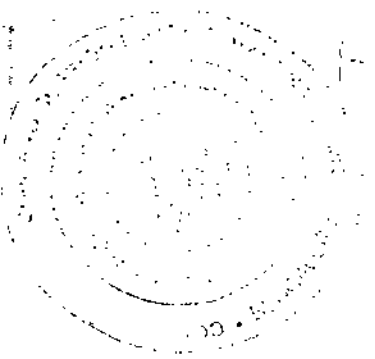
PT

can on 23/1

Lnst 18/10

can on 23

✓ 25/12



46

Spl. 286/10

18-6-13

Stby — SPP

Adby — K-J

CW-1 B/o

SS to CW-15
informed &
sent requisition

16/7

Accused present.
CW1 present
CW15 absent. Sent requisition.
He shall be present by next date.
Spl PP prays time.
CW1 bound over.
Call on 16.07.2013

XXIII ACC and Spl. Judge.,
Bangalore City.

16/7/2013

Stby — SPP

Adby — K-J

CW1 — B/o

Appearance of CW15.

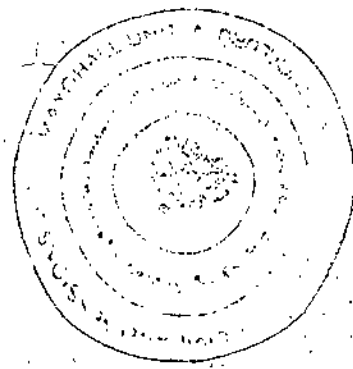
Accused present.
CW1 absent.
CW15 present.
Call again.

XXIII ACC and Spl. Judge.,
Bangalore City.

Called again.
Accused present.
CW15 examined as PW1.
Ex.P1 and Ex.P1(a) marked.
CW1 absent.
Issue NBW finally as a last
chance.
Call on 03.09.2013.

Flid
17-7-2013

XXIII ACC and Spl. Judge.,
Bangalore City.



Splce 286/10

47

3-9-2013

St by — SPP

Ad by — KT

NBW to CW1 (Dinally)

Unpermitted
N.B.W. to CW1 (Dinally)
N.B.W. to CW1 (Dinally)

Ild
4-9-2013

5-10-2013

St by — SPP

Ad by — KT

NBW to CW1
— Unpermitted

27/11 27/11/2013

St by — SPP

Ad by — KT

CW1 — S/o

2ld
28-11-13

Accused present.
CW1 absent.
Perused the report.
Re-issue NBW finally on CW1.
Call on 05.10.2013.

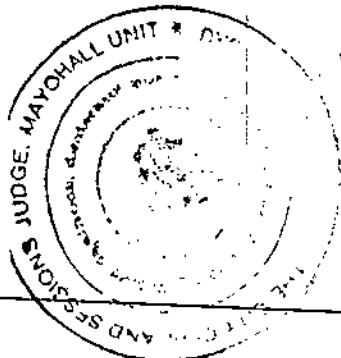
XXIII ACC and Spl. Judge.,
Bangalore City.

Accused present.
CW1 present.
Spl. PP prays time.
CW1 bound over.
Call on 27.11.2013.

XXIII ACC and Spl. Judge.,
Bangalore City.

Accused present.
CW1 absent.
Issue NBW to CW1.
Call on 08.10.2014.

XXIII ACC and Spl. Judge.,
Bangalore City.



48

Splie 286/10

8/1/14

St by - spp

Ad by - KJ

NBW to CW1 -
repainted

Accused present.
CW1 present.
Call again.

XXIII ACC and Spl. Judge.,
Bangalore City.

Called again.

Accused present.
CW1 present.
Spl PP prays time.
CW1 bound over.
Call on 15.02.2014.

XXIII ACC and Spl. Judge.,
Bangalore City.

15/2/14

St by - spp

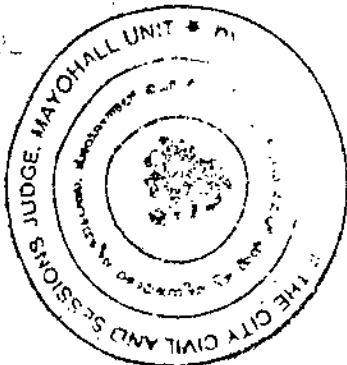
Ad by - KJ

CW1 - B/O

sd
H/L

Accused present.
CW1 absent,
Issue NBW to CW1,
Call on 25-03-2014

XXIII ACC & Spl. Judge,
Bangalore City



25/3/2014

st by - Spp

Ad by - KT

NBW to CW1

unreported

Splce 286/2010

Accused present

CW1 present

Call again.

XXIII ACC and Spl. Judge,
Bangalore City.

Called again.

Accused present

CW1 present

Spl PP prays time.

CW1 bound over.

Call on 12.05.2014.

XXIII ACC and Spl. Judge,
Bangalore City.

12/5/2014

st by - SPP

Ad by - KT

CW1 → B/o

Accused present

CW1 absent

Issue NBW to CW1.

Call on 28.07.2014.

XXIII ACC and Spl. Judge,
Bangalore City.

2d
13th

28/7/2014

st by - Spp

Ad by - KT

NBW to CW1

unreported

3d
30/7/14

Accused is absent
CW1 is present and examined in
chief as PW2 in part

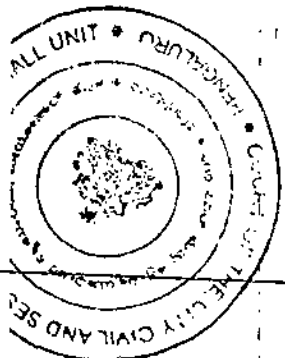
Exs. P2 to P5, Exs. P3(a), P4(a) and
P5(a) are marked through him.

Issue summons to CWs 2, 3 and 4
by 14.10.2014.

For further examination in chief of
PW2 by 14.10.2014.

For further trial by 14.10.2014.

XXIII ACC and Spl. Judge,
Bangalore City.



50

Splu 286/2010

14.10.2014

St by - 800

rel - 15

PW2 Blo
C.D. Srinivasiah

ss to CW-2 - unserved

u CW-3

u CW-4

complaint filed on 10.10.2014

Suggestion 154

Accused is present

PW2, CW2 to 4 are present.

Relying upon the decision in State of Tamilnadu v/s. M.M. Rajendran reported in (1998) 9 SCC page 268 Sri.K.Janardhan, the advocate for the accused submits that in view of the evidence in cross examination of PW1 that the matter was not presented before the Board the present case cannot be continued.

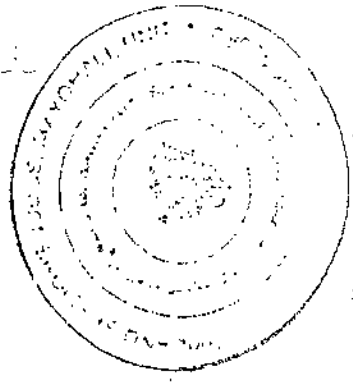
In the decision relied upon by him law is laid down by our Hon'ble Supreme Court that it will be open to the prosecution to proceed afresh against the accused after obtaining necessary sanction.

Though during the cross examination PW1 denies the sanction he is not competent authority to issue sanction the aspect needs to be appreciated after hearing the learned Spl.PP. Sri.D.Ramesh Babu submits that he would ascertain whether PW1 is legally empowered or not to accord sanction. Accordingly he submits that PW2, CWs 2 to 4 who are present today may be directed to appear after summons.

Spl.PP to produce authenticated documents to show that PW1 is competent to accord sanction on the next date of hearing.

In case the Spl.PP cannot find any material to show that PW1 is competent to accord sanction, then, he is at liberty to intimate the Investigating Officer or Additional Director General of Police, Karnataka Lokayuktha, Bangalore to approach the competent authority to consider the matter of sanction.

Additional



5)

PW2, CWs 2 to 4 to appear after summons.

Spl. PP to have his say on the matter by 29.12.2014.

14.10.2014

XXIII ACC and Spl. Judge,
Bangalore City.

T. MAHESHWARI

T. Maheshwari

[Signature]

Received
K.H. B. B.

K. M. A.

29/12/14

St by - Spp

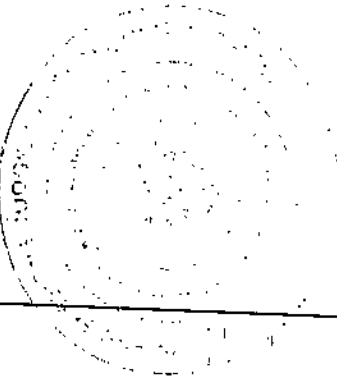
Ad by - KJ - present

Ex-done / SPP to say
produce documents

29/12/14

P.O. is on leave.
Case called out and case
is adjourned to 19/01/2015.

[Signature]
I/c XXIII ACC & Spl. Judge,
Bangalore City



59

Spl. 286/2010

19-1-2015

Stby — SPP

Adby — RS

SPP to say / evidence

Accused is present

Sri. D. Ramesh Babu the learned Spl.PP is on OOD. To have the say of Sri. D. Ramesh Babu the learned Spl.PP by 02.02.2015

19.1.15

XXIII ACC and Spl. Judge.,
Bengaluru City.

02/02/2015

Stby — SPP

Adby — KT

SPP to say — Evidence

24/2/15

Accused is absent

His counsel is absent.

Sri. D. Ramesh Babu the learned Spl.PP submits that he would contact the Investigating Officer and submit touching sanction.

Since accused is absent, ~~Issue~~ NBW against the accused by 06.03.2015

Spl.PP to submit regarding the question of sanction by 06.03.2015

2.2.15

XXIII ACC and Spl. Judge.,
Bengaluru City.

6-3-2015

Stby — SPP

Ad by — RS

Ev. / to say SPP / sanction

NBW to accused
— unpermitted

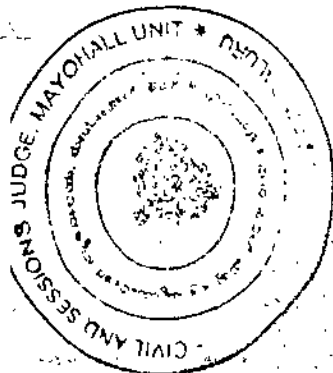
Accused is present

NBW is not executed.

Sri. D. Ramesh Babu the learned Spl.PP prays for time. To hear him regarding question of sanction by 08.05.2015

6.3.15

XXIII ACC and Spl. Judge.,
Bengaluru City.



53

Spl. 286/10

8.5.2015

Station — SPP
Ad by — SPP

Accused is present. Sri.D.Ramesh Babu Spl.PP prays for time. To hear him regarding sanction by 01.07.2015.

To hear / sanction
[Signature]
(V.G. BOPAIAH)

(V.G. BOPAIAH)
XXIII ACC and Spl. Judge.,
Bangalore City.

01.07.2015

Station — SPP

Ad by — KJ

Accused is present. Sri. D.Ramesh Babu, Spl.PP prays for time. To hear regarding sanction by 25-08-2015

To hear / sanction

(V.G. BOPAIAH)
XXIII Addl. CC & SJ, Spl. Judge.,
Bengaluru City.

25-8-2015

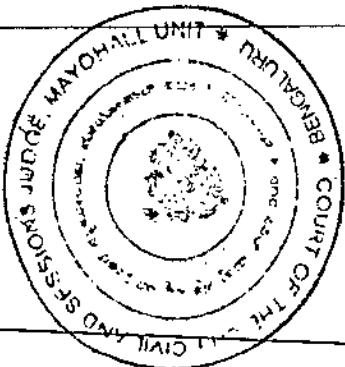
Station — SPP

Ad by — KJ

To hear / sanction

Accused is present. Sri. D.Ramesh Babu, Spl.PP prays for time. To hear Sri. D.Ramesh Babu, Spl.PP regarding sanction by 29.09.2015

(V.G. BOPAIAH)
XXIII Addl. CC & SJ, Spl. Judge.,
Bengaluru City.



54

Spl. 286/19

29.9.15

Stn — SPP

Adm — RS

HBE/Sanet

18.11.2015

Accused is present
Time sought by Sri. D.Ramesh Babu, Spl. PP. To hear him regarding charge by 18.11.2015

29.9.15
(V.G. BOPAI AH)

XXIII Addl. CC & SJ, Spl. Judge.,
Bengaluru City.

18.11.2015

Stn — SPP

Accused is present. Time sought by Sri. D.Ramesh Babu Spl. PP to submit regarding sanction. Accordingly, to hear regarding charge by 28.12.2015.

HBE/HBE

18.11.2015

18.11.15
(V.G. BOPAI AH)
XXIII ACC and Spl. Judge.,
Bangalore City.

28.12.15

Stn — SPP

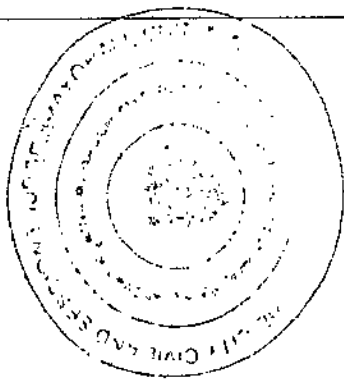
Adm — RS

P.O. is on leave.
Case is called out and adjourned to 04/02/2016

HBE

28/12/15

28/12/15
i/c XXIII ACC and Spl. Judge.,
Bangalore City.



Splu 286/10

6-2-2016

SS

By SPP in view of the order passed

Adm - 15

By HBC in view of the order passed

HBC

09.03.2016

Accused is present
Time sought by Sri. D.Ramesh Babu, Spl PP to submit regarding the validity of sanction. To hear him regarding the same by 05.04.2016

14.2.16
[V.G.BOPAIAH]
XXIII ACC and Spl. Judge.,
Bangalore City.

(KAYAN HANUMANA)
09.03.2016
By SPP in view of the order passed

As per NOTIFICATION RSB No. 87/2016 of the Hon'ble Registrar General of Hon'ble High Court of Karnataka, Bengaluru this case is transferred from the Court of XXIII Addl. City Civil and Sessions Judge (CCH-24) to LXXVII Addl. City Civil and Sessions Judge, Bengaluru (CCH-78) Bengaluru.

Send 150 marks

8-3-16

By SPP in view of the order passed
Bengaluru
Bengaluru

05-4-16

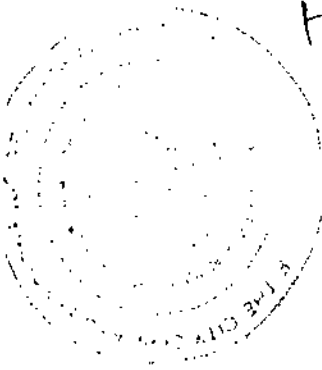
SPP - SPP

Ad - KT

HBC

Received the case file from 23rd Addl. City Civil and Sessions Court and Special Court (CCH-24), Bengaluru, to this newly established court.

By SPP



56

Ple 28/16

Accused present.

Heard the learned counsel for the accused regarding the validity of the sanction.

Learned Public Prosecutor pray time.

For hearing by 23-04-2016.

[Signature]

(MANJUNATH NAYAK)

77th Addl. City Civil & Sessions

Judge and Special Judge,

BENGALURU

(CCH-78)

23-4-16

Stdy-SPP

Adby-KJ

DBHJ

Accused present.

Both the parties prayed time to submit regarding the validity of sanction.

For hearing regarding validity of sanction by 03-05-2016.

[Signature]

(MANJUNATH NAYAK)

77th Addl. City Civil & Sessions

Judge and Special Judge,

BENGALURU

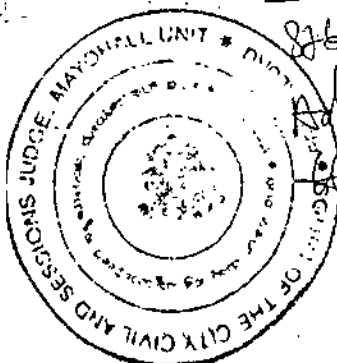
(CCH-78)

03-5-16

Stdy-SPP

Adby-KJ

reg validity of sanction



Sp/ce-2861

51

Accused present.

Heard the learned counsel for the accused regarding the validity of sanction.

Learned counsel for the accused produced memo of citations.

Learned Public Prosecutor prayed time.

For arguments of the prosecutor regarding the validity of the sanction by 04-06-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

04-6-16

Siby SPP

Aelby KT

Right on validity of
Sanction

Accused present.

Public Prosecutor not appeared before this court.

For arguments of the Public Prosecutor regarding the validity of sanction by 21-06-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

Siby SPP

Aelby KT

Right by P/P



S/No 286/10

Accused present.

Accused submitted that since his counsel is expired he will engage some other counsel by next date of hearing.

Learned Public Prosecutor prayed time to submit the argument regarding the validity of sanction.

To hear regarding the validity of sanction by 02-07-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

02-7-16

S/No SPP

Adl. K.S.

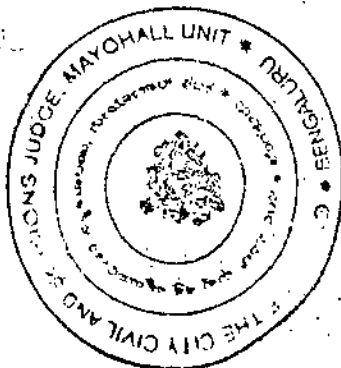
Rg. Validity

Accused present.

Learned Public Prosecutor prayed time.

For hear regarding the validity of sanction by 26-07-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)



Splee 28/10

59

26-7-16

Stky-SPP

Adky-KJ

Hg/validity of Sanction time.

Accused present.

Learned Public Prosecutor prayed

For arguments of the learned Public Prosecutor regarding the validity of sanction by 08-08-2016.

[Signature]

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

08-8-16

Stky-SPP

Adky-KJ

Hg/ regarding validity

03/9

Accused is present
for the purpose
of scanned the
regarding validity
of sanction

[Signature]
3/9

03-9-16

Stky-SPP

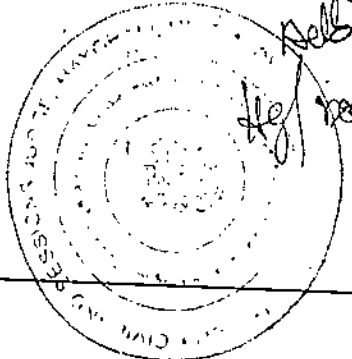
Adky-KJ

Hg/ regarding validity

Accused present.

Submitted that since his counsel is expired, he will engage some other counsel.

Time granted as last chance.



60

Splice 286/10

For hearing regarding the validity of
sanction by 15-09-2016.


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

15-9-16

Sly SPP

Adby KI

Hg/validity of sanction.

Accused present.

Sri. Raghunath advocate filed
vakalath for the accused.

Learned Public Prosecutor
prayed time.

To hear regarding validity of
sanction by 03-10-2016.


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

03-10-16

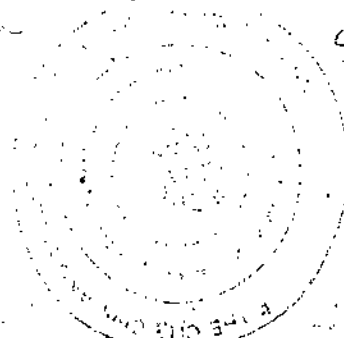
Sly SPP

Adby KSR

TO Hg/validity of
sanction

Accused present.

Learned counsel for the accused
filed written arguments along with the
citations.





Splcc-286/1

61

Learned Public Prosecutor prayed time.

For arguments of Learned Public Prosecutor regarding the validity of sanction by 21-10-2016.



(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

21-10-16

Saty-Spp

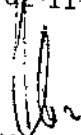
Relby-~~KOR~~

As on validity by PW

Accused present.

Heard the Learned Public Prosecutor regarding the validity of sanction.

For orders by 02-11-2016.



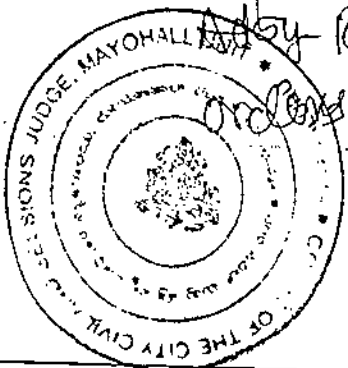
(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

02-11-16

Saty-SOP

Relby R

on PWS



Accused present.

Today this case is posted for orders regarding validity of sanction.



62

SP/11/286/10

To clarify some points I feel further arguments to be heard.

For further arguments regarding validity of sanction by 15-11-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

15-11-16

Stdy-SPP
Adly-R
R/Drgt/Invailidly
of Sanction

Accused present.

Learned counsel for the accused filed a memo with order passed by the Hon'ble High Court of Karnataka in Cr.P no 7157/2016.

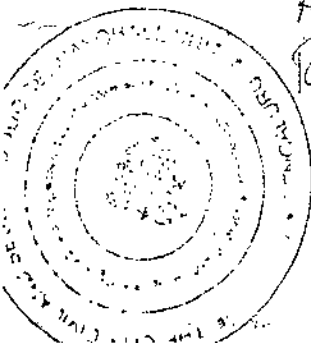
Learned Public Prosecutor prayed time.

For further arguments regarding validity of sanction by 28-11-2016.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

28-11-16

Stdy-SPP
Adly-R
R/Drgt/Invailidly

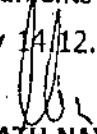


63

Accused present.

Learned P.P. pray time.

For further arguments regarding
validity of sanction by 14/12.2016.


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

14-12-16

Sby-SPP

Adby-R

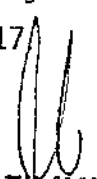
Pr/Hg in validity of sanction

Accused present.

Heard the learned counsel for
the accused regarding validity of
sanction .

Learned Public Prosecutor
prayed time.

For argument of Learned Public
Prosecutor regarding validity of
sanction by 12-01-2017


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

12-01-17

Sby-SPP

Adby-R

Pr/Hg/discharge SA

Accused absent.



Counsel for the accused filed exemption application u/s 317 of Cr.PC.

Perused, satisfied and allowed. Presence of the accused is dispensed for this day.

Learned Public Prosecutor is on leave.

For arguments of Learned Public Prosecutor regarding validity of sanction by 25-01-2017.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

101-101-101-101
101-101-101-101

25-01-17

Stdy-opp

Stdy-R

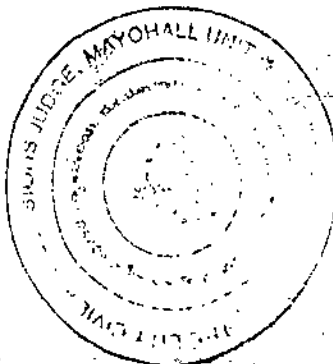
Hg/V Sanction

Accused present.

Learned Public Prosecutor prayed time.

For arguments of Learned Public Prosecutor regarding validity of sanction by 08-02-2017.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)



65

8-2-17

stby - SPP

Ally - R

For Appl ~~for~~

of sanction

Accused present.

Heard the Learned Public Prosecutor regarding the validity of sanction.

Learned counsel for the accused prayed time.

For arguments of learned counsel for the accused regarding validity of sanction by 18-02-2017.



(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

18-2-17

stby - SPP

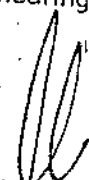
Ally - R

Ag/ validity of
Sanction

Accused present.

Heard the further arguments of both the parties regarding the validity of sanction.

For further hearing by 03-03-2017.



(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

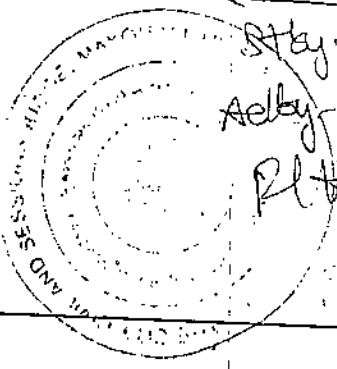
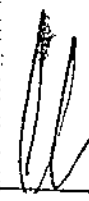
03-3-17

stby - SPP

Ally - R

Plt

Accused present.



66

Spec 286/10

Learned counsel for the accused
prayed time.

To further hear regarding
validity of sanction by 17-03-2017.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

17-3-17

8th JSP

Ady R

Plt Ag on validity of Sanction

Accused present.

Learned counsel for the accused
prayed time.

To further hear regarding
validity of sanction by 13-04-2017.

(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

13-4-17

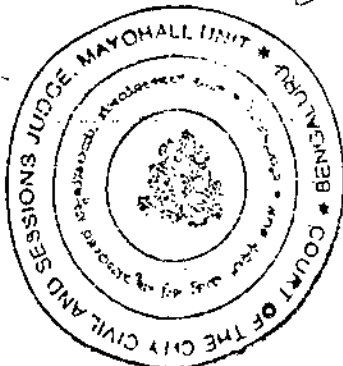
8th JSP

Ady R

Plt Ag on validity of
Sanction

Accused present.

Learned counsel for the accused
prayed time.



67
To hear further regarding validity of
sanction by 05-05-2017


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

05-5-17

Stby - SPP

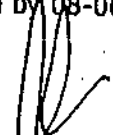
Adby - R

To Hg Validity of
sanction.

Accused present.

Learned Public Prosecutor is on
leave.

For further hearing regarding
validity of sanction by 08-06-2017.


(MANJUNATH NAYAK)
77th Addl. City Civil & Sessions
Judge and Special Judge,
BENGALURU
(CCH-78)

08-6-17

Stby - PP

Adby - R

Pltff on regarding
validity of sanction

Accused present.

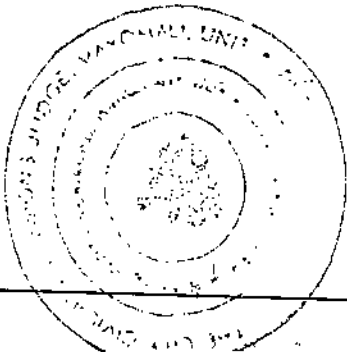
Spl.P.P present.

Counsel for the accused
present.

Advocate prays time.

For hearing by 08-07-2017.


I/c 77th Addl. City Civil & Sessions
Judge and Special Judge,
MAYOHALL, BENGALURU



68

Splice 286/10

08-7-17

Stdy-PP

Adby-R

Hg m regarding
Validity of Sanction

Accused called out present.

At the request of accused
counsel time granted for hearing.

Call on 18-07-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

18-7-17

Stdy-PP

Adby-R

Hg m validity of
Sanction

Accused called out present.

Heard the arguments on
discharge application in part.

For further arguments.

Call on 29-07-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

29-7-17

Stdy-PP

Adby-R

Hg m validity of
Sanction

Accused called out present.

For hearing on discharge
application.

Call on 12-08-2017.

77th A.C.C & S J & Spl Judge,



12-8-17

Stdy-PP

Adby-R

Hg m validity of
Sanction

Accused called out present.

Splice 286/10

29

Public Prosecutor is on leave.

Hence, for hearing on discharge application.

Call on 26-08-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

26-8-17

Stdy-PP

Adby-R

Hg on validity of
Sanction

Accused called out present.

Public Prosecutor is on leave.

Hence, for hearing.

Call on 11-09-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

11-9-17

Stdy-PP

Adby-R

Hg on validity of
Sanction

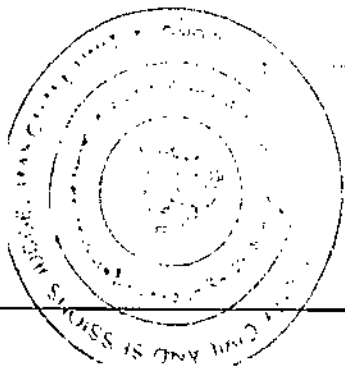
Accused called out present.

Heard the arguments of Public
Prosecutor on the application filed
regarding the sanction order.

Counsel for the accused prays
time to reply to the same, time
granted.

Call on 20-09-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)



20-9-17

70

Spl 286/10

St by PP

Ad by R

Reply Hg on validity
of sanction.

Accused called out present.

At the request of accused
counsel time granted for reply.

Call on 12-10-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

12-10-17

St by - PP

Ad by - R.

Reply Hg on validity
of sanction.

Accused called out present.

Heard the arguments in part.

For further arguments, call on
21-10-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

21-10-17

St by - PP

Ad by - R.

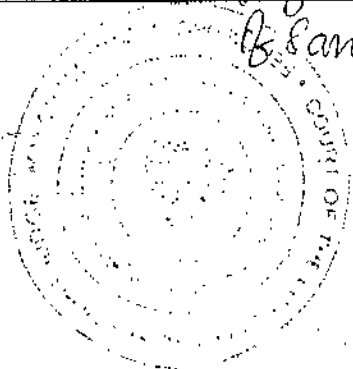
Reply Hg on validity
of sanction.

Accused called out present.

Heard the arguments in part.

For further arguments, call on
03-11-2017.

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)



File 286/10

03-11-17

11

Stdy-PP

Adby R

Order on validity
of Sanction -

Accused called out present.

Heard the arguments of both
the sides on discharge application.

For orders, call on 17-11-2017.

03/11

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

17-11-17

Stdy-PP

Adby R

Order on validity
of Sanction.

Accused called out present.

Heard the further arguments.

For orders, call on 23-11-2017.

17/11

77th A.C.C & S J & Spl Judge,
Bengaluru (CCH-78)

23-11-17

Stdy-PP

Adby-R

Order on validity
of Sanction.

Accused no present

(Order pronounced in the open Court
vide separate order)

ORDER

In view of the invalid sanction produced
by the prosecution, ^{the} accused is discharged.

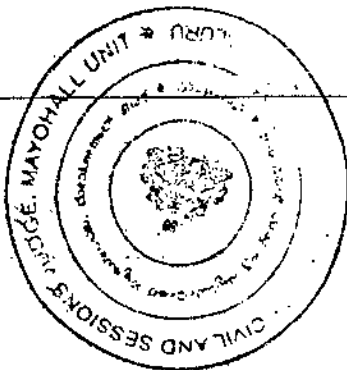
42

Sple 286/10

The prosecution is at liberty to take back the Charge Sheet papers, place it before the competent authority/board for obtaining a fresh valid sanction as per the regulations of the board and to file the Charge Sheet before the court.

[Signature]
23/11/2017

(MALLIKARJUNAGOUD)
LXXVII ADDL. CITY CIVIL &
SESSIONS JUDGE &
SPECIAL JUDGE, BENGALURU.
(CCH-78)



73

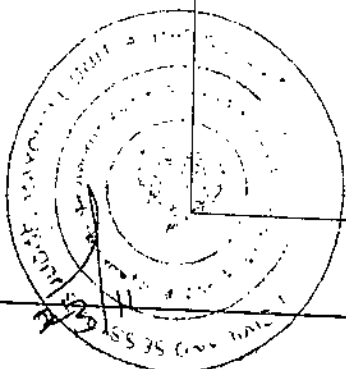
**IN THE COURT OF LXXVII ADDITIONAL CITY CIVIL AND
SESSIONS COURT AND SPECIAL COURT UNDER
PREVENTION OF CORRUPTION ACT 1988, BENGALURU.**

**PRESENT: SRI MALLIKARJUNAGOUD,
B.A.L. LL.B.,
LXXVII ADDL. CITY CIVIL &
SESSIONS JUDGE &
SPECIAL JUDGE, BENGALURU.**

DATED: 23rd NOVEMBER, 2017.

Spl. C.C.No.286/2010

<u>COMPLAINANT:</u>	The State of Karnataka, Rep by Police Inspector, Karnataka Lokayuktha Police, City Wing, Bengaluru (Rep by Sri. S.P.Hubballi, Public Prosecutor)
	V/s
<u>ACCUSED:</u>	H.S.Manjunath, Aged 44 years, S/o Late Shankarappa, Assistant Engineer, BESCO, Lingarajapuram, O & M., E-5, Sub-Division, Bengaluru. R/a No.294, 6 th 'A' Main Road, H.B.R.Layout, 3 rd Block, Near Ganesh Temple, Bengaluru: Permanent R/o Hunasaghatta village, Tarikere Taluk, Amruthapura-Hobli, Chikkamagalore District. (Rep by Sri. Raghunath, Adv.)

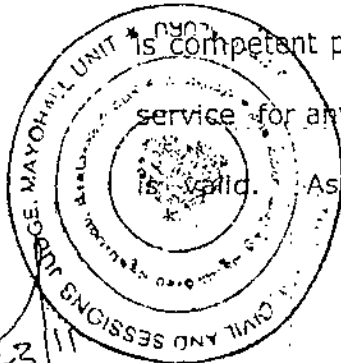


ORDER

In this case the counsel for the accused submitted that after considering the evidence of PW.1 Sri. Shivayogi Director, KPTCL, along with his contention taken in Spl.C.C.No.480/2016 and 481/2016, he requested the court to discharge this accused for the offences alleged against him stating that, the sanction order issued by above said Shivayogi is invalid and accused shall not be prosecuted. As per the ^{Board} Karnataka Electricity Regulation Act, Board is the competent authority ^{to appoint} to appoint its employees and as per the same, it is the competent authority to issue its sanction order. Since the sanction order issued by PW.1 is invalid, so he requested the court to discharge the accused for the offences alleged against him.

2. Contrary to this, learned Public Prosecutor submitted stating that, there is no bar for Director (Administration and Human Resources) KPTCL, to issue sanction order for prosecuting the accused for the offences punishable under Sections 7 and 13(1)(d) r/w 13(2) of the Prevention of Corruption Act, 1988. Since Director xxxxxxxxxxxx

is competent person to appoint and terminate ~~the~~ the accused from his service for any of his misconduct, so the sanction order issued by him is valid. As per Schedule-VI (a) of 1987 Karnataka Electricity

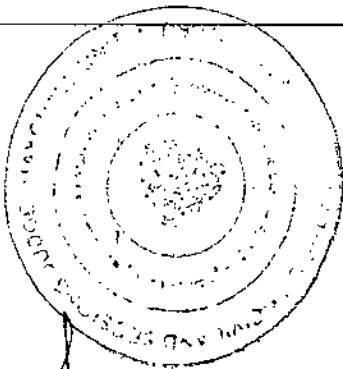


75
Regulation Act, is the competent authority. Further under Section 14(A) of the said Act, the Board is competent to hold any enquiry or disciplinary action against the accused and Board need not issue any sanction order. Since the Director of KPTCL who issued the sanction order has got every right to appoint and terminate his sub-ordinates, so the sanction order issued by the above said person is valid. Further there is a prima facie case against the accused to prosecute him for the offences alleged against him. Hence, he requested the court to consider the points raised by him in his objection and to dismiss the petition.

3. Heard the arguments of both the sides.
4. After hearing the arguments, after perusal of the petition, objections of P.P., charge sheet along with the decisions relied upon by both the sides, the following points arise for consideration of this court are:

1. Whether the prosecution proves that the sanction order issued for prosecuting this accused for the offences alleged against him is a valid?

2. What Order?



76

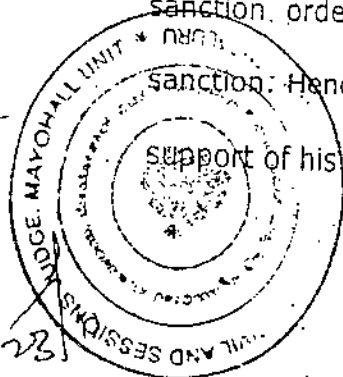
5. My answers for the above points are as follows because of my below discussed reasons.

POINT No.1: IN THE NEGATIVE.

POINT No.2: AS PER FINAL ORDER.

REASONS

6. **POINT No.1:** Here after going through the evidence of PW-1 Sri. Shivayogi C. Kalsad and submissions of both the sides along with the charge sheet, this court noticed that the accused is prosecuted for the offences punishable under Sections 7 and 13(1)(d) r/w 13(2) of the Prevention of Corruption Act, 1988. In the charge sheet, it is specifically stated about the charges leveled against the accused. After recording the evidence of PW-1 Shivayogi C. Kalsad by the prosecution the counsel for the accused has come up with a contention stating that under the Karnataka Electricity Board Regulation, board is the competent authority to accrue sanction and not the director so, sanction order issued by PW-1 marked at Ex.P-1 is not a valid sanction. Hence he requested the court to discharge the accused. In support of his case, he relied on the following decisions:



77

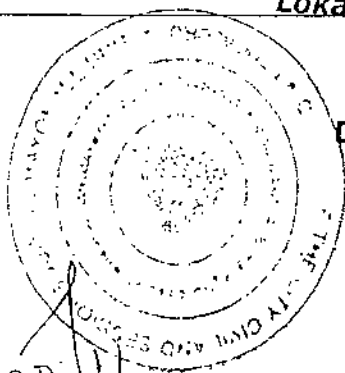
1. Unreported decision of Hon'ble High Court of Karnataka in Crl.Pet.No.7157/2016 dt:26-10-2016 between (Sri. V. Venkatasiva Reddy V/s State by Karnataka Lokayuktha Police),

2. Unreported decision of Hon'ble High Court of Karnataka in Crl.Pet.No.973/2000 dt:02-04-2001 between (The State by Karnataka Lokayuktha, City Division, Bengaluru V/s Kodandarama),

3. 2004(2) KCCR 1233 HN-C, between (D. Rajendran V/s State by Police Inspector, B.O.I.).

"C. Prevention of Corruption Act, 1988-
Section 19-Sanction for prosecution-KARNATAKA
ELECTRICITY BOARD EMPLOYEES
(CLASSIFICATION, DISCIPLINARY CONTROL AND
APPEAL) REGULATIONS, 1987-Regulation 14A, sub-
clause (e)-Board alone is the competent authority
to accord sanction to prosecute under the
Prevention of Corruption Act, 1988 to all the
Employees-Only Section 14A sub clause (e) applies
and no other provisions. In the present case
sanction granted by some other authority, Further
Lokayuktha passing a mechanical order"

4. 2010(1) KCCR 484 between (State by
Dy.S.P. Bengaluru V/s H. Rangahanumaiah),



5. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 69/2001 dt:23-01-2003 between (State by Karnataka by loayuktha polcie V/s Ganesh Babu).

6. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 859 and 1455/2001 dt:24-09-2003 between (State by Lokayuktha V/s N. Narayanaswamy and Hanumathashetty).

7. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 134/2001 dt:10-07-2003 between (State by Lokayuktha V/s Syed Rehman).

8. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 269/2001 dt:11-12-2002 between (State by P.I Karnataka Lokayuktha V/s Chikka Rajaiah and another).

9. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 273/2000 dt:02-04-2001 between (State by Karnataka Lokayuktha V/s Kodandarama).

10. Unreported decision of Hon'ble High Court of Karnataka in Cri.Rev.Pet.No. 675/2000 dt:25-11-2003 between (State by Lokayuktha V/s K. Raveendra).

7. Contrary to this, learned Public Prosecutor submitted before the court stating that, it is true that, as per the provisions of Karnataka Electricity Regulation Act, Board is the competent authority

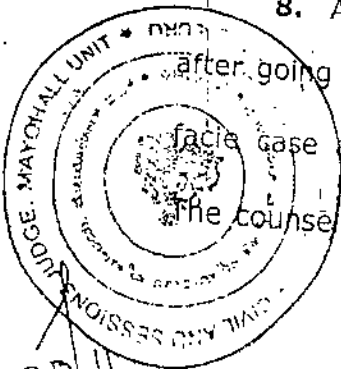
23/11

49 7

to issue sanction. Further in view of the amendment to Sec 14(A), (f) is also inserted and as per the said provision the appointing authorities mentioned in the schedule of thereafter resolution are competent persons to issued the sanction order. Here in this case persons who issued the sanction order have specifically stated stating that on the authorization given to them under the Act they have issue valid sanction, hence it is a valid sanction, so the accused is not entitled for discharge. In support of his case he relied on the following decisions:

1. Decision of Hon'ble Supreme Court in Crl.Appeal No.721/2016 and 722/2016 dt:06-09-2016 between (L. Narayana Swamy V/s State of Karnataka and Others),
2. Unreported decision of Hon'ble High Court of Karnataka pertains to Cri.Pet.No. 1232/2001 dt:30-11-2001 between (M. Nagaraja V/s State of Karnataka) and
3. Unreported decision of Hon'ble High Court of Karnataka pertains to Crl.Appeal.No. 1023/2013 dt:17-01-2017 between (Shivanna, V/s State by Police Inspector, City Division Karnataka Lokayuktha).

8. After considering the submission of the both the sides and after going through the Charge Sheet it is clear that there is a prima facie case against the accused for the offence alleged against him. The counsel for the accused is not denying the same. However he is

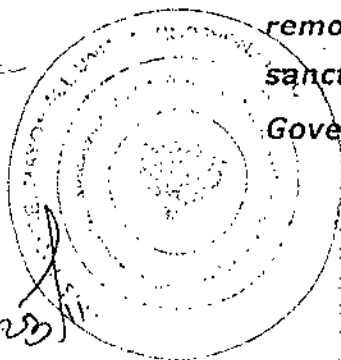


questioning the local stand of the person who issued the sanction order to prosecute this accused, stating that, that sanction is not a valid sanction as it is not the sanction order issued by the board. After considering the submissions and after going through the ratio involved in the decisions relied upon by the both the sides. Now the points remained^{order} for consideration of this court whether the said sanction^{order} is the valid sanction or not. That the prevention of corruption act is a special Act introduced by the legislature to prevent the corruptions in public office and authority. Under the said Act under section 19 it is mandate for the prosecution to obtain the previous sanction of the concerned government or authority. Section 19 of Prevention of Corruption Act, 1988. Act reads as follows:

" 19. Previous sanction necessary for prosecution.-(1)

No court shall take cognizance of an offence punishable under sections, 7,10,11,13 and 15 alleged to have been committed by a public servant, except with the previous sanction,-

(a) in the case of a person who is employed in connection with the affairs of the Union and is not removable from his office save by or with the sanction of the Central Government, of that Government;



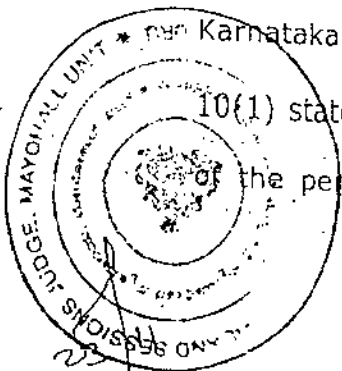
(b) in the case of a person who is employed in connection with the affairs of a State and is not removable from his office save by or with the sanction of the State Government, of that Government;

(c) in the case of any other person, of the authority competent to remove him from his office.

(2) Where for any reason whatsoever any doubt arises as to whether the previous sanction as required under sub-section (1) should be given by the Central Government or the State Government or any other authority, such sanction shall be given by that Government or authority which would have been competent to remove the public servant from his office at the time when the offence was alleged to have been committed".

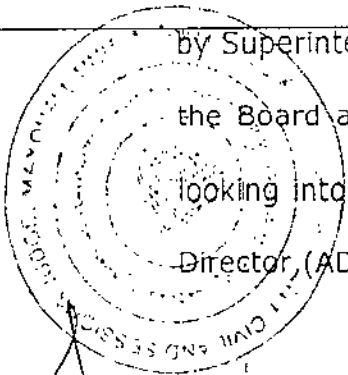
9. By considering that Section, it is clear that, in case of a Government servant the sanction should be issued by concerned Government and in case of any authority, the competent authority should issued the sanction. By considering the case analytic, it is clear that, this accused is a employee of BESCOM governed by the

Karnataka Electricity Board Regulations. In that regulation, regulation 10(1) states that the Board is the competent authority to impose any of the penalties specified under the Regulation 9 of the Act. Under



Regulation 10(3) it is stated that, no penalties specified clause V to VIII of Regulation No 9 shall be imposed by any authority lower than the appointing authority. As per Regulation 9 V to VIII states regarding reduction in cadre, scale, payment, compulsory retirement, removal from service and dismissal from service. By considering that Act, it is clear that, the Board is the competent authority to impose all these fines as mentioned in Regulation 10(1). Though the Public Prosecutor has stated that under Regulation 11(A)(f) the appointing authority is authorized to issue sanction order as per the amended provision, it shall not be considered because bill proposed for impleading of clause (f) in Sec 14^(A) of the KEBE's (CDC & A Regulation 1987) is not passed in the Legislature. So the persecution cannot rely upon the same. I have gone through the decisions relied upon by the Public Prosecutor and the counsel for the accused, as per all the decisions relied upon by the counsel for the accused stated above, their Lordships ^{in case of} it is held that, the employees of KPTCL the Board ^{is} the competent authority. In the said decisions the sanction order issued

by Superintendent Engineer, Chief Engineer and Executive Engineer of the Board are not considered as valid. So here in this case also by looking into the sanction order issued by one Mr. Shivayogi C. Kalsad, Director (ADM and HR) marked at Ex.P-1 is not valid as he has issued



the same on his individual capacity. Since there is no evidence to show that, he is the competent person to terminate him from the service, so it is not a valid sanction. Further in the decisions relied upon the Public Prosecutor, it is held that, in any criminal proceedings against employee of a Electricity Board with regard to his criminal misconduct for the offences punishable under Prevention of Corruption Act, 1988, Board is the competent authority. In view of all these reasons, this court held that, the sanction order produced by PW-1 marked at Ex.P-1 is not a valid sanction produced along with the Charge Sheet is not a valid sanction to prosecute this accused for the offences alleged against him. Hence this court answered **point No 1 in the Negative.**

10. Point No.2. In view of all these reasons this court pass the following:

ORDER

In view of the invalid sanction^{order} produced by the prosecution accused is discharged.

The prosecution is at liberty to take back the Charge Sheet papers, place it before the competent authority/board for obtaining a fresh

23/11

84

valid sanction as per the regulations of the board
and to file the Charge Sheet before the court.

(Dictated to the judgment-writer, after transcription, corrected by
me and then pronounced by me in the open court on this the 23rd day of
Nov, 2017.)

[Signature] 23/11/2017
(MALLIKARJUNAGOUD)
LXXVII ADDL. CITY CIVIL &
SESSIONS JUDGE &
SPECIAL JUDGE, BENGALURU.
(CCH-78)

000000

This document is reserved to be
Annexure *[initials]* in the
affidavit Smt./Sri. *[Signature]* 14/5
Oath Commissioner
[Signature]

11/28/18

11-11-68

1. Everything collected
 2. Applicant required to appear
 3. Applicant appears 20
 4. Every ready 28
 5. Every delivered

City Civil & Sessions Court
Mayo Hall Unit
Bangalore

[illegible]

5

[Skip to main content](#)

Query on Case Number

Select Bench:

Select Case Type:

Enter Case
Number:

335

Select
Case
Year:

Submit

CASE PENDING

High Court of Karnataka -Bengaluru Bench

CRL.RP 335/2018

<u>Petitioner/Appnt. Name</u>	M/S. KARNATAKA POWER TRANSMISSION CORPORATION LIMI		<u>Respondent/Defnt. Name</u>	STATE OF KARNATAKA
<u>Petrn./Appnt. Advocate.</u>	SRIRANGA S.		<u>Respnt./Defnt. Advocate</u>	VENKATESH ARBATTI FOR R1
<u>Date Filed</u>	23/03/2018	<u>Classification.</u>	<u>District</u>	Bengaluru City

Stage	PENDING FOR ADMISSON	Last Posted For	HEARING - INTERLOCUTORY APPLN		
Last Action Taken	ADJOURNED	Last Date of Action	01/03/2019	Next Hearing Date	25/03/2019
Latest Order	ONE WEEK TIME IS GRANTED FOR COMPLIANCE OF OFFICE OBJECTIONS				
Before Hon'ble	K.NATARAJAN				

Judge/s

Lower Court Details [Appeal from below case.]

Case No	Court Name	Order Dt
SPL.C.C. 286/2010	CCH-78 LXXVII ADDL CITY CIVIL & SESSIONS JUDGE BANGALORE ,BENGALURU	23/11/2017

Details of the Daily Order
(Click on date of order to get full order)

Sl No	Honble Judge	Date of Order
1	HONBLE KNPJ	01/06/2018
2	HONBLE SHKJ	20/07/2018

Home | Contact Us | Disclaimer | Website
Policy | Accessibility Statement | Sitemap

2014© Copyright High Court of
Karnataka. All Rights Reserved

Content
Maintained
By



Computer
Main Centre

Designed
and Hosted
By



NIC
Karnataka

India Portal Digital India

india.gov.

The national portal



Digital India

Karnataka

Judge/s

Lower Court Details [Appeal from below case.]

Case No	Court Name	Order Dt
SPL.C.C. 286/2010	CCH-78 LXXVII ADDL CITY CIVIL & SESSIONS JUDGE BANGALORE, BENGALURU	23/11/2017

Details of the Daily Order
(Click on date of order to get full order)

Sl No	Honble Judge	Date of Order
1	HONBLE KNPJ	<u>01/06/2018</u>
2	HONBLE SHKJ	<u>20/07/2018</u>

Home | Contact Us | Disclaimer | Website
Policy | Accessibility Statement | Sitemap

2014© Copyright High Court of
Karnataka. All Rights Reserved

Content
maintained
By

Designed
and Hosted
By

India portal High Court of Karnataka

india.gov.

The national portal



Digital India



Computer - NIC,
Main Centre Karnataka



ಕರ್ನಾಟಕ ವಿದ್ಯುತ್ ಪ್ರಸಾರಣ ನಿಗಮ ನಿಯಮಿತ

ನಿಗಮ ಕಾರ್ಯಾಲಯ
ಕಾವೇರಿ ಭವನ
ಬೆಂಗಳೂರು-560 009.

ಕವಿಪ್ರನಿನಿ/ಅ57/4/13/15/2013-14

ದಿನಾಂಕ : 19 SEP 2013

ಅಧಿಕೃತ ಪತ್ರಾವಳಿ

ವಿಷಯ: ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) [ಪದವೀಧರರಲ್ಲದ] ಪದವ್ಯಂದದ ಹುದ್ದೆಯಿಂದ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) [ಪದವೀಧರರಲ್ಲದ] ಪದವ್ಯಂದದ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ನೀಡುವ ಬಗ್ಗೆ

ಈ ಕೆಳಗೆ ನಮೂದಿಸಿರುವ ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) [ಪದವೀಧರರಲ್ಲದ] ಇವರುಗಳನ್ನು ರೂ. 20600-43850ರ ವೇತನ ಶ್ರೇಣಿಯಲ್ಲಿ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) [ಪದವೀಧರರಲ್ಲದ] ಪದವ್ಯಂದದ ಹುದ್ದೆಗೆ ಕಾರ್ಯವಾಹ ಪದೋನ್ನತಿ ನೀಡಿ ಅವರ ಹೆಸರಿನ ಮೂಲಕ ಸೂಚಿಸುವ ಕಛೇರಿ/ಕಛೇರಿಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ.

ಕ್ರ.ಸಂ	ಹೆಸರು	ಪಿನ್	ಕಾರ್ಯನಿರ್ವಾಹಕ ಹುದ್ದೆಯ ಪದವ್ಯ	ನಿಯೋಜಿಸಲಾದ ಸ್ಥಳ/ಕಂಪನಿ
1.	ಶಿವರಾಮ್ ಅ.ಬ.	12101	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಟೇಷನ್ ಕೇಂದ್ರ, ಕವಿಪ್ರನಿನಿ, ದಾವಣಗೆರೆ	ಹುಬ್ಬಳ್ಳಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
2.	ನೈಯದ್ ಇಲಿಯಾಸ್ ಪಾಷಾ	12184	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಮಂವಿವಿವಿ ಕಛೇರಿ	ಹುಬ್ಬಳ್ಳಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
3.	ವಿನೋದ್ ಲಕ್ಷ್ಮಿ ರೋಡ್ರೀಗ್ಸ್	12195	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಮಂವಿವಿವಿ ಕಛೇರಿ	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಟೇಷನ್ ಕೇಂದ್ರ, ಕವಿಪ್ರನಿನಿ, ಯಾಚೇನಹಳ್ಳಿ
4.	ಲಕ್ಷ್ಮಿನಾರಾಯಣ ಕೆ.	12198	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಟೇಷನ್ ಕೇಂದ್ರ, ಕವಿಪ್ರನಿನಿ, ಹೆಬ್ಬಾಳ	ನಿಯೋಜನೆ ಮೇಲೆ ಕೆ.ಆರ್.ಇ.ಡಿ.ಎಲ್.
5.	ಮಂಜುನಾಥ ಎನ್	12199	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಮಂವಿವಿವಿ ಕಛೇರಿ	ಮಂಗಳೂರು ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
6.	ಜೇಹರ್ ಜಿ.ಎಸ್	12200	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಬೆವಿಕಂ, ಆನೆಕಲ್	ಬೆಂಗಳೂರು ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
7.	ನೀಲಶ್ಯಾಮ್ ಡಿ.ಎನ್	12201	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಮಂವಿವಿವಿ ಕಛೇರಿ	ಗುಬ್ಬರ್ಗಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
8.	ಸುಬ್ರಹ್ಮಣ್ಯ ಟಿ	12206	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ವಿಭಾಗ, ಬೆವಿಕಂ, ಬೆಂಗಳೂರು	ಬೆಂಗಳೂರು ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
9.	ಮಹೇಶ್ ಎಂ.ಕುಲಕರ್ಣಿ	12207	110-ಕೆ.ವಿ.ವಿದ್ಯುತ್ ವಿತರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರನಿನಿ, ಯಾದಗಿರಿ	ಗುಬ್ಬರ್ಗಿ-ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ

10.	ಸುರೇಶ್ ಪಿ.ಎಸ್	12209	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಚಾವಿನಿನಿ, ಮಡಿಕೇರಿ	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ಕೇಮಾರ್ ಕಾರ್ಕಳ
11.	ಮಹಬೂಬ್ ಪರೀಷ್	12210	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ-1, ಬಿವಿಕಂ, ತುಮಕೂರು	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ಮುಗುರಿ
12.	ಶಿವಶಂಕರ್ ಎಸ್	12211	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಬೆಂಗಳೂರು	ನಿಯೋಜನೆ ಮೇಲೆ ಕೆ.ಆರ್.ಇ.ಡಿ.ಎಲ್.
13.	ಮಹದೇವಪ್ಪ ಬಿ.ಎಂ.	12212	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ಹೊಟ್ಟುಗುಳ	ಬಾಹ್ಯಾಂತರೇಕ್ಷರಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ನಿಗಮ ನಿಯಮಿತ
14.	ಲೋಕೇಶ್ವರ ಕೆ	12213	ಪ್ರಸಾರಣ (ಕಾಮಗಾರಿ) ಪತ್ತೆ, ಕವಿಪ್ರಸನ್ನಿ, ಬೆಂಗಳೂರು	ಗುಲ್ಬರ್ಗ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
15.	ಮಹೇಶ್ ಆರ್	12214	ನಿಯೋಜನೆ ಮೇಲೆ ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆ, ಬೆಂಗಳೂರು	ನಿಯೋಜನೆ ಮೇಲೆ ಕೆ.ಆರ್.ಇ.ಡಿ.ಎಲ್.
16.	ಬಕ್ಕಪ್ಪರದ್ಡಿ ಸಿ.ಎನ್	12220	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಬೆಂಗಳೂರು	ಬೆಂಗಳೂರು ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
17.	ಸಿ.ಬಸವಯ್ಯ	13062	ನಿಯೋಜನೆ ಮೇಲೆ ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆ, ಮೈಸೂರು	ಬಾಹ್ಯಾಂತರೇಕ್ಷರಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ನಿಗಮ ನಿಯಮಿತ
18.	ಎಸ್.ಆರ್. ವಿಜಯಕುಮಾರ್	13952	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಬೆಂಗಳೂರು	ಬಾಹ್ಯಾಂತರೇಕ್ಷರಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ನಿಗಮ ನಿಯಮಿತ
19.	ಕಡಪ್ಪಗೋಲ್ ಪ.ವೈ.	12223	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಚಿಕ್ಕಪ್ಪಳ	ಹುಬ್ಬಳ್ಳಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
20.	ಭೀರಪ್ಪ ಸಿ. ಗಡೇದ	12224	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಮೈಸೂರು, ರಾವೇರಿ	ಗುಲ್ಬರ್ಗ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
21.	ಮಂಜಪ್ಪ ಕೆ.ಎಲ್	12229	ನಿಯೋಜನೆ ಮೇಲೆ ಕವಿಪ್ರಸನ್ನಿ	ಹುಬ್ಬಳ್ಳಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
22.	ಎಸ್.ರಾಜಕುಮಾರ್	13253	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಜಗಣಿ	ಬೆಂಗಳೂರು ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
23.	ಎಂ.ನುರೇಶ್ ಬಾಬು	13988	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ದೊಡ್ಡಬಳ್ಳಮರ	ಗುಲ್ಬರ್ಗ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
24.	ಎಲ್.ರಾಮಚಂದ್ರ ನಾಯಕ್	14079	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಬಿವಿಕಂ, ಬೆಂಗಳೂರು	ಬಾಹ್ಯಾಂತರೇಕ್ಷರಿ ವಿದ್ಯುತ್ ಸರಬರಾಜು ನಿಗಮ ನಿಯಮಿತ
25.	ಹೆಚ್.ಕೆ.ಬಸವಣ್ಣ	14082	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ದೊಡ್ಡಬಳ್ಳಮರ	ಗುಲ್ಬರ್ಗ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
26.	ನಿರ್ಮಲಾ ಡಿ.	15634	66 ಕೆ.ವಿ. ಸ್ಟೇಷನ್, ಕವಿಪ್ರಸನ್ನಿ, ಲಕ್ಕವಳ್ಳಿ	220 ಕೆ.ವಿ.ವಿದ್ಯುತ್ ಸ್ಥಳರಣಾ ಕೇಂದ್ರ, ಕವಿಪ್ರಸನ್ನಿ, ಚಿಕ್ಕಹಳ್ಳಿ
27.	ಬಸವಪ್ಪ	15638	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ-2, ಗುಬ್ಬಿನಕೆರೆ, ಗುಲ್ಬರ್ಗ	ಗುಲ್ಬರ್ಗ ವಿದ್ಯುತ್ ಸರಬರಾಜು ಕಂಪನಿ ನಿಯಮಿತ
28.	ಗೋಪಾಲ್ ವೈ. ಲಮಾಣಿ	15643	ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ ಉಪವಿಭಾಗ, ಮೈಸೂರು, ರಾಣಿಬೆನ್ನೂರು	ಪ್ರಸಾರಣ ಮತ್ತು ಪಾಲನೆ ಕವಿಪ್ರಸನ್ನಿ, ಬಾಗಲಕೋಟೆ

ಪ್ರವೇಶಿಸಿ ಕೊಂಡಿರುವ ನೌಕರರನ್ನು ಅವರ ಮೇಲಾಧಿಕಾರಿಗಳು ಸ್ಥಳೀಯ ಐದರಿ ಪ್ರವೇಶಿ ಮಾಡಿ ತಕ್ಷಣ ಕಾರ್ಯದಿಮ್ಮುಗೊಳಿಸುವುದು.

[illegible]

ಕಾರ್ಯವಿನ್ಯಾಸದಂತೆ ಕಾರ್ಯವನ್ನು ನಡೆಸುವುದು.

ನೀಗಮ ಕಾರ್ಯಾಲಯ ರವಿಪ್ರಸನ್ನಿ, ಬೆಂಗಳೂರು ಇವರಿಗೆ ಪ್ಯಾಸ್ ನಂ. ೦೮೦ ೨೨೧೨೩೩೦೨ ಮತ್ತು ಅಂಚೆ ಮೂಲಕ ತಪ್ಪದ ರವಳುಗಳನ್ನು ಕೇಳಿದೆ.

ಸಿಬ್ಬಿಳಿಕಾಯ (ಅಡ್ಡಲತೆ ಮತ್ತು ಮಾಸಂ) ಕವಿವರನಿ

1. ಎಲ್ಲಾ ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿ.ನ.ಕಂ.

1. ಎಲ್ಲಾ ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿ.ಸ.ಕಂ.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನವೀಕರಿಸಬಹುದಾದ ಇಂಧನ ಅಭಿವೃದ್ಧಿ ನಿರ್ಮಾಣ ಇಲಾಖೆ, ಅಮರನಗರ ರಸ್ತೆ ಬೆಂಗಳೂರು -1.
3. ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿ, ಬೋಕೋಬೆಂಬೋಗಿ ಇಲಾಖೆ, ಬಹುಮತದ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು-1
4. ಎಲ್ಲಾ ನಿರ್ದೇಶಕರು, (ತಾಂತ್ರಿಕ), ವಿ.ಸ.ಕಂ.
5. ಎಲ್ಲಾ ಆರ್ಥಿಕ ಸಲಹೆಗಾರರು, ಕವಿಪ್ರಸನ್ನಿ/ವಿ.ಸ.ಕಂ.
6. ಎಲ್ಲಾ ಮುಖ್ಯ ಇಂಜಿನಿಯರ್ (ವಿ), ಕವಿಪ್ರಸನ್ನಿ/ವಿ.ಸ.ಕಂ.
7. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್ (ವಿ), ಸಂಪರ್ಕ ಮತ್ತು ಕಟ್ಟಡಗಳು(ದಕ್ಕೂ), ಬೋಕೋಬೆಂಬೋಗಿ ಇಲಾಖೆ, ಕೆ.ಆರ್.ವೃತ್ತ, ಬೆಂ.
8. ಸರ್ಕಾರದ ಪ್ರಾಧಿಕಾರ-ಕಾರ್ಯದರ್ಶಿ, ಇಂಧನ-ಇಲಾಖೆ, ಬೆಂಗಳೂರು-ಇವರ ಆಜ್ಞೆ ಕಾರ್ಯದರ್ಶಿ.
9. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು/ನಿರ್ದೇಶಕರು / (ಪ್ರಸನ್ನಿ/ಅಧಿಕಾರಿ) / (ಆ ಮತ್ತು ಮಾ.ಸಂ)/ ನಿರ್ದೇಶಕರು (ಇಂ.ವಿ) 4. ಕಂಪನಿ ಕಾರ್ಯದರ್ಶಿ, ಬಿಸಿ.ಕೆ.ಎಂ/ ಎಲೆಕ್ಟ್ರಿಕ್ (ವಿಜಲೆಸ್ ಎನ್‌ಲೈವ್ ಮೆಂಟ್), ಕವಿಪ್ರಸನ್ನಿ ಮತ್ತು ವಿ.ಸ.ಕಂ/ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿ ಇವರುಗಳ ಆಜ್ಞೆ ಕಾರ್ಯದರ್ಶಿಗಳು ಕವಿಪ್ರಸನ್ನಿ, ಕಾವೇರಿ ಭವನ ಬೆಂಗಳೂರು, ವ್ಯವಸ್ಥಾಪಕರು ಸ್ಥಾಪನೆ, ನಿಗಮ ಕಾರ್ಯಾಲಯ ಕವಿಪ್ರಸನ್ನಿ ಕಾವೇರಿ ಭವನ ಬೆಂಗಳೂರು ರವರಿಗೆ ಮುಖಾಂತರ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳ ಸ್ವೀಕೃತಿ ಕಡತಕ್ಕೆ ಸೇರಿಸಲು.

ಪಾಟಕಿ ಹಾಗೂ ಸೂಕ್ತ ಕೆಲಸಕ್ಕಾಗಿ www.kptcl.com/epkrasaram ಮೇಲೆ ಪೋಸ್ಟಲ್ ಪಡೆಗಳನ್ನು ಲಾಗಿಡು.

1. ಉಪ ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು (ಸಿಬ್ಬಂದಿ)/(ಅಂತ್ರಿಕ), ನಿಗಮ ಕಾರ್ಯಾಲಯ, ಕವಿಪ್ರಸನ್ನ, ಕಾವೇರಿ ಭವನ, ಬೆಂಗಳೂರು.

2. ಎಲ್ಲಾ ಅಧೀಕ್ಷಕ ಇಂಜಿನಿಯರ್ (ಡಿ)/ ಎಲ್ಲಾ ನಿಯಂತ್ರಣಾಧಿಕಾರಿಗಳು, ಕವಿಪ್ರಸನ್ನ/ವಿ.ಸೆ.ಕಂ.

3. ಎಲ್ಲಾ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ಎ) / ಉಪ ಲೆಕ್ಕ ನಿಯಂತ್ರಣಾಧಿಕಾರಿಗಳು ಕವಿಪ್ರಸನ್ನ/ವಾ.ಸಾ.ಕಂ.

4. ನಿಗಮದ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳು/ ಎಲ್ಲಾ ಲೆಕ್ಕಾಧಿಕಾರಿಗಳು [ಅಂ.ಪ] ಕವಿಪ್ರಸನ್ನ ಬೆಂಗಳೂರು.

5. ವ್ಯವಸ್ಥಾಪಕರು (ಸಿಬ್ಬಂದಿ-2) ನಿಗಮ ಕಾರ್ಯಾಲಯ ಕವಿಪ್ರಸನ್ನ ಕಾವೇರಿ ಭವನ ಬೆಂಗಳೂರು ರವರಿಗೆ.

6. ಮೇಲಿನ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳಿಗೆ.

ಪತ್ರಗಳನ್ನು ಸೂಕ್ತ ಮಾತೃಭಾಷೆ:

ಆ. ಶ್ರೀನಿವಾಸರಾಜ್, ಅಧ್ಯಕ್ಷರು, ಕವಿಪ್ರಸನ್ನ ನೌಕರರ ಸಂಘ, ಬೆಂಗಳೂರು ನಿರ್ದೇಶಕರು, ಕವಿಪ್ರಸನ್ನ / ಬಿ.ವಿ.ಕಂ /

ಮಂ.ವಿ.ಸೆ.ಕಂ / ಗು.ವಿ.ಸೆ.ಕಂ ಹಾಗೂ ಬಾ.ವಿ.ಸೆ.ನಿ.

ಆ. ಶ್ರೀ.ವಿ.ವೆಂಕಟಪ್ರಸಾದ್, ಅಧ್ಯಕ್ಷರು, ಕೆ.ಇ.ಐ ಇಂಜಿನಿಯರುಗಳ ಸಂಘ, ಬೆಂಗಳೂರು ಹಾಗೂ ನಿರ್ದೇಶಕರು, ಕವಿಪ್ರಸನ್ನ

ಹಾಗೂ ಎಲ್ಲಾ ವಿ.ಸೆ.ಕಂ.

10. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕವಿಪ್ರಸನ್ನ, ನೌಕರರ ಸಂಘ, ಬೆಂಗಳೂರು.

11. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕೆ.ಇ.ಐ, ಇಂಜಿನಿಯರುಗಳ ಸಂಘ, ಬೆಂಗಳೂರು.

12. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕವಿಪ್ರಸನ್ನ, ಲೆಕ್ಕಾಧಿಕಾರಿಗಳ ಸಂಘ, ಬೆಂಗಳೂರು.

13. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕೆ.ಇ.ಐ ಎಸ್.ಸಿ ಮುತ್ತು ಎಸ್.ಸಿ ನೌಕರರ ಕ್ಷೇಮಾಭಿವೃದ್ಧಿ ಸಂಘ, ಬೆಂಗಳೂರು.

14. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕವಿಪ್ರಸನ್ನ, ದಿವ್ಯಮಾ ಇಂಜಿನಿಯರುಗಳ ಸಂಘ, ಬೆಂಗಳೂರು.

ಕವಿಪ್ರಸನ್ನ

ಕವಿಪ್ರಸನ್ನ
ಕವಿಪ್ರಸನ್ನ
ಕವಿಪ್ರಸನ್ನ

Acquirer's is referred to as
in the
Official Seal / Stamp
Official Seal / Stamp
Official Seal / Stamp

2013-2014
2013-2014
2013-2014

Seniority List as on 01.04.2014
Cadre: Asst.Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

93. ~~94~~ Annexure-H
(Relavent Extract Copy)
Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/ promotion to the present cadre	Place of working
1	Betageri. B.D. (ITI)	11916		31-May-1955	27-Apr-1976	22-Mar-1999	220 KV Receiving Station, KPTCL, Narendra KPTCL
2	Shivasharanappa. R. Motri	11923		30-Dec-1961	31-Aug-1984	9-Apr-1999	O&M Section, GESCOM, Shahapur GESCOM
3	Nanjappa. M.C.	11945		26-Jun-1959	10-Nov-1984	26-Nov-1999	C-2 Sub Division, BESCOM, Bangalore BESCOM
4	Narasimha Murthy. H.S.	12085		21-Jun-1959	1-Mar-1984	20-May-2002	400 KV Station, KPTCL Nelamangala KPTCL
5	Krishna Prasad. G.	12087		10-Jun-1960	5-Apr-1984	17-May-2002	Major Works Division, KPTCL Mysore KPTCL
6	Sharanaia Amaraia Math	12093		1-Jun-1961	6-Jun-1984	22-May-2002	110KV Station, KPTCL Mamdapur KPTCL
7	Basavaraju. K.	12103		1-Aug-1960	15-Jun-1985	29-Apr-2002	220 KV Station, KPTCL, Rani Bennur KPTCL
8	Moqtum Sab Halasangi.	12143		24-Mar-1969	20-Nov-1992	16-May-2002	S O, Sub Division, HESCOM, Kundagol HESCOM
9	Paramesha. M.	12168		14-Feb-1969	24-Feb-1996	10-May-2002	PWD Bangalore Deputation
10	Udaya Kumar. V.N.	12172		15-Aug-1962	2-Jul-1996	10-May-2002	O&M Division, BESCOM, Yelahanka BESCOM
11	Srikantaswamy. H.M.	12191		20-May-1961	14-May-1984	24-Mar-2003	W & M Circle, KPTCL, Davangere KPTCL
12	Chikkanarasimhappa.	12202	ST	5-Feb-1962	24-Feb-1988	11-Mar-2003	220 KV Receiving Station, KPTCL Antharasanahalli. KPTCL



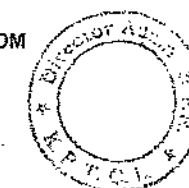
94 85

Seniority List as on 01.04.2014
Cadre: Asst.Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/ promotion to the present cadre	Place of working	
13	Manjunath. H.S.	12204		1-Jan-1966	12-Oct-1988	11-Mar-2003	Whitefield Unit, O&M E-4 Sub Division, BESCOM, Bangalore	BESCOM
14	Manjappa. K.L.	12225		17-May-1959	11-Jul-1984	9-Oct-2003	MRS, KPTCL, Shimoga	KPTCL
15	Ekambaranath. K.M.	12227		14-Apr-1959	4-Sep-1984	30-Sep-2003	MT Sub Division, GESCOM, Bellary	GESCOM
16	Tukaram. C. Mesta.	12228		1-Jun-1956	11-Sep-1984	12-Oct-2003	AET, Sub Division, HESCOM Honnavar	HESCOM
17	Baramalingappa. K.	12230		1-Jun-1958	28-Sep-1984	18-Oct-2003	66 KV Sub Station, KPTCL, ANAGODU,	KPTCL
18	Shanthagowda. G. Patil.	12233		20-Jul-1958	28-Aug-1984	30-Sep-2003	Vigilance, HESCOM, Bagalkote	HESCOM
19	Deshmukh. G.S.	12235		27-Jan-1968	26-Feb-1988	17-Oct-2003	110KV KIADB Station, KPTCL Bijapur	KPTCL
20	Nagappa. T.S.	12236		1-Jul-1963	13-Oct-1988	30-Sep-2003	JTA, O&M E 4 Sub Division, BESCOM, Bangalore	BESCOM
21	Stephon K. Thomas.	12237		9-Mar-1965	17-Oct-1988	30-Sep-2003	66 KV Sub Station, ITI, KPTCL, Bangalore.	KPTCL
22	Raja. J.	12242		1-May-1966	5-Feb-1992	16-Oct-2003	220 KV Station, KPTCL Somanahalli	KPTCL
23	Giriyachar. J.	12243		12-Apr-1956	30-Apr-1992	19-Nov-2003	CSC Division, GESCOM, Bellary	GESCOM
24	Shanmukappa. D.M.	12244		21-Jul-1965	21-Sep-1992	5-Nov-2003	O&M Division, HESCOM, Jamakhandi	HESCOM



Seniority List as on 01.04.2014
Cadre: AssL Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/ promotion to the present cadre	Place of working
25	Hanumesh.	12245		25-Mar-1966	20-Nov-1992	30-Sep-2003	Material Management Sec, Corporate Off, GESCOM, Gulbarga
26	Kannan.	12247		1-Jun-1960	18-Dec-1992	17-Nov-2003	Planning Section, O/o CEE (P&C), KPTCL, Kaveri Bhavan, Bangalore.
27	Karibasappa T.G.	13068		5-Mar-1956	14-Apr-1980	30-Sep-2003	110/11 Sub Station, KPTCL Machenahalli, Shimoga
28	Vishwanatha K.S	13071		12-Mar-1955	11-Mar-1978	4-May-2004	O&M Sub Division, BESCOM, Mangalvada, [Working @ North Division]
29	Revennasiddappa L.B.	13073		1-Apr-1959	9-Apr-1984	4-May-2004	O&M W5 Sub Division, BESCOM, Bangalore
30	Vijay Parande	13074	ST	11-Jun-1957	25-Feb-1988	4-May-2004	S O (Unit-2), City Sub Division, HESCOM-2, HESCOM, Hubli
31	N.S. Ananthapadmanabha	13081		8-Oct-1957	5-Sep-1984	27-Dec-2004	MRS Division, KPTCL Shimoga
32	K.R. Rovanasiddappa	13082		5-Aug-1966	15-Oct-1988	30-Oct-2004	H T Rating. BESCOM, Chandapur.
33	V.K.Shaji	13084		2-Oct-1954	12-Apr-1976	24-Sep-2004	66/11 KV, Doddakere Ground, KPTCL, Mysore
34	Basappa Bommanagowdar	13085		1-Jul-1962	13-May-1986	11-Oct-2004	O&M Division, BESCOM, Davanegere, Transport
35	Ramesh. T.H	13086		20-Jul-1962	12-Oct-1987	24-Sep-2004	220KV Receiving Station, KPTCL, Yerandana Halli, Bangalore
36	Sharatchandra Jingade	13087		4-Oct-1970	20-Jul-1991	3-Nov-2004	W/u, HESCOM, Hangal



96 907

Seniority List as on 01.04.2014
Cadre: Asst.Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/ promotion to the present cadre	Place of working	
37	Inayatullakhan	13088		12-Jul-1972	23-Mar-1992	24-Sep-2004	O&M C-3 Sub Division, BESCOM, Bangalore,	BESCOM
38	T.V.Mutheppanavar.	13089		1-Jun-1966	8-Sep-1992	7-Oct-2004	O&M Sub Division, HESCOM, Gokak	HESCOM
39	Appasab S. Makani	13090		1-Jun-1970	8-Sep-1992	24-Sep-2004	JTA, Division, HESCOM Office, Athani	HESCOM
40	M. Narayana Bhat	13094		5-Jul-1954	12-Apr-1976	2-Dec-2004	O&M Sub Division, CESC, Sakateshpura,	CESC
41	S. Mahadevaiah	13095		14-Jul-1970	21-Jan-1994	11-Oct-2004	O&M Unit, Metagalli, O&M Sub Division, CESC, VV Mohalla	CESC
42	V.M. Petakar	13096		17-Feb-1971	21-Jan-1994	24-Sep-2004	O&M Rural Sub Division, HESCOM, Dharawad	HESCOM
43	Sripathi	13097		25-Dec-1955	1-Feb-1994	24-Sep-2004	O&M Division, GESCOM -2, Gulbarga	GESCOM
44	K. Channabasappa	13098		1-Jun-1964	11-Feb-1994	24-Sep-2004	MRT, KPTCL, Tumkur,	KPTCL
45	M.S. Manjegowda	13099		28-Dec-1964	17-Feb-1994	6-Oct-2004	CAD, Rural Sub Division, CESC, Chamundipuram	CESC
46	Nagaraja	13100		10-Mar-1972	19-Apr-1994	6-Oct-2004	O&M, USD, BESCOM, Chalkakere	BESCOM
47	K.Ramaraju	13102		21-Apr-1954	29-Jun-1994	28-Oct-2004	O&M S-1 Sub Division, BESCOM, Bangalore	BESCOM
48	Abdul Wazid Khan	13106		10-Jun-1963	6-Apr-1995	24-Sep-2004	Jayalakshimpuram Sec, O&M Sub Division, CESC, V.V.Mohalla	CESC



97

Seniority List as on 01.04.2014
Cadre: Asst.Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/promotion to the present cadre	Place of working	
49	Pushpa. N	13110		2-Jul-1975	15-Mar-1996	6-Nov-2004	O&M S-2, Sub Division, BESCOM, Bangalore.	BESCOM
50	K. Venugopal	13112		24-Dec-1967	29-Mar-1996	27-Sep-2004	RTSub Division, KPTCL Bellary	KPTCL
51	Suryakanth	13113		1-Dec-1955	21-May-1976	24-Sep-2004	O&M Division, BESCOM, Indira Nagar	BESCOM
52	H.J. Jayaprakash	13115		28-Apr-1970	27-Jun-1996	8-Nov-2004	Add.Division office, Office: CESC, Mandya	CESC
53	Purnachandra Tejaswi	13116		8-Mar-1963	28-Jun-1996	29-Sep-2004	O&M West Division, BESCOM, Bangalore	BESCOM
54	K.Purushothama	13117		22-Jul-1969	1-Jul-1996	27-Sep-2004	HotlineSub Division, KPTCL Peenya	KPTCL
55	E.Chowdegowda	13120		20-Jul-1968	10-Jul-1996	24-Sep-2004	66/11KV Sub Station, KPTCL, MUSS Yeldur	KPTCL
56	A.V. Parthasarathi	13123		18-May-1955	13-Jan-1978	15-Oct-2004	HT Rating Sub Division, BESCOM, Tumkur	BESCOM
57	K.N. Venkatesh	13124		26-Dec-1955	1-Jan-1997	25-Oct-2004	S-4 Sub Division, BESCOM, Bangalore	BESCOM
58	G.C. Shivananda Swamy	13127		12-Apr-1956	31-Mar-1980	26-Nov-2004	Major Works sub Division-3, KPTCL, Shimoga	KPTCL
59	V.I. Hegde	13131		2-Jul-1962	20-Mar-1986	27-Sep-2004	110 KV RS KPTCL Honnavar	KPTCL
60	V H Mathad	13133		22-May-1966	7-Mar-1986	27-Sep-2004	[Vishveshwara Nagar] Sec-1, O&M Sub Division, HESCOM, Hubli	HESCOM



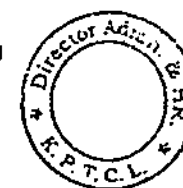
98

Seniority List as on 01.04.2014
Cadre: Asst.Engr.Elec.(Non-Grad)

KARNATAKA POWER TRANSMISSION CORPORATION LIMITED

Annexure-1

SL No.	Name of the Officer	PIN	Category	Date of Birth	Date of Entry into service	Date of officiating appointment by recruitment/ promotion to the present cadre	Place of working	
421	Virupakshappa H S	15816	SC	20-Jul-1972	30-Aug-2007	3-Nov-2012	O&M Sub Division, BESCOM, Bagepalli	BESCOM
422	Avinash	15817	SC	8-Dec-1984	30-Aug-2007	3-Nov-2012	O&M Sub Division, MESCOM Kapu	MESCOM
423	Suresh M	15818	SC	22-Jul-1970	30-Aug-2007	3-Nov-2012	O&M Sub Division, CESC, jayapura	CESC
424	Raju Rathod	15819	SC	1-Jun-1975	30-Aug-2007	3-Nov-2012	O&M Section, HESCOM, Ugar	HESCOM
425	Govindaraju E	15820	SC	9-Sep-1969	30-Aug-2007	3-Nov-2012	66/11 KV Sub Station, KPTCL, Sahakaranagar	KPTCL
426	Gopal Chatrappa Pujari	15821	SC	1-Jun-1980	30-Aug-2007	3-Nov-2012	O&M Sub Division, HESCOM, Guledgudda	HESCOM
427	Jagadish M	15822	SC	20-Jul-1979	30-Aug-2007	3-Nov-2012	O&M Sub Division, CESC, Yelandur	CESC
428	Sonu	15823	SC	22-Jul-1980	30-Aug-2007	3-Nov-2012	110 KV Sub Station, KPTCL Navanagar Bagalkote	KPTCL
429	Shankar Raju B.K.	15824	SC	30-Dec-1974	30-Aug-2007	3-Nov-2012	O&M N-1 Sub Division, BESCOM, Banagalore	BESCOM
430	Nagarathna G.M.	15825	SC	1-Jun-1976	30-Aug-2007	3-Nov-2012	110 KV Sub Station, KPTCL, Sanktapura	KPTCL
431	Hemavathi	15826	SC	7-Oct-1986	30-Aug-2007	3-Nov-2012	TC Sub Division, KPTCL, Shimoga	KPTCL
432	Gowramma G C	15827	SC	28-Jan-1971	30-Aug-2007	3-Nov-2012	O&M City Sub Division, BESCOM, Shidlagatta	BESCOM



KARNATAKA LOKAYUKTA

NO: LOK/INO/14-A/297/2011/ARE-3

Sub: Departmental enquiry against
Sri H.S.Manjunath, Assistant
Engineer (Elcl.), E-5 Sub-Division,
BESCOM, Lingarajanapuram, Bangalore
(Presently working at 220 KV Station,
KPTCL, Hosakote) - reg.,

Ref: 1) Order No. ಕವಿಪ್ರಸನ್ನ ಬಿ21 17314 2010-II,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 17/09/2011.

2) Nomination Order No: LOK/INO/14-A/
297/2011 Dated: 24/09/2011 of Hon'ble
Upalokayukta-1, Bangalore.

Dated: Order of Proceeding with the signature of the presiding Officer.

In pursuance of Government Order No. ಕವಿಪ್ರಸನ್ನ ಬಿ21 17314 2010-II,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 17/09/2011, the Disciplinary Authority i.e., the Director
(Admn., & H.R), KPTCL, Bangalore, the Nomination Order of the Hon'ble
Upalokayukta-1 vide Order No. LOK/Inq/14-A/297/2011, Dated:
24/09/2011 has nominated the Additional Registrar of Enquiries-3;
Karnataka Lokayukta, to conduct an inquiry against Sri H.S.Manjunath
under Regulation 14-A(1) a(i) of the Karnataka Electricity Board
Employees (Classification, Discipline, Control and Appeal)
Regulations, 1987

Original GO and copy of the records as noted in the index are
received.

Article of Charges prepared and sent to the DGO along with
annexures with a direction to the DGO to appear before this authority
in person on 05/10/2012 at 10.30 AM.

ARE-3



5/11/12

RA by PO

Byo by

For For

100

100

Byo. called out -
About. A.O.C. They
to Byo is in a red.
Have reminder to
do can be more to return
A.O.C. for mail that
by 05-11-2012

05-10-2012

5/11/12

RA by PO

Byo by

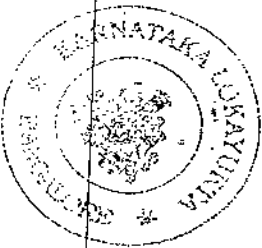
For For

Byo is present.

This first. Good Statement
is needed. He pleads,
and guilty and claims
to be acquainted with.

Donnelly State

In his presence of Byo -
called at 19-12-2012



9/12/12

RA by PO

Byo by

For For

For For

05-11-2012

Byo is present.

In his presence of

Byo finally by

04-02-12

10-12-12

(3) 101

KARNATAKA JOKAVUKTA

ENNO: 227/1411 of 2006

Sub:

WD (CPD) 100 parts of 100 515 each

Order of proceedings with the signature of the Presiding Officer

11/8/13

08/08/13

PO 1

08/08/13

08/08/13

PO 1

08/08/13

08/08/13

11/8/13

08/08/13

PO 1

08/08/13

08/08/13

PO 1



08/08/13

102

29/4

Date	Order or proceedings with the signature of the Presiding Officer
------	--

16/4/2013

DA by PO - point
 DGO by PDN - point
 FOR W/S

Handwritten signature

- D.G.O. point. The
 paper for adjunt
 is printed. W.S. not
 filed. Records are
 available for
 verification of
 records by 29
5

29/5/13

Handwritten signature

DA by PO - point
 DGO by PDN - point
 VOR - point
 = D.G.O. point.



= W.S. filed with
 application. Recd.
 Allowed. W.S. is
 taken on file.
 for evidence by 14
8

KARNATAKA LOKAYUKTA

EN No. 277/11 of 2006

Sub. _____

WD .GPB-100 pads of 100 shts. each

Date	Order or proceedings with the signature of the Presiding Officer
------	--

14/8/13

DA by PO point
Duo by PDN point
For elec

Mullig
14/8/13

= D. 4.0. point
= case as 27-11
②

27/11/13

DA by PO point
Duo by PDN point
For elec



5/2/14

DA by Po point

Mullig

Duo by PDN point
For evidence

= D. 4.0. point
= case as 19-5
②

Date

Order or proceedings with the signature of the Presiding Officer

19/5/14

DA by PO - joint
Dho by PDN - joint
For elec

- D.G.O. admit

- case on 3-7
C

8/7/14

DA by PO - joint
Dho by PDN - joint
For elec

- D.G.O. joint

- Issue 83 N (w-1)

- case on 16
2 9



16/9/14

DA by PO - joint

DGO by PDN - joint

for E

- D.G.O. joint

- cw-1 joint D.G.O.

and select line

- cw-1 b/o 17 6
case on 12

R.M. N

R.M. N

105 89

KARNATAKA LOKAYUKTA

EN No. 297/11 of 2006

Sub. _____

WD -GPB-100 pads of 100 shts. each

Date	Order or proceedings with the signature of the Presiding Officer.
------	---

17/12/11

DA by PO

DGO by PDR

joint
- ASmt.

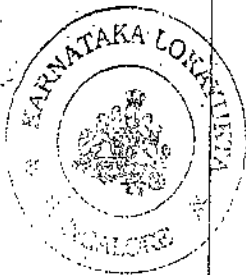
For chief of sec-1

= D. G. O. ASmt.

= W. I. ASmt.

= Reimbursement to W. I.

= call at 30/3 @



30/3/15

DA by PO

DGO by PDR

(SS-Amted)

(Evdt. gaur)

joint
- *joint*

= D. G. O. *joint*

= Reimbursement to

W. I.

= call at $\frac{9}{6}$

joint
30/3/11

106

297/14

Date	Order or proceedings with the signature of the Presiding Officer
------	--

9/6/15

DA by Po

Joint

- ASmt.

DA by PDV

(SS Aw Fed)

Crd of civl) - D. Go. Joint

- CW. 1 adult

- when conference on
phone, it is
found that he
my ally,
ⓐ

- letter 11-15-15
D. Go. Joint

- call on 23/7.
ⓐ



23/7/15

DA by Po

Joint

DA by PDV

Joint

(Crd. of civl)

D. Go. Joint

- CW. 1 adult

- letter 8/8-15

- call on 9-10
ⓐ

Mullay

9 161

KARNATAKA LOKAYUKTA

EN.No. _____ of 2006 _____

Sub. _____

297/11

WD -GPB-100 pads of 100 shts. each

Date	Order or proceedings with the signature of the Presiding Officer
------	--

9/10/15	DA by PO CGO by PDM (ord. of use) (SS not ret)
---------	---

22/11/15 = D.G. o. print
= Rel me to K.C.W. 1
= call m 22
= 1

22/11/16	DA by PO CGO by PDM (ord. of use) (SS not returned)
----------	--

22/11/16

K.M. 163

9036984/163

DA by PO
CGO by PDM
(ord. of use)
(SS not returned)

22/11/16
b/o. for K.C.W. 1
CGO 10/11/16
(2)



108

102 207/11

Date	Order or proceedings with the signature of the Presiding Officer
10/5/16 <i>Munley</i>	DA by PO. Dho Prant DGO by PON, Ch. about (evidence of wot) Rm 51st Ch by 18/7/16 <i>for</i> 10/5
18/7/2016 <i>K. M. V. V.</i> 9036984163 9482270902 <i>Munley</i>	DA by Po Dho Prant DGO by PON Ch. Examined in Part 18 PL For C.W-1 Ch Ex P₁ to P₃ Manual (Anat summary) For further Chaf Gardin by 2/8/16 <i>for</i> 18/7
2/8/16 <i>Munley</i> <i>K. M. V. V.</i> 2/8/16	DA by Po Dho Prant DGO by PON PL₁ is recalled & subjected For Further Chaf of P.W-1 further Chaf Examination (P.W-1 b/o) Ex P₄ & P₅ Manual For CLE of PL₁ 9/9/16 <i>for</i> 2/8



Sub. _____

WD. -GPB-100 pads of 100 shts. each

Date _____ Order or proceedings with the signature of the Presiding Officer

9/9/16

DA by Po
Duo by PDN
For C/E of P.W-1
(P.W-1 b/o)

Case Called for on 14/9/16

Duo absent

Renew SLS to Ch, by 14/11/16

DA by Po
Duo by PDN
For C/E of P.W-1
14/9/16

24/11/16

DA by Po
Duo by PDN
For C/E of P.W-1

Duo Present

Htr found about

Ch, about

Renew SLS to Ch, by

C/E of Ch, 30/12/16

30/12/16

DA by Po
Duo by PDN
For C/E of P.W-1

Duo Present

Htr found about

Renew SLS to Ch, to his present address

No. 1, 2nd Main, Channarayana

Hannur, Bangalore 43 by

20/3/17

for

2017

20/3/17
 PA by PA
 PA by PA

Deo Prasad
 CL, Prasad

Deo Prasad (Grand Dr. Deo Prasad)
 CL, Prasad (CL, Prasad)
 CL, Prasad (CL, Prasad)

Deo Prasad

CL, Prasad (CL, Prasad)
 CL, Prasad (CL, Prasad)
 CL, Prasad (CL, Prasad)

by 20/6/17

On

20/3

Deo Prasad

CL, Prasad (CL, Prasad)

CL, Prasad (CL, Prasad)

CL, Prasad (CL, Prasad)

3.12.17

On

20/6

Deo Prasad

CL, Prasad (CL, Prasad)

CL, Prasad (CL, Prasad)
 CL, Prasad (CL, Prasad)



16/8/2017
 PA by PA
 PA by PA

ಕದತರ ಸಂಖ್ಯೆ: ೨೧೨/೧೧

ಕರ್ನಾಟಕ ಮೋಪಾಯಕ್ಕೆ ಬೆಂಗಳೂರು

111

ಪುಟ ಸಂಖ್ಯೆ: 123

16/8/17

in m1-available for Service
also should want agent

CL 1/10/17

2 From 51st CL 2 by

3/11/17

1/6/18

03/11/2017

DA by PO

DO by PBN

For CLE of C-2

DEO Abstract

Sn PBN Prast

CL 1/10/17, Prast Prast

CL 1/10/17, Prast Prast

an he is getting from there

Legal Agency

CL 1/10/17, B10

9036984163

CL 1/10/17, Divided to appear before
Judicial on 4/12/17



CL 2 Prast Executed in Prast PBN

EXP 6 Month

CLE PBN define at the request

Sn PBN have found Prast on Prast
Prast 1/10/17 - by Prast 2

PL₂ Bangalore

CIE DPV₂ by 4/12/17

for 3/11.

[Signature]

R.V. Subramani

9649009803.

[Signature]
20/12/17

04/12/17 PA by PD

DND by PDN

for CIE of PW-2

DND about

Connd to DND Print

PL₂ Print received and

Sub-junct to CIE intell by Sri PDN

It deems Connd for DND.

W/O of Rs 1000/- Paid to CH, (PL₂)

on Per order dt- 20/3/2017.

2. Received 1000/- (one thousand Rupees)

K.M. NR

4/12/17



Deemed P.O. filed in application

Serial to name S/S to M.H. ^{Bangalore} ~~State~~

Police Contable, City Dinn

ಕಡತ ಸಂಖ್ಯೆ: 297/11

~~ದಿವ್ಯ ಹಂಪಿ~~
25/5/80
21/1/81

In P.D.N. Rajah & Co

Deputy & I.A.

P.D.N. Sent a copy of the
the records to all the
to the

2 days time for the appearance

deputy & I.A. to be

2 days PLS to P.D.N. to

6/1/18

for
2/1/12

Dear P.D.N.
the record P.D.N.

06/01/18
DA by P.D.N.
D.O. by P.D.N.
For C/E of P.D.N.
(S/S saved)



applied for C.E. to the Deputy

the C.E.

2. S.D.N. the Deputy

to P.D.N.

Heard the case P.D.N.

and also heard C.E. & S.D.N.

ಕರ್ನಾಟಕ ಮೋಕಾಯಾತ್ರೆ ಬೋರ್ಡ್

ಕಡತ ಸಂಖ್ಯೆ: 2-94/11

114

ಪಟ್ಟಿ ಸಂಖ್ಯೆ:

ಒಡಲಿನಲ್ಲಿ 2

~~Subramani~~

1449009803

CIE 2 PL 2 by

22/2/18

~~Subramani~~

6/1/18

for

6/1

22/2/2018

DA by Po

Deo Raut

Deo by PoN

Sn-PDN Raut

For CIE of PL 2

PL 2 Raut - Raut due to

~~Subramani~~

~~Subramani~~ 22/2/18

Subject himself for CIE. He is warned. At his request

He is bond over and directly to appear before this Authority

on 14/3/2018 a subject himself for Com Specimen without fail on that day



PL 2 B10

Order in O A by

14/3/18

for

22/2

ಕಡತ ಸಂಖ್ಯೆ:

Enq. No. 297-2011

14-3-2018

Deo about his bond about
 Orders on IA in Enq. No. 297-2011

DA by Po

Dno by PDN.1.

For orders on
 I.A.

This is a trap proceedings wherein the enquiry is in progress. The complainant has already been examined as PW1 and shadow witness has been examined in part as PW2 and the shadow witness is to be cross examined on behalf of the DGO. At this stage, learned Presenting Officer filed an application praying this authority to issue summons to one Sri M.H. Banna Police constable of Lokayukta Police, Bengaluru City Division as a witness on behalf of the disciplinary authority on the ground that, he had accompanied the complainant and shadow witness and he is an eye witness to the incident of demand and acceptance of bribe by the DGO and he is able to speak as to the manner in which DGO collected bribe amount from the complainant, through his subordinates.

2. The learned counsel for DGO opposed the prayer of the learned Presenting Officer contending that, PW2/shadow witness has turned hostile and did not support the case of the disciplinary authority in so far as materials particulars of the trap is concerned and this application came to be filed just to fill up the lacunae in the case of the disciplinary authority and requested this authority to reject the prayer made in the application.

3. I have heard the learned Presenting Officer and also learned counsel for DGO and perused the records. The trap mahazar has been marked as Ex-P5 and there is a mention at page no.9 of Ex-P5 that, M.H. Banna had also accompanied the complainant and shadow witness and he is the eye witness to the trap. There is a mention in the mahazar that, Sri M.H. Banna also narrated the happenings that was taken place when the complainant met the DGO and also the subsequent happenings taken place thereafter.



4. PW2 since failed to support the case of the disciplinary authority in respect of certain material particulars of the trap proceedings, the learned Presenting Officer wants to examine Sri M.H. Banna who is also an eye witness.

5. The learned counsel for DGO except contending that, the application is filed just to fill up the lacunae in the case of the disciplinary authority, did not contend any other grounds to oppose the prayer made in the application. Admittedly, the enquiry is still in progress and IO is yet to be examined during the course of enquiry. Since Sri M.H. Banna has been referred to as an eye witness in the trap mahazar Ex-P5, there is no impediment for summoning him as a witness in this enquiry and to examine him as a witness on behalf of the disciplinary authority. ~~The~~ DGO has got opportunity to cross examine him and to put forth his defence effectively even during the cross examination of the proposed witness.

6. Moreover, while serving AOC on the DGO in Annexure-III, it is clearly mentioned that, during the course of enquiry, examination of any other witnesses if felt necessary, the DGO will be intimated well in advance. Therefore, the disciplinary authority has reserved rights to summon any witnesses during the course of enquiry, if the examination of such additional witness is necessary, to prove the case of the disciplinary authority.

7. Since no prejudice will be caused to the DGO if additional witness as prayed for is summoned and examined in this enquiry and since the DGO has got right to cross examine that witness, I am of the considered opinion that, the prayer of the learned Presenting Officer can be



considered by allowing the application. filed seeking for issuing summons to an additional witness by name Sri M.H. Banna. Accordingly, I hold that, the application filed by the learned Presenting Officer deserves to be allowed and hence, I pass the following

ORDER

The IA filed on behalf of the disciplinary authority is allowed and permission is granted to summon Sri M.H. Banna, Police Constable, Karnataka Lokayukta City Division and to examine him in this enquiry as an additional witness.

[Signature]
ARE-3 14/3/18

Date: 14.03.2018

P_{h2} is recalled &

Signature to CIG by
Dr. P.D.V. to Local Council
for DHO

W/O 2410001-Ped to
P_{h2} as per order

dt- 4/12/17.

Given S/S to Sri
M.H. Banna. Police Constable
Then having at KLD City Div
by - *[Signature]*

[Signature]
Received by local
authority witness
Banna.

[Signature]
14/3/18

[Signature]
Adv. to B. 10
14/3/18



ಕಡತ ಸಂಖ್ಯೆ: 297/11

118

ಪುಟ ಸಂಖ್ಯೆ: 20

21/5/18

DA by PD

DA by PDN

For En: M.H. Banna

Deo Bant

the Comd Pnt

En M.H. Banna about

Thambi Sivas SLS

has tried to contact him
on phone he is not answering

has BLS specialist

En M.H. Banna for 20/11/18

by: 25/7/18

for
21/5

25/07/18

DA by PD

DA by PDN

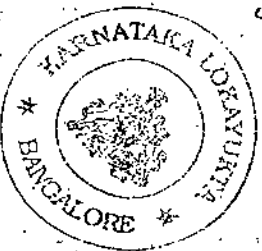
For En: M.H. Banna

Deo about

En PDN Bant

En M.H. Banna CPC Bant

for En: M.H. Banna



has contacted and phone he

placed him under BLS duty

has BLS duty En M.H. Banna

for 19/11/18

for

ಕಡತ ಸಂಖ್ಯೆ: 297/11

119

ಪುಟ ಸಂಖ್ಯೆ: 12

19/09/18

DA by PO

DO by PDN

FB 8/8-84 M.H. Banna

(Annot 8/10)

21/11/19
19/11/19
19/11/19

19/11/19

Deno Prud

Sri PDN Prud.

Sri PD. 14. Banna Prud

S. M.H. Banna Prud in Prud

as Pkz

At the request of Sri PDN

the CLE 2 Pkz depend on Prud 14 20/5001

Prud 810

For CLE 2003 by

20/10/18

21-3 PM

19/19



20/10/18

DA by PO

DA by PDN

For CLE 8/8-0-3

(8-0-3 8/10)

Deno about

Sri PDN Prud

Pkz is recalled and Subj. to

CLE by Sri PDN Prud

of Deno.

Rs 5001- in Prud & Pkz Prud

Prud 14 20/5001 in Prud

ಕಡತ ಸಂಖ್ಯೆ: 297/11

120

ಪುಟ ಸಂಖ್ಯೆ: 22

Revised Amount Rs. 500/-

(Signature)

30/11/18

Call on by 19/11/18

for

30/10

28/11/18
28/11/18
28/11/18

19/11/18

DA by P

DGO by P.D.N.

For Call on.

28/11/18

Deo Remit

Sri P.D.N. Remit.

Leave P.O. then Application

for order in view of

to three intimation

in the Application as additional

intimation.

Leave Count for P.D.N. Remit

to the office of J.A.



Signature to J.A. & to be seen

by 12/12/18

for

30/10

ಕಡತದ ಸಂಖ್ಯೆ: 297/11

ಪುಟ ಸಂಖ್ಯೆ 2.3

12/12/18

DA by PO

DA by P.D.N.

For objection to I.A.s

to hear

Deo Prod-

In P.D.N Prod Prop due

objection to I.A. & to hear

by 11/1/19

(Signature)

(Signature)

12/12

11/01/19

DA by PO

DA by P.D.N.

For objection to I.A.s

to hear

Deo ahead-

objection ahead-

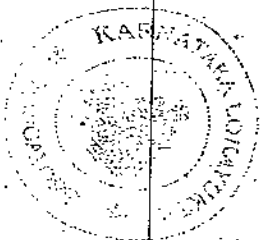
No objection

objection I.A. not filed

Heard to deo PO on

29/12

Order no 9 PO by 25/1/19



(Signature)

ಕಡತದ ಸಂಖ್ಯೆ: 247/11

122

ಪುಟ ಸಂಖ್ಯೆ: 62

25/01/2019

DA by go

DGO by P.D.N.

For orders on I.A.

DGO Present

This Council about

Objection to GA filed by the DGO.

Order for P.D.N.

order on I.A.

by 18/2/19

for

2511

[Signature]

18/02/19

DA by go

DGO by P.D.N.

For Orders on I.A.

DGO Present

This Council for P.D.N. Present

Order on I.A. filed by

the learned P.O. on behalf of

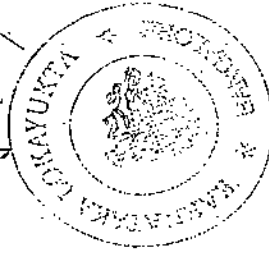
Disputing Authority, Seng Pannin

to Summon Certain Aged

Witnesses, is Proposed

an Order to follow order.

[Signature]



Orders on IA in Enq. No. 297-2011

1. This is a trap proceedings wherein the enquiry is in progress. The DGO is facing this enquiry on the allegation of demand for bribe of Rs. 10,000/- from the complainant and receiving the bribe amount through his subordinate official one Smt. Maheshwari T, who according to the case of the disciplinary authority, has received the tainted notes from the complainant as per the direction of the DGO.

2. The complainant, the shadow witness and one more witness Sri M.H. Banna, Police Constable have been examined as PWs 1 to 3 and the IO is yet to be summoned for his examination in this enquiry. In the meantime, the learned Presenting Officer files an application under Rule 11 (15) of KCS(CCA) Rules requesting for summoning 3 more witnesses viz., Smt. Maheshwari T.(overseer), Sri Azmathulla Khan (working as Junior Assistant/Cashier) and Sri K.M. Srinivasa (working as Gangman) (working in the O/o E-5 Sub-Division BESCO during the relevant period) for the purpose of examining them in support of the case of the disciplinary authority.

3. According to the learned Presenting Officer, as per the case of the disciplinary authority, the tainted money was received by one Smt. T. Maheshwari, overseer as per the instructions of the DGO and she having received the tainted amount from the

complainant consisting of 20 currency notes of Rs. 500/- denomination each, got it exchanged by giving the tainted notes

to Sri Azmathulla Khan, Cashier and on receiving Rs. 10,000/- consisting of 10 currency notes of Rs. 1000/- denomination each



in exchange of 20 currency notes of Rs. 500/- denomination each and she having got the tainted note exchanged with the cashier, gave that amount to Sri K.H. Srinivas, Gangmen. During the trap proceedings tainted notes of Rs. 10,000/- (consisting of 20 currency notes of Rs. 500/- denomination each) were recovered from Sri Azmathulla Khan, Cashier and the exchanged notes of Rs. 10,000/- (10 currency notes of Rs. 1000/- denomination each) were recovered from Sri K.H. Srinivas, Gangmen. It is the prayer of the learned Presenting Officer that, the evidence of these 3 witnesses are necessary to establish the charge against the DGO and requested this authority to treat them as additional witnesses and to summon them to examine them as witnesses in support of the case of the disciplinary authority.

4. The prayer of the learned Presenting Officer has been opposed on behalf of the DGO and learned counsel for DGO filed objections opposing the prayer made in the said application. The main contention taken to oppose the prayer of the learned Presenting Officer is that, the application is not maintainable under Rule 11(15) of KCS(CCA) Rules, as new evidence shall not be permitted or called for or any witness shall not be recalled to fill up the gap in the evidence. Such evidence may be called only when there is inherent lacuna or defect in the evidence which has been produced originally. It is further argued on behalf of the DGO that, the shadow witness since turned hostile, the learned Presenting Officer on seeking the permission of the enquiry officer, summoned Sri M.H. Banna a police constable and examined him as PW3 and no more witnesses are permitted to be



summoned except the witnesses cited in Annexure-III of the AOC and requested this authority to reject the prayer made in the IA.

5. I have heard the learned Presenting Officer and also Sri PDN, the learned counsel for DGO. As per the evidence so far adduced on behalf of the disciplinary authority, PW1 has stated in his evidence regarding circumstances which forced him to file complaint against DGO. Further, he has narrated that, he handed over the tainted notes to Smt. T. Maheshwari who received it from him as per the instructions of the DGO. Further, the tainted notes were recovered from the cashier and the exchanged notes were recovered from Sri K.H. Srinivas. Therefore, how the tainted notes came to the possession of the cashier and exchanged notes came to the possession of Sri K.H. Srinivas will have to be explained by the disciplinary authority by adducing supporting evidence.
6. My learned predecessor while issuing AOC, has not included these 3 witnesses as witnesses in Annexure-III of the AOC. Considering the grounds made out by the learned Presenting Officer in the IA, I feel it is just and necessary to provide full opportunity to both the parties to establish their respective contentions during the enquiry. By allowing the disciplinary authority to examine these 3 additional witnesses, opportunity will have to be given to establish the charges against the DGO and even the DGO will get opportunity to cross examine these witnesses to establish his innocence and his defence contention in this enquiry.



128

7. While serving AOC on the DGO in Annexure-III, it is clearly mentioned that, during the course of enquiry, examination of any other witnesses if felt necessary, the DGO will be intimated well in advance. Therefore, the disciplinary authority has reserved rights to summon any witnesses during the course of enquiry if the examination of such additional witness is necessary, to prove the case of the disciplinary authority.
8. Since no prejudice will be caused to the DGO if additional witnesses as prayed for is summoned and examined in this enquiry and since the DGO has got right to cross examine those witnesses, I am of the considered opinion that, the prayer of the learned Presenting Officer can be considered by allowing the application filed seeking for issuing summons to additional witnesses.
9. Further Rule 11(15) of KCS(CCA) Rules provides for producing additional evidence when the enquiry is in progress. It is true that, Rule 11(15) of KCS(CCA) Rules permits the Presenting Officer to bring in new evidence if there is any inherent lacuna in the evidence already produced by the disciplinary authority that too, during the course of enquiry. The enquiry is still in progress wherein, the IO Sri Krishnappa, the then Police Inspector is still to be summoned and examined. Hence, since the evidence of the disciplinary authority is not yet completed and the enquiry is in progress, there is no impediment to summon the additional witnesses as prayed for by the learned Presenting Officer to examine them on behalf of the disciplinary authority in this enquiry.



10. The note provided to Rule 11(15) of KCS(CCA) Rules specifically provides that, such evidence/additional evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally. But, there is no condition as provided in the note, as to when such evidence/additional evidence can be produced. Therefore, I am of the considered opinion that, in order to arrive at a just conclusion in this enquiry, in order to appreciate the case of the disciplinary authority, I feel it is just and necessary to consider the prayer of the learned Presenting Officer in summoning the 3 additional witnesses as prayed for in the IA.

11. Having regard to the discussions made above, I proceed to pass the following:

ORDER

- Applications filed seeking to summon the 3 additional witnesses cited in the IA, to examine them as witnesses on behalf of the disciplinary authority, is hereby allowed.
- As per the prayer made in the IA, summons are hereby ordered to be issued summoning Smt. Maheshwari (overseen), Smt. Azmatullah Khan (working as Junior Assistant Cashier) and Smt. K.M. Srinivasal (working as Gangman) working in the O/S P.S. Sub-Div. Smt. BESSCOM during the relevant periods to examine them as additional witnesses on behalf of the disciplinary authority in this enquiry.



ARD-3-181219

Shri S. S. Smt. Maheshwari - T.

Overseen, Bangalore - T.

Approved by BESSCOM, Smt. Sub Division

ಕರ್ನಾಟಕ ರೋಕಾಯುಕ್ತ, ಬೆಂಗಳೂರು

ಕಡತ ಸಂಖ್ಯೆ: 297/11

178

ಪುಟ ಸಂಖ್ಯೆ: 137



Lingappa Purna Bapalve

by 4/4/19

for

1812--

This document is referred to as
Exhibit 11/178
in the
Investigation of the
Commissioner
of the
Karnataka Lokayukta

72

Orders on IA in Enq. No. 297-2011

1. This is a trap proceedings wherein the enquiry is in progress. The DGO is facing this enquiry on the allegation of demand for bribe of Rs. 10,000/- from the complainant and receiving the bribe amount through his subordinate official one Smt. Maheshwari .T, who according to the case of the disciplinary authority, has received the tainted notes from the complainant as per the direction of the DGO.
2. The complainant, the shadow witness and one more witness ~~Sri M.H. Banna, Police Constable~~ have been examined as PWs 1 to 3 and the IO is yet to be summoned for his examination in this enquiry. In the meantime, the learned Presenting Officer files an application under Rule 11 (15) of KCS (CCA) Rules requesting for summoning 3 more witnesses viz., Smt. Maheshwari .T (overseer), Sri. Azmathulla Khan (working as Junior Assistant/Cashier) and Sri. K.M. Srinivasa (working as Gangman) (working in the O/o E-5 Sub-Division, BESCOM during the relevant period) for the purpose of examining them in support of the case of the disciplinary authority.
3. According to the learned Presenting Officer, as per the case of the disciplinary authority, the tainted money was received by one Smt. T. Maheshwara, overseer as per the instructions of the DGO and she having received the tainted amount from the complainant consisting of 20 currency notes of Rs. 500/- denomination each, got it exchanged by giving the tainted notes to Sri. Azmathulla Khan, Cashier and on receiving Rs. 10,000/- existing of 10 currency notes of Rs. 1000/- denomination each in exchange of 20 currency notes of Rs. 500/- denomination each and she having got the tainted note exchanged with the cashier, gave that amount to Sri. K.H. Srinivas, Gangman. During the trap proceedings tainted notes of Rs. 10,000/- (consisting of 20 currency notes of Rs. 500/- denomination each) were recovered from Sri. Azmathulla Khan, Cashier and the exchanged notes of Rs. 10,000/- (10 currency notes of Rs. 1000/- denomination each) were recovered from Sri. K.H. Srinivas, Gangmen. It is the prayer of the learned presenting Officer that, the evidence of theses 3 witnesses are necessary to

establish the charge against the DGO and requested this authority to treat them as additional witnesses and to summon them to examine them as witnesses in support of the case of the disciplinary authority.

4. The prayer of the learned Presenting Officer has been opposed on behalf of the DGO and learned counsel for DGO filed objections opposing the prayer made in the said application. The main contention taken to oppose the prayer of the learned Presenting Officer is that, the application is not maintainable under Rule 11 (15) of KCS (CCA) Rules, as new evidence shall not be permitted or called for or any witness shall not be recalled to fill up the gap in the evidence. Such evidence may be called only when there is inherent lacuna or defect in the evidence which has been produced originally. It is further argued on behalf of the DGO that, the shadow witness since turned hostile, the learned Presenting Officer on seeking the permission of the enquiry officer, summoned Sri. M.H. Banna a police constable and examined him as PW3 and no more witnesses are permitted to be summoned except the witnesses cited in Annexure-III of the AOC and requested this authority to reject the prayer made in the IA.
5. I have heard the learned Presenting Officer and also Sri. PDN, the learned counsel for DGO. As per the evidence so far adduced on behalf of the disciplinary authority PW1 has stated in his evidence regarding circumstances which forced him to file complaint against DGO. Further, he has narrated that, he handed over the tainted notes to Smt. T. Maheshwari who received it from him as per the instructions of the DGO. Further, the tainted notes were recovered from the cashier and the exchanged notes were recovered from Sri. K.H. Srinivas. Therefore, how the tainted notes came to the possession of the cashier and exchanged notes came to the possession of Sri. K.H. Srinivas will have to be explained by the disciplinary authority by adducing supporting evidence.
6. My learned predecessor while issuing AOC, has not included these 3 witnesses as witnesses in Annexure-III of the AOC. Considering

the grounds made out by the learned Presenting Officer in the IA, I feel it is just and necessary to provide full opportunity to both the parties to establish their respective contentions during the enquiry. By allowing the disciplinary authority to examine these 3 additional witnesses opportunity will have to be given to establish the charges against the DGO and even the DGO will get opportunity to cross examine these witnesses to establish his innocence and his defence contention in this enquiry.

7. While serving AOC on the DGO in Annexure-Hi, it is clearly ~~mentioned that~~, during the course of enquiry, examination of any other witnesses if felt necessary, the DGO will be intimated well in advance. Therefore, the disciplinary authority has reserved rights to summon any witnesses during the course of enquiry if the examination of such additional witness is necessary, to prove the case of the disciplinary authority.
8. Since no prejudice will be caused to the DGO if additional witnesses as prayed for is summoned and examined in this enquiry and since the DGO has got right to cross examine those witnesses, I am of the considered opinion that, the prayer of the learned Presenting Officer can be considered by allowing the application filed seeking for issuing summons to additional witness.
9. Further Rule 11(15) of KCS (CCA) Rules provides for producing additional evidence when the enquiry is in progress. It is true that, Rule 11(15) of KCS (CCA) Rules permits the Presenting Officer to bring in new evidence if there is any inherent lacuna in the evidence already produced by the disciplinary authority that too, during the course of enquiry. The enquiry is still in progress wherein, the IO Sri. Krishnappa, the then Police Inspector is still to be summoned and examined. Hence, since the evidence of the disciplinary authority is not yet completed and the enquiry is in progress, there is no impediment to summon the additional witnesses as prayed for by the learned Presenting Officer too

examine them on behalf of the disciplinary authority in this enquiry.

10. The note provided to Rule 11(15) of KCS (CCA) Rules specifically provides that, such evidence/additional evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally. But there is no condition as provided in the note, as to when such evidence/additional evidence can be produced. Therefore I and of the considered opinion that, in order to arrive at a just conclusion in this enquiry, in order to appreciate the case of the disciplinary authority, I feel it is just and necessary to consider the prayer of the learned Presenting Officer in summoning the 3 additional witnesses as prayed for in the IA.

11. Having regard to the discussions made above I proceed to pass the following

ORDER

- a) Applications filed seeking to summon the 3 additional witnesses cited in the IA, to examine them as witnesses on behalf of the disciplinary authority, is hereby allowed.
- b) As per the prayer made in the IA, summons are hereby ordered to be issued summoning Smt. Maheshwari .T (overseer), Sri. Azmathulla Khan (working as Junior Assistant/Cashier) and Sri. K.M. Srinivasa (working as Gangman) (working in the O/o. E-5, Sub-Division, BESCOM during the relevant period) to examine them as additional witnesses on behalf of the disciplinary authority in this enquiry.

To:

The Director (A & HRD),
Karnataka Power Transmission Corporation Limited,
Corporate Office, Kaveri Bhavan,
Bengaluru-09.

Sub: Consideration of promotion of Sri H.S. Manjunatha from Assistant Engineer (Ele) to Assistant Executive Engineer (Ele)-reg.

**Ref: 1. Promotion Order No: KPTCL/B57/41315/2013-14 dated 19.09.2013,
2. DPC dated 26.07.2013,
3. Hon'ble Court order dated 23.11.2017.**

With reference to above subject, I have been working as Assistant Engineer (Ele) since from the year 2003. In view of my Seniority as in the Seniority List in between Sri. D.N Neelashetty, PIN NO 12201 and Sir T. Subramanya, PIN NO.12206, I was entitled to Promotion to the post of Assistant Executive Engineer (Ele) with effect from 19-09-2013 by opening sealed cover which was kept on DPC Meeting dated 26.07.2013 on the day on which my Junior was promoted as Assistant Executive Engineer (Ele).

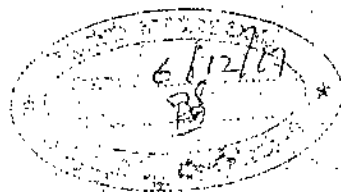
Since, the Hon'ble court has discharged me by ordered dated 23.11.2017, I am entitled to Promotion to the post of Assistant Executive Engineer (Ele) with effect from 19-09-2013. (The copy of the court order is enclosed).

In view of the Notification of Government of Karnataka and the decision of the Hon'ble Supreme Court, even the pendency of case will not come in the way of promotion. Since, no case is pending against me in any Criminal Court.

I am entitled to be promoted to the post of Assistant Executive Engineer (Ele) with effect from 19.09.2013, which may kindly be given effect with entire back benefits.

I would like to request you to consider my application for promotion w.e.f 19.09.2013 and kindly oblige.

Thanking You Sir,



Yours faithfully,

(H.S. MANJUNATHA)

Assistant Engineer (Ele), PIN 12204,
BESCOM, Bommanahalli Unit,
S-8 Sub-Division, HSR, Division,

Date: 6.12.2017

This documents is referred to as
Annexure _____ in the
 affidavit submitted by Sri. H.S.

Deputy Commissioner

TCL

ನಿರ್ದೇಶಕರು (ಆ ಮತ್ತು ಮಾ. ಸಂ),
ಕೆ.ವಿ.ಪ್ರಸಿ.ನಿ. ಕಾವೇರಿ ಭವನ,
ಬೆಂಗಳೂರು.

ಲಗತ್ತಿ-7

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಸಹಾಯಕ ಅಭಿಯಂತರ (ಎ) ನಿಂದ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ
ಅಭಿಯಂತರ(ಎ) ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ನೀಡುವ ಬಗ್ಗೆ.

- ಉಲ್ಲೇಖ (1): ವಿಶೇಷ ನ್ಯಾಯಾಲಯದ ಸಿಸಿ ಸಂಖ್ಯೆ 286/10 ಆದೇಶ ದಿನಾಂಕ: 23.11.2017
(2): ಪದೋನ್ನತಿ ಆದೇಶ ಸಂಖ್ಯೆ ಕೆ.ವಿ.ಪ್ರಸಿ.ನಿ/ಬಿ57/41315/2013-14/19.9.13
(3): ಡಿಪ್ಟಿ ದಿನಾಂಕ: 26.7.13
(4): ಐ. ಎಂ. ನಾಗಯ್ಯ & ಶ್ರೀ ವಿ. ವೆಂಕಟಾಶಿವಾರದ್ವರಿವರ ಪದೋನ್ನತಿ ಆದೇಶ
ಸಂಖ್ಯೆ ಕೆವಿಪ್ರಸಿ.ನಿ/ಎಸ್.ಎ-3/26266/2011-12/30.03.2012
(5): ಉಪಲೋಕ-1/ಡಿಇ/269/2011/21.09.11
(6): ಲೋಕಯುಕ್ತ ಪತ್ರ ಸಂಖ್ಯೆ: ಲೋಕ/ಎಸ್.ಪಿ-2/ಆರ್.ಟಿ.ಐ-ಎ-
50/2014/1/7/14
(7): ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ: ಒಇ/95/ಷೂನಿಪ/2003/30.7.2005
(8): ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಪ್ರತಿಗಳು.

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ತಮ್ಮಲ್ಲಿ ಅರಿಕೆ ಮಾಡಿಕೊಳ್ಳುವುದೇನೆಂದರೆ, ನಾನು
ಸುಮಾರು 30 ವರ್ಷಗಳಿಂದ ಒಂದೇ ಒಂದು ಪದೋನ್ನತಿ ಹೊಂದಿ ಸಹಾಯಕ ಅಭಿಯಂತರನಾಗಿ
ಕಾರ್ಯನಿರ್ವಹಿಸುತ್ತಿದ್ದು, ನನ್ನ ಸೇವಾ ಹಿತನದ ಪಟ್ಟಿ ಪ್ರಕಾರ ಶ್ರೀ ಡಿ. ಎನ್. ನೀಲ ಶೆಟ್ಟಿ (ಪಿನ್
ಸಂಖ್ಯೆ: 12201) ಹಾಗೂ ಟಿ. ಸುಬ್ರಮಣ್ಯ ಪಿನ್ ಸಂಖ್ಯೆ: 12206 ಇವರ ಮಧ್ಯೆ ಇದ್ದು ಈಗಾಗಲೇ
ಇವರುಗಳಿಗೆ ಉಲ್ಲೇಖ (2)ರನ್ವಯ ದಿನಾಂಕ: 19/09/2013ರಂದು ಪದೋನ್ನತಿ ನೀಡಲಾಗಿದೆ.
ಹಾಗೆಯೇ ನನ್ನ ಪದೋನ್ನತಿಯನ್ನು ಬಾಕಿ ಇರಿಸಿ ದಿನಾಂಕ: 26.07.2013ರಂದು ಮುಚ್ಚಿದ
ಲಕೋಟೆಯಲ್ಲಿ ಇರಿಸಲಾಗಿದೆ. (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ).

ಉಲ್ಲೇಖ (1)ರ ಪ್ರಕಾರ ದಿನಾಂಕ 23.11.2017 ರಂದು ಮಾನ್ಯ ವಿಶೇಷ ನ್ಯಾಯಾಲಯದ (ಸಿಸಿ
ಸಂಖ್ಯೆ: 286/10) ಆದೇಶದ ಪ್ರಕಾರ ನನ್ನ ಪ್ರಕರಣವನ್ನು ವಜಾಗೊಳಿಸಿದೆ (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ).

ಉಲ್ಲೇಖ (5)ರನ್ವಯ ಶ್ರೀಯುತ ಐ. ಎಂ. ನಾಗಯ್ಯ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಭಿಯಂತರರು
(ಎ)ರವರ ಇಲಾಖೆ ವಿಚಾರಣೆ ಲೋಕಯುಕ್ತ ಕಛೇರಿಯಲ್ಲಿ ದಿನಾಂಕ: 20.09.2011 ರಿಂದ ಬಾಕಿ
ಇದ್ದು ದಿನಾಂಕ: 20.10.2015 ರಂದು ಮುಕ್ತಾಯಗೊಂಡು, ಅಂತಿಮ ಆದೇಶವು ದಿನಾಂಕ:
13.02.2017ರಂದು ಬಂದಿರುತ್ತದೆ. ಆದಾಗ್ಯೂ ಉಲ್ಲೇಖ (4)ರನ್ವಯ ದಿನಾಂಕ 30/03/2012ರಲ್ಲಿ
ಪದೋನ್ನತಿ ನೀಡಲಾಗಿದೆ. (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ).



135
ಉಲ್ಲೇಖ (6)ರನ್ವಯ ಮಾನ್ಯ ಲೋಕಾಯುಕ್ತರವರು ಮಾಹಿತಿ ಹಕ್ಕು ನಿಯಮದಡಿ ದಿನಾಂಕ: 17.09.2014 ರಂದು ನೀಡಿದ್ದು, ಶ್ರೀಯುತ ವಿ. ವೆಂಕಟಾಶಿಪಾರೆಡ್ಡಿ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಭಿಯಂತರರು (ಎ) ದಕ್ಷಿಣ ರವರ ಪ್ರಕರಣ ಸಂಖ್ಯೆ: 133/2012 ವಿಶೇಷ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ವಿಚಾರಣೆಯಲ್ಲಿರುತ್ತದೆ ಎಂದು ಸ್ಪಷ್ಟವಾಗಿ ತಿಳಿಸಿದಾಗ್ಯೂ ಸದರಿಯವರಿಗೆ ಉಲ್ಲೇಖ (4)ರನ್ವಯ ದಿನಾಂಕ 30/03/2012ರಂದು ಪದೋನ್ನತಿ ನೀಡಲಾಗಿದೆ (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ).

ಉಲ್ಲೇಖ (7)ರನ್ವಯ ಶ್ರೀಯುತ ಕೆ. ಬಿ. ಬೆಟ್ಟೇಗೌಡ, ಎ.ಸಿ.ಪಿ. ವಿಧಾನಸೌಧ ಇವರ ಕ್ರಿಮಿನಲ್ ಮೊಕದ್ದಮೆ ಸಂಖ್ಯೆ: 437/2002 ವಿಶೇಷ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಬಾಕಿ ಇದ್ದು, ನಿಬಂಧನೆಗಳೊಂದಿಗೆ ದಿನಾಂಕ: 30.07.2005ರಲ್ಲಿ ಮಾನ್ಯ ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಒಳಾಡಳಿತ ಇಲಾಖೆ (ಪೊಲೀಸ್ ಸೇವೆಗಳು)ರವರು ಪದೋನ್ನತಿ ಆದೇಶ ನೀಡಿರುತ್ತಾರೆ (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ).

ಉಲ್ಲೇಖ (8)ರನ್ವಯ ಇದೇ ರೀತಿಯ ಬೇರೆ ಬೇರೆ ಪ್ರಕರಣಗಳಿಗೆ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ಬೇರೆ ಬೇರೆ ಆದೇಶಗಳನ್ನು ನೀಡಿದ್ದು, ಸದರಿ ಆದೇಶಗಳ ಪ್ರತಿಗಳನ್ನು ಉತ್ತರಿಸಲಾಗಿದೆ.

ಆದ್ದರಿಂದ ಖಾವಂದಿರಾದ ತಾವುಗಳು ದೊಡ್ಡ ಮನಸ್ಸು ಮಾಡಿ ನನ್ನ ಅರ್ಜಿಯನ್ನು ಪರಿಗಣಿಸಿ ಮೇಲ್ಕಾಣಿಸಿದ ಎಲ್ಲಾ ಆಧಾರಗಳ ಮೇಲೆ ಮತ್ತು ಶ್ರೀಯುತ ಐ. ಎಂ. ನಾಗಯ್ಯನವರಿಗೆ ಬಳಕೆಯಾದ ಮಾನ ದಂಡಗಳನ್ನು ಅನುಸರಿಸಿ ನನಗೂ ಸಹ ಸಹಾಯಕ ಅಭಿಯಂತರ (ಎ) ನಿಂದ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಭಿಯಂತರ (ಎ) ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ನೀಡಬೇಕೆಂದು ತಮ್ಮಲ್ಲಿ ಕಳಕಳಿಯಿಂದ ವಿನಂತಿಸಿಕೊಳ್ಳುತ್ತಿದ್ದೇನೆ.

ದಿನಾಂಕ: 11.1.2018
ಗುಣಗುರು

ಇಂತೀ ತಮ್ಮ ವಿಶ್ವಾಸಿ
(ಹೆಚ್. ಎಸ್. ಮಂಜುನಾಥ್)
ಸಹಾಯಕ ಅಭಿಯಂತರ (ಎ)

This document is referred to as
Annexure _____ in the
Affidavit submitted by _____
Commissioner

135

ಸಿ.ಎಮ್.ರವಿಚಂದ್ರ ಸಂಖ್ಯೆ (ಸಿ.ಬಿ.ಎಸ್.) : 40/1098/ವಿ/1999/ಎಸ್.ಜಿ.ಎಂ.25521

21

30 OCT 2018

ವಿವರಣೆ ಸಹಾಯಕ ಕೃಷಿಯರ್ಥ ಪದವ್ಯಾರ್ಥ ಹುದ್ದೆಯಿಂದ
ಸೇವಾನ್ವಿತರು (ಎ) ಪದವ್ಯಾರ್ಥ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ +

பெரிய

29

10

2015

ಮೌನ್ಯ ಸ್ಥಾಯಿಗಳಾಯ್ದು ಹಿರಾಂಕ ೨೩:೫೭೦'೭" ಆದ್ದರಿಂದ ವಿರುದ್ಧ ನಿಗಮಿತು.
ಮೌನ್ಯ ಕನಾಟಾಕಿ ರಿಕ್ಟಿಸ್ಕೋಯಿಗಳಾಯ್ದರಿಂದ ಪ್ರಮಾಣ ರಿಕ್ಟಿಸ್ಕಾ ಅಪ್ಪೇ ಡಿಲಿವರ/ಇಂಟರ್‌ಪ್ಲಿ
ಮೌಲ್ಯನಿರ್ದಯನ್ಯ ಸೆಕ್ಷನಲಾಗಿರುತ್ತದೆ. ಹಾನಿ ಈ ಹೆಚ್ಚಿನ ಮುಂದುವರಿದು ಸಂಕಂ (ವಿಡ್‌ಲಿ) ಇವರ
ಇವರ ವಿರುದ್ಧ ಇಲಾಖಾ ವಿಚಾರಣೆ ಜಾರಿ ಇರುತ್ತದೆ.

13

ಇಲಾಖಾ ವಿಚಾರಣಾ ಕ್ರಮಾನುಸಾರ ಮೂಕಬ್ಬೆಮಾ ಎದುರಿಸುತ್ತಿರುವ ಸರ್ಕಾರಿ ನೌಕರರನ್ನು ಮುಂಬಡ್ತಿಗೆ ಪರಿಗಣಿಸುವಾಗಲೇ ಮೂಕಬ್ಬೆಮಾ ಎದುರಿಸುವ ಬಗ್ಗೆ ಸರ್ಕಾರದ ದಿನಾಂಕ 14-07-1993ರ ಅಧಿಕೃತ ಕಾರ್ಯದಲ್ಲೂ ಸೂಚನೆಗಳನ್ನು ನೀಡಲಾಗಿದೆ. ಅದನ್ನು ನಿಗಮವು ದಿನಾಂಕ 21-12-2000ರ ಆದೇಶದಲ್ಲೂ ಅಳವಡಿಸಿಕೊಂಡಿರುತ್ತದೆ. ಅವರ ಬುದ್ಧಿ ಭಾಗ ಈ ರೀತಿ ಇರುತ್ತದೆ.

Where a departmental enquiry or court proceedings is pending the following course of action shall be taken:

The departmental promotion committee shall assess the suitability of the officer/official for promotion without taking into consideration the disciplinary proceedings/court proceedings pending against the officer/official. The assessment on the basis of records, the view of the DPC shall be kept in a sealed cover. In the subsequent DPC's also, if any, during the period of disciplinary/court proceedings, the DPC shall consider the officer's/ official's case and record its findings which will again be kept in a sealed cover in the above manner.

On the conclusion of the disciplinary/court proceedings and in case the officer/official is exonerated, the sealed cover or covers may be opened and the earliest possible date of promotion but for the pendency of the disciplinary/court proceedings against him/her may be determined with reference to the position assigned to him/her in the findings in the sealed cover/covers with reference to date of promotion of his/her junior on the basis of such position. The officer/official concerned may be promoted in accordance with rules if necessary by reverting the junior most officiating person.

If any penalty is imposed on the officer as a result of the disciplinary proceedings or if he is found guilty in the court proceedings, the findings in the sealed cover shall not be acted upon. The officer's case for promotion may be considered in the usual manner by the next DPC which meets in the normal course after conclusion of the disciplinary/court proceedings.

ಆದ್ದರಿಂದ, ಶ್ರೀ ಹೆಚ್.ಎನ್.ಮಂಜುನಾಥ, ಬಿ.ಐ.ಎನ್ 12204, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) ಆದ ನೀಮ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್), ಬೆದವುಂದದ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ಪರಿಗಣಿಸುವಂತೆ ಕೋರಿರುವ ಉಲ್ಲೇಖ(2)ರ ಮನವಿಗಳನ್ನು ಈ ಮೇಲೆ ವಿವರಿಸಿದ ಕಾರಣಗಳಿಂದ ಪ್ರಸ್ತುತ ಮರಸ್ಟರಿನಲ್ಲಿ ಅವಕಾಶವಿರುವುದಿಲ್ಲ ಎಂಬ ಮತಾಂತರವನ್ನು ಈ ಮೂಲಕ ಪ್ರಸ್ತುತಗೊಳಿಸಿ ಕೇರಲಾಗಿದೆ.

ನಿರ್ದೇಶಕರ ಕಛೇರಿ, ತಾ.ಪುತ್ತೂರು, ಮೊ.ನಂ. ಕೆ.ವಿ.ಪ್ರಸನ್ನ

ಶ್ರೀ ಹೆಚ್.ಎನ್.ಮಂಜುನಾಥ, ಬಿ.ಐ.ಎನ್ 12204, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್), ಕಾರ್ಯ ಮತ್ತು ಪಾಲನೆ, ಕೆ.ಎಂ. ಪೂರ್ವ, ಬೆದವುಂದದ ಕಾರ್ಯ, ವಿದ್ಯುತ್, ಸರಬರಾಜು ನಿಗಮ ನಿರಯಾತ್ ಬೆಂಗಳೂರು.

ನೋಂದಾಯಕ ಮೂಲಕ ಅಂಚೆ ಸ್ವೀಕೃತಿ

This document is returned to the

Annex

138

ದಿನಾಂಕ 30.10.2018

ಕ್ರ.ಸಂ. 1257/71502/2018-18

ಹಿಂಬರಹ

ವಿಷಯ: ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ ಪದವ್ಯದ ಹುದ್ದೆಯಿಂದ ಸ.ಕಾ.ನಿ.ಇಂ.(ವಿ)

ಪದವ್ಯದ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ಪರಿಗಣಿಸುವಂತೆ ಕೋರಿರುವುದರ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: 1. ನಿಗಮದ ಆದೇಶ ಸಂಖ್ಯೆ ಕವಿಪ್ರನಿನಿ/ಬ37/4419/ಎಸ್.ಎ3/ಬ21/ಬ16/6594/
85-86 ದಿನಾಂಕ 21.12.2001.

2. ಶ್ರೀ ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ ಅವರ ಮನವಿ ದಿನಾಂಕ 11.01.2018 ಹಾಗೂ 12.09.2018

ಶ್ರೀ ಹೆಚ್.ಎಸ್. ಮಂಜುನಾಥ, ಪಿಎಎನ್ 12204, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್), ಕಾರ್ಯ ಮತ್ತು ವಾಲನ್ 8ನೇ ಪೂರ್ವ ಉಪವಿಭಾಗ, ಬೆವಿಕ, ಬೆಂಗಳೂರು ಇವರು ಉಲ್ಲೇಖ (2) ರ ಮನವಿ ಪತ್ರದಲ್ಲಿ, ಮಾನ್ಯ ವಿಶೇಷನ್ಯಾಯಾಲಯ, ಬೆಂಗಳೂರು ಸಿಸಿ ಸಂಖ್ಯೆ 286/10 ದಿನಾಂಕ 13.02.2017ರ ಆದೇಶದಲ್ಲಿ ತನ್ನ ವಿರುದ್ಧ ಹೂಡಲಾದ ಪ್ರಕರಣವನ್ನು ವಜಾಗೊಳಿಸಿದ್ದು ಮತ್ತು ಇಲಾಖಾ ವಿಚಾರಣೆ ಹೊರತುಪಡಿಸಿ ಯಾವುದೇ ಪ್ರಕರಣ ಬಾಕಿ ಇರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) ಪದವ್ಯದ ಹುದ್ದೆಗೆ ದಿನಾಂಕ 19.09.2013 ರಿಂದ ಪೂರ್ವಾನುಯಾಯಿ ಪದೋನ್ನತಿ ನೀಡುವಂತೆ ಕೋರಿರುವ ಉಲ್ಲೇಖ (2)ರ ಮನವಿಗಳನ್ನು ನಿಗಮದ ನಿಯಮ/ಆದೇಶಗಳ ಅಡಿಯಲ್ಲಿ ಪರಿಶೀಲಿಸಲಾಗಿದೆ.

ಶ್ರೀ ಹೆಚ್.ಎಸ್. ಮಂಜುನಾಥ, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್)ರವರ ವಿರುದ್ಧ ಬೆಂಗಳೂರು ನಗರ ಲೋಕಾಯುಕ್ತ ಪೊಲೀಸ್ ಠಾಣೆಯಲ್ಲಿ ದಾಖಲಾಗಿದ್ದ ಟ್ರಾಪ್ ಪ್ರಕರಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಬೆಂಗಳೂರು ನಗರ ಲೋಕಾಯುಕ್ತ ಪೊಲೀಸರು, ಮಾನ್ಯ 77ನೇ ಹೆಚ್ಚುವರಿ ನಗರ ಸಿವಿಲ್ ಮತ್ತು ಸತ್ರ ನ್ಯಾಯಾಧೀಶರು ಮತ್ತು ವಿಶೇಷ ನ್ಯಾಯಾಧೀಶರು, ಬೆಂಗಳೂರು ಇಲ್ಲಿ ವಿಶೇಷ ಪ್ರಕರಣ ಸಂಖ್ಯೆ 286/2010ರಲ್ಲಿ ಮೊಕದ್ದಮೆಯನ್ನು ದಾಖಲಿಸಿದ್ದು, ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಪ್ರಕರಣವನ್ನು ಪರಿಶೀಲಿಸಿ, ದಿನಾಂಕ 23.11.2017ರ ತೀರ್ಪಿನಲ್ಲಿ ನಿರ್ದೇಶಕರು (ಆ&ಮಾ.ಸಂ), ಕವಿಪ್ರನಿನಿ, ಬೆಂಗಳೂರು ರವರು ನೀಡಿರುವ ಅಭಿಯೋಜನಾ ಮಂಜೂರಾತಿಯ ಅಸಿಂಧು ಎಂದು ತಿಳಿಸುತ್ತ ಮಂಡಳಿಯಿಂದ ಮಂಜೂರಾತಿಯನ್ನು ಪಡೆದು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಮತ್ತೊಮ್ಮೆ ಆರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ಸಲ್ಲಿಸುವಂತೆ ತಿಳಿಸಿರುತ್ತದೆ.

ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ದಿನಾಂಕ 23.11.2017ರ ಆದೇಶದ ವಿರುದ್ಧ ನಿಗಮದಿಂದ, ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಕ್ರಿಮಿನಲ್ ರಿವಿಜನ್ ಅರ್ಜಿ 335/2018ರಲ್ಲಿ ಮೇಲ್ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಲಾಗಿರುತ್ತದೆ. ಹಾಗೂ ಶ್ರೀ ಹೆಚ್.ಎಸ್. ಮಂಜುನಾಥ, ಸ.ಇಂ. (ವಿದ್ಯುತ್) ಇವರ ವಿರುದ್ಧ ಇಲಾಖಾ ವಿಚಾರಣೆ ಬಾಕಿ ಇರುತ್ತದೆ.

ಇಲಾಖಾ ವಿಚಾರಣಾ ಕ್ರಿಮಿನಲ್ ಮೊಕದ್ದಮೆ ಎದುರಿಸುತ್ತಿರುವ ಸರ್ಕಾರಿ ನೌಕರರನ್ನು ಮುಂಬಡ್ತಿಗೆ ಪರಿಗಣಿಸುವಾಗ ಮೊಹರಾದ ಲಕೋಟೆ ಪದ್ಧತಿ ಅನುಸರಿಸುವ ಬಗ್ಗೆ ಸರ್ಕಾರದ ದಿನಾಂಕ 14.07.1993ರ ಅಧಿಕೃತ

ಜ್ಞಾಪನದಲ್ಲಿ ಸೂಚನೆಗಳನ್ನು ನೀಡಲಾಗಿದೆ. ಅದನ್ನು ನಿಗಮವು ದಿನಾಂಕ 21.12.2001 ರ ಆದೇಶದಲ್ಲಿ ಅಳವಡಿಸಿಕೊಂಡಿರುತ್ತದೆ. ಅದರ ಉದ್ಯತ ಭಾಗ ಈ ರೀತಿ ಇರುತ್ತದೆ.

Where a departmental enquiry or court proceedings is pending the following course of action shall be taken:

- The departmental promotion committee shall assess the suitability of the officer/official for promotion without taking into consideration the disciplinary proceedings/court proceedings pending against the officer/official. The assessment on the basis of records, the view of the DPC shall be kept in a sealed cover. In the subsequent DPC's also, if any, during the period of disciplinary /court proceedings, the DPC shall consider the officer's/ official's case in the above manner.
- On the conclusion of the disciplinary/court proceedings and in case the officer/official is exonerated, the sealed cover or covers may be opned and the earliest possible date of promotion but for the pendency of the disciplinary / court proceedings against him/her may determined with reference in the position assigned to him/her in the findings of his/her junior on the basis of such position. The officer/official concerned may be promoted in accordance with rules if necessary by reverting the junior most officiating person.
- If any penalty is imposed on the officer as a result of the disciplinary proceedings or if he is found guilty in the court proceeding, the findings in the sealed cover shall not be acted upon. The officer's case for promotion may be considered in the usual manner by the next DPC which meets in the normal course after conclusion of the disciplinary / court proceedings.

ಆದ್ದರಿಂದ, ಶ್ರೀ ಹೆಚ್.ಎಸ್.ಮಂಜುನಾಥ, ಪಿಎಎಸ್ 12204, ಸಹಾಯಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್) ಆದ ನೀವು ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್ (ವಿದ್ಯುತ್), ಪದವ್ಯಂದದ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ

14)

Annexure - N
(Relevant Extract (copy))

**IMPORTANT GOVERNMENT ORDERS/
OFFICIAL MEMORANDA ETC., RELATED
TO THE KARNATAKA CIVIL SERVICES
(CCA) RULES, 1957.**

From 1956 upto 9-2-2005

DPAL 44 RASAPRA 2006

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಸಿಆಸುಇ 3 ಸೇಇವಿ 2000

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ
ವಿಧಾನಸೌಧ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 24.3.2001

ರ 2000

ಅಧಿಕೃತ ಜ್ಞಾಪನ

ವಿಷಯ : ಸರ್ಕಾರಿ ನೌಕರರ ಮೇಲೆ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಕಾನೂನು ಕ್ರಮ ಜರುಗಿಸಲು ಮಂಜೂರಾತಿ ನೀಡುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಸಿಆಸುಇ 2 ಸೇಇವಿ 98, ದಿನಾಂಕ: 16.7.98.

ಬ್ರಹ್ಮಚಾರಿ ನಿರೋಧ ಅಧಿನಿಯಮ, 1988ರ ಪ್ರಕರಣ 19 ಮತ್ತು ದಂಡ ಪ್ರಕ್ರಿಯಾ ಸಂಹಿತೆಯ ಪ್ರಕರಣ 197 ರಡಿಯಲ್ಲಿ ಕ್ರಮ ಜರುಗಿಸಲು ಅಧಿಕಾರ ಹೊಂದಿರುವ ಪ್ರಾಧಿಕಾರಿಗಳು, ಸರ್ಕಾರಿ ನೌಕರರ ವಿರುದ್ಧ ಮೊಕದ್ದಮೆ ಹೂಡುವುದಕ್ಕೆ ಅನುಮತಿ ನೀಡುವ ಮುನ್ನ ತನ್ನ ಮುಂದೆ ಮಂಡಿಸಲಾದ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿದ ನಂತರ ನೌಕರನ ವಿರುದ್ಧ ಭೂಕದ್ದಮೆ ಹೂಡಲು ಮೇಲ್ನೋಟಕ್ಕೆ ಸಾಕಷ್ಟು ಆಧಾರಗಳಿವೆಯೇ ಎಂದು ಪರಿಶೀಲಿಸಿ, ಅಂತಹ ಅನುಮತಿ ನೀಡುವ ಬಗ್ಗೆ ತೀರ್ಮಾನಿಸಬೇಕೆಂದು, ಮೇಲೆ ಉಲ್ಲೇಖಿಸಿದ ಅಧಿಕೃತ ಜ್ಞಾಪನದಲ್ಲಿ ತಿಳಿಸಲಾಗಿದೆ.

2. ಮೇಲೆ ತಿಳಿಸಿದ ಸೂಚನೆಗಳಂತೆ ಸರ್ಕಾರಿ ನೌಕರನ ವಿರುದ್ಧ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೊಕದ್ದಮೆ ಹೂಡಲು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದ ಅನುಮತಿ ಕೋರುವ ಸಂದರ್ಭದಲ್ಲಿ ತನಿಖೆಗೆ ಸಂಬಂಧಿಸಿದ ದಾಖಲೆಗಳು, ದಸ್ತಾವೇಜುಗಳ ಪ್ರತಿಗಳನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಕಳುಹಿಸುತ್ತಿಲ್ಲವೆಂಬುದು ಸರ್ಕಾರದ ಗಮನಕ್ಕೆ ಬಂದಿದೆ.

3. ಆದುದರಿಂದ, ಪೊಲೀಸ್ ವಿಭಾಗ, ಜೋಕಾಯುಕ್ತ ಹಾಗೂ ಸಿಒಡಿ, ಇತ್ಯಾದಿಗಳು ಸರ್ಕಾರಿ ನೌಕರರ ವಿರುದ್ಧ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೊಕದ್ದಮೆ ಹೂಡಲು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದ ಅನುಮೋದನೆ ಕೋರುವ ಸಂದರ್ಭದಲ್ಲಿ ತನಿಖೆಗೆ ಸಂಬಂಧಿಸಿದ ದಾಖಲೆಗಳು, ದಸ್ತಾವೇಜುಗಳ ಪ್ರತಿಗಳನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಕಳುಹಿಸಬೇಕೆಂದು ಮತ್ತೊಮ್ಮೆ ಸೂಚಿಸಲಾಗಿದೆ.

4. ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಒಳಾಡಳಿತ ಮತ್ತು ಸಾರಿಗೆ ಇಲಾಖೆ, ಇವರು ಸದರಿ ಸೂಚನೆಗಳನ್ನು ಆದರ ಆಡಳಿತ ವ್ಯಾಪ್ತಿಯಲ್ಲಿ ಬರುವ ಸಂಬಂಧಿಸಿದ ಇಲಾಖೆ: ಸಂಸ್ಥೆಗಳಿಗೆ ಪಾಲನೆಗಾಗಿ ತಿಳಿಸಲು ಕೋರಿದೆ.

5. ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ : ಕಾರ್ಯದರ್ಶಿಗಳು, ಸಂಬಂಧಿಸಿದ ಪ್ರಕರಣಗಳಲ್ಲಿ ಮೇಲೆ ಹೇಳಿದಂತೆ ದಾಖಲೆಗಳನ್ನು ಪಡೆದು, ಮೇಲಿನ ಕಂಡಿಕೆ-1 ರಲ್ಲಿ ಹೇಳಿದಂತೆ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಬೇಕೆಂದು ಸೂಚಿಸಿದೆ.

ಕೆ.ಎಲ್. ಜಯರಾಮ್

ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ-2,

ಸಿಬ್ಬಂದಿ ಮತ್ತು ಆಡಳಿತ ಸುಧಾರಣೆ ಇಲಾಖೆ,
(ಸೇವಾ ನಿಯಮಗಳು).

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಸಿಆಸುಇ 19 ಸೇಇವಿ 2001

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ
ವಿಧಾನಸೌಧ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 28.6.2001

ಅಧಿಕೃತ ಜ್ಞಾಪನ

ವಿಷಯ : ಸರ್ಕಾರಿ ನೌಕರರ, ವಿರುದ್ಧ ಶಿಸ್ತು ಕ್ರಮವನ್ನು ಆರಂಭಿಸುವುದರಲ್ಲಿ, ನಡೆಸುವುದರಲ್ಲಿ ಹಾಗೂ ಅಂತಿಮಗೊಳಿಸುವುದರಲ್ಲಿ ವಿಳಂಬವನ್ನು ತಡೆಗಟ್ಟಲು ನಿಗದಿಪಡಿಸಲಾಗಿರುವ ಕಾಲಮಿತಿಯ ಪರಿಷ್ಕರಣೆ ಕುರಿತು.

ಉಲ್ಲೇಖ: ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಸಿಆಸುಇ 14 ಸೇಇವಿ 96, ದಿನಾಂಕ: 31.5.1997.

1. ಸರ್ಕಾರಿ ನೌಕರನ ಮೇಲಿನ ಆಪಾದಿತ, ದುರ್ನಡತೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಶಿಸ್ತು ಕ್ರಮವನ್ನು ಆರಂಭಿಸುವುದರಲ್ಲಿ, ನಡೆಸುವುದರಲ್ಲಿ ಹಾಗೂ ಅಂತಿಮಗೊಳಿಸುವುದರಲ್ಲಿ ಉಂಟಾಗಬಹುದಾದ ವಿಳಂಬವನ್ನು

ತಡೆಗಟ್ಟಲು ಮೇಲೆ ಉಲ್ಲೇಖಿಸಿದ ದಿನಾಂಕ: 31.5.1997ರ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಸಿಆಸುಇ 14 ಸೇಇಎ 96 ರಲ್ಲಿ ಸೂಚನೆಗಳನ್ನು ನೀಡಲಾಗಿದೆ. ಸದರಿ ಅಧಿಕೃತ ಜ್ಞಾಪನದ ಕಂಡಿಕೆ 7 ರಲ್ಲಿ ಇಲಾಖಾ ವಿಚಾರಣೆಯನ್ನು ಮುಗಿಸಲು ಕಾಲಮಿತಿಯನ್ನು ನಿಗದಿಪಡಿಸಲಾಗಿದೆ. ಅದರ ಸಂಬಂಧಿಸಿದ ಭಾಗವನ್ನು ಈ ಕೆಳಗೆ ಉದ್ಘರಿಸಿದೆ.

ಶಿಸ್ತಿನ ಕ್ರಮದ ಹಂತ			ಗರಿಷ್ಠ ಕಾಲಮಿತಿ
(ಅ)	ಸರ್ಕಾರಿ ನೌಕರರ ಆಕ್ರಮಗಳು : ದುರ್ನಡತೆಗಳು ಶಿಸ್ತಿನ ಪ್ರಾಧಿಕಾರದ ಗಮನಕ್ಕೆ ಬಂದ ದಿನಾಂಕದಿಂದ, ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ತಯಾರಿಸುವ ಸಲುವಾಗಿ ದಾಖಲೆಗಳನ್ನು ಪಡೆಯಲು ಅಥವಾ ಪ್ರಾರಂಭಿಕ ತನಿಖೆ : ವಿಚಾರಣೆಯನ್ನು ಆಂತಿಮಗೊಳಿಸಲು ಹಾಗೂ ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ತಯಾರಿಸಿ, ಚಾಲಿಗೊಳಿಸಲು;		6 ತಿಂಗಳು
(ಬಿ)	ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಗೆ ಸರ್ಕಾರಿ ನೌಕರನ ವಿವರಣೆಯನ್ನು ಪಡೆಯಲು ಹಾಗೂ ವಿಚಾರಣಾ ಅಧಿಕಾರಿ ಹಾಗೂ ಮಂಡನಾಧಿಕಾರಿಯನ್ನು ನೇಮಿಸಲು;		2 ತಿಂಗಳು
(ಸಿ)	ವಿಚಾರಣೆಯನ್ನು ನಡೆಸಲು ಹಾಗೂ ವಿಚಾರಣಾ ವರದಿಯನ್ನು ಮಂಡಿಸಲು;		6 ತಿಂಗಳು
(ಡಿ)	ವಿಚಾರಣಾ ವರದಿಯನ್ನು ಪರಿಶೀಲಿಸಲು ಹಾಗೂ ಅದನ್ನು ಸ್ವೀಕರಿಸುವ ಬಗ್ಗೆ ನಿರ್ಣಯಿಸಲು;		2 ತಿಂಗಳು
(ಇ)	ಕಾರಣ ಕೇಳುವ 2ನೇ ಸೂಚನಾ ಪತ್ರವನ್ನು, ವಿಚಾರಣಾ ವರದಿಯ ಜೊತೆಗೆ, ಆಪಾದಿತ ಸರ್ಕಾರಿ ನೌಕರನಿಗೆ ನೀಡಲು;		2 ತಿಂಗಳು
(ಎಫ್)	ಅಂತಿಮ ಆದೇಶವನ್ನು ಮೂರಡಿಸಲು;		3 ತಿಂಗಳು

2. ಶಿಸ್ತಿನ ನಡವಳಿಕೆಗಳಲ್ಲಿ ನಿವೃತ್ತ ನ್ಯಾಯಾಧೀಶರನ್ನು ವಿಚಾರಣಾಧಿಕಾರಿಗಳಾಗಿ ನೇಮಿಸುವ ಪದ್ಧತಿಯನ್ನು ಕೆಲ ಸಮಯದ ಹಿಂದೆ ಜಾರಿಗೊಳಿಸಿದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ಇಲಾಖಾ ವಿಚಾರಣೆಗಳನ್ನು ಆರಂಭಿಸಲು, ನಡೆಸಲು ಹಾಗೂ ಮುಗಿಸಲು ನಿಗದಿಪಡಿಸಲಾದ ಮೇಲೆ ನಮೂದಿಸಿದ ಕಾಲಮಿತಿಯನ್ನು ಸರ್ಕಾರಿ ಪ್ರಮಾಣವಾಗಿ ಮರು ಪರಿಶೀಲಿಸಿ, ಪರಿಷ್ಕೃತ ಕಾಲಮಿತಿಯನ್ನು ನಿಗದಿಪಡಿಸುವುದು ಸೂಕ್ತವೆಂದು ಭಾವಿಸಿದೆ. ಅದರಂತೆ, ದಿನಾಂಕ: 31.5.1997ರ ಅಧಿಕೃತ ಜ್ಞಾಪನದ ಕಂಡಿಕೆ 7ನ್ನು ಈ ಕೆಳಕಂಡಂತೆ ಪ್ರತಿಷ್ಠಾಪಿಸಲಾಗಿದೆ (subsittuted):-

“ಶಿಸ್ತಿನ ನಡವಳಿಕೆಗಳಲ್ಲಿ ಆಗುವ ವಿಳಂಬಕ್ಕೆ ಮುಖ್ಯವಾಗಿ ಈ ಕೆಳಕಂಡ ಮೂರು ಕಾರಣಗಳೆಂದು ಕಂಡುಬಂದಿದೆ:

- ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ತಯಾರಿಸುವ ಸಲುವಾಗಿ ದಾಖಲೆಗಳನ್ನು ಪಡೆಯಲು ಅಥವಾ ಪ್ರಾರಂಭಿಕ ವಿಚಾರಣೆಯನ್ನು ಅಂತಿಮಗೊಳಿಸಲು ಶಿಸ್ತಿನ ಪ್ರಾಧಿಕಾರಗಳು ಮಾಡುವ ವಿಳಂಬ, (ವಿಚಾರಣಾ ಅಧಿಕಾರಿ ಹಾಗೂ ಮಂಡನಾಧಿಕಾರಿಗಳನ್ನು ನೇಮಿಸುವುದನ್ನೂ ಸಹ ಇಲ್ಲಿ ಸೇರಿಸಬಹುದು);
- ವಿಚಾರಣೆಯನ್ನು ತ್ವರಿತವಾಗಿ ಮಾಡದೇ, ವಿಚಾರಣಾ ಅಧಿಕಾರಿಗಳು ಮಾಡುವ ವಿಳಂಬ; ಹಾಗೂ
- ಆಪಾದಿತ ಸರ್ಕಾರಿ ನೌಕರರು ಉದ್ದೇಶ ಪೂರ್ವಕವಾಗಿ ವಿಚಾರಣೆಯನ್ನು ನಡೆಸುವಲ್ಲಿ ಮಾಡುವ ವಿಳಂಬ.

ಶಿಸ್ತಿನ ಕ್ರಮ ಆರಂಭಿಸಿ, ಮುಗಿಸಲು, ವಿವಿಧ ಹಂತಗಳಿಗಾಗಿ ಈ ಕೆಳಕಂಡ ಗರಿಷ್ಠ ಕಾಲಮಿತಿಯನ್ನು ನಿಗದಿಪಡಿಸಲಾಗಿದೆ. ಶಿಸ್ತಿನ ಪ್ರಾಧಿಕಾರಗಳು ಈ ಕಾಲಾವಕಾಶವನ್ನು ಕಟ್ಟುನಿಟ್ಟಾಗಿ ಪಾಲಿಸತಕ್ಕದ್ದು.”

ಶಿಸ್ತಿನ ಕ್ರಮದ ಹಂತ			ಗರಿಷ್ಠ ಕಾಲಮಿತಿ
(ಅ)	ಸರ್ಕಾರಿ ನೌಕರರ ಆಕ್ರಮಗಳು : ದುರ್ನಡತೆಗಳು ಶಿಸ್ತಿನ ಪ್ರಾಧಿಕಾರದ ಗಮನಕ್ಕೆ ಬಂದ ದಿನಾಂಕದಿಂದ, ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ತಯಾರಿಸುವ ಸಲುವಾಗಿ ದಾಖಲೆಗಳನ್ನು ಪಡೆಯಲು ಅಥವಾ ಪ್ರಾರಂಭಿಕ ತನಿಖೆ : ವಿಚಾರಣೆಯನ್ನು ಆಂತಿಮಗೊಳಿಸಲು ಹಾಗೂ ದೋಷಾರೋಪಣಾ ಪಟ್ಟಿಯನ್ನು ತಯಾರಿಸಿ, ಚಾಲಿಗೊಳಿಸಲು;		1 ತಿಂಗಳು

ಸಂಖ್ಯೆ: ಸಿಆಸುಇ

ವಿಷಯ :

ಉಲ್ಲೇಖ:

ಪ್ರದ್ಯುಕ್ತ: ಸೇವೆಯಿಂದ ಓ ಸಕಾಲದಲ್ಲಿ ಶಿಸ್ತಿನ ಕರ್ನಾಟಕ ಬೋ ಉದ್ಘರಿಸಿದಂತೆ 6

1	ಮ
(ಅ)	ಮ
(ಇ)	ಮ
(ಈ)	ಮ
(ಉ)	ಮ
(ಊ)	ಮ

3. ಉಲ್ಲೇಖ:

ತಿಂಗಳ” ಫೈನಲ್

4. ಸರ್ಕಾರ:

ಪರಿಷ್ಕೃತ ಸೂಚನೆ:

ಪ್ರಾಧಿಕಾರಗಳ 7

ಕರ್ತವ್ಯ ಲೋಪ:

5. ದಿನಾಂ

ನಮೂದಿಸಿದ ಬ

ಎಂದೂ ಸಹ ತಿ

ಕೌಟುಂಬಿಕ
ಶಿಕ್ಷಣ

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	29	30	31	32	33	34	35	36	37	38	39	40	41	42	43	44	45	46	47	48	49	50	51	52	53	54	55	56	57	58	59	60	61	62	63	64	65	66	67	68	69	70	71	72	73	74	75	76	77	78	79	80	81	82	83	84	85	86	87	88	89	90	91	92	93	94	95	96	97	98	99	100	101	102	103	104	105	106	107	108	109	110	111	112	113	114	115	116	117	118	119	120	121	122	123	124	125	126	127	128	129	130	131	132	133	134	135	136	137	138	139	140	141	142	143	144	145	146	147	148	149	150	151	152	153	154	155	156	157	158	159	160	161	162	163	164	165	166	167	168	169	170	171	172	173	174	175	176	177	178	179	180	181	182	183	184	185	186	187	188	189	190	191	192	193	194	195	196	197	198	199	200	201	202	203	204	205	206	207	208	209	210	211	212	213	214	215	216	217	218	219	220	221	222	223	224	225	226	227	228	229	230	231	232	233	234	235	236	237	238	239	240	241	242	243	244	245	246	247	248	249	250	251	252	253	254	255	256	257	258	259	260	261	262	263	264	265	266	267	268	269	270	271	272	273	274	275	276	277	278	279	280	281	282	283	284	285	286	287	288	289	290	291	292	293	294	295	296	297	298	299	300	301	302	303	304	305	306	307	308	309	310	311	312	313	314	315	316	317	318	319	320	321	322	323	324	325	326	327	328	329	330	331	332	333	334	335	336	337	338	339	340	341	342	343	344	345	346	347	348	349	350	351	352	353	354	355	356	357	358	359	360	361	362	363	364	365	366	367	368	369	370	371	372	373	374	375	376	377	378	379	380	381	382	383	384	385	386	387	388	389	390	391	392	393	394	395	396	397	398	399	400	401	402	403	404	405	406	407	408	409	410	411	412	413	414	415	416	417	418	419	420	421	422	423	424	425	426	427	428	429	430	431	432	433	434	435	436	437	438	439	440	441	442	443	444	445	446	447	448	449	450	451	452	453	454	455	456	457	458	459	460	461	462	463	464	465	466
---	---	---	---	---	---	---	---	---	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----	-----

4. ಸರ್ಕಾರದ ಎಲ್ಲಾ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕಾರ್ಯದರ್ಶಿಗಳು ಹಾಗೂ ಇಲಾಖಾ ಮುಖ್ಯಸ್ಥರು ಈ ಪರಿಷತ್ ಸೂಚನೆಗಳನ್ನು ಜಾರೂ ತಪ್ಪದೆ ಕಡ್ಡಾಯವಾಗಿ ಪಾಲಿಸಬೇಕು ಮತ್ತು ಇದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಎಲ್ಲಾ ಶಿಸ್ತು ಪ್ರಾಧಿಕಾರಗಳ ಗಮನಕ್ಕೆ ಪಾಲನೆಗಾಗಿ ತರತಕ್ಕದ್ದು. ಈ ಸೂಚನೆಗಳನ್ನು ಉಲ್ಲಂಘಿಸುವ ಅಧಿಕಾರಿಗಳು ತಾವೇ ಕರ್ತವ್ಯ ಲೋಪದ ಆರೋಪದ ಮೇಲೆ ಶಿಸ್ತು ಕ್ರಮಕ್ಕೆ ಒಳಪಡಬೇಕಾಗುತ್ತದೆಯೆಂದು ಈ ಮೂಲಕ ತಿಳಿಸಲಾಗಿದೆ.

5. ದಿನಾಂಕ: 31.5.97 ರ ಉಲ್ಲೇಖಿತ ಅಧಿಕೃತ ಜ್ಞಾಪನದಲ್ಲಿ, ಮೇಲಿನ ಶಂಡಿಕೆ 3 ಮತ್ತು 4 ದಲ್ಲಿ ನಮೂದಿಸಿದ ಬದಲಾವಣೆಗಳನ್ನು ಹೊರತುಪಡಿಸಿ, ಇನ್ನಾವುದೇ ಬದಲಾವಣೆಗಳನ್ನು ಈ ಮೂಲಕ ಮಾಡಿರುವುದಿಲ್ಲ ಎಂಬುದೂ ಸಹ ತಿಳಿಸಿದೆ.

உருவம்
நினைவு
வெழுத்து

ಸಂಖ್ಯೆ: ಸಿಐಸುಇ 25 : ಸೋಇವಿ 2001

કે. જી. એલ.
મુ. દા. ૨

ಉಲ್ಲೇಖ:	ಹರ್ವಾರ್ಡ್ ವಿಶ್ವಕೋಶ	ಆರಂಭಗದಿ ಮಾಸಿಕ; ೧.6.20೦1ರ ಪತ್ತೆ ಸಂಖ್ಯೆ;
	ಪೀಎಸ್‌ಸಿ-೨೬: ಹಿರಿವಯಸ್ಕರು; 20೦೧.	

[illegible]

FAX : 080-22867522
TEL : 080-22862583

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ NO. 1001/CA/19-20

ಗೆ,
TO,

The Principal Secretary to Government,
Department of Energy,
Vikasa Soudha,
Bengaluru-560 001.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001
OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.04.2019

ಮಾನ್ಯರೇ,
SIR,

SUB: W.P.No.14085/2019 (S) on the file
of High Court of Karnataka at Bengaluru
- Sri.H.S.Manjunath, Bengaluru V/s The
State of Karnataka and others.

** *

In the above Writ Petition, the Petitioner has sought for direction, directing the respondents to consider the case of the petitioner for promotion to the post of Assistant Executive Engineer from the date his juniors were promoted and consider the representations dated 06.12.2014 vide Annexure-K and representation dated 11.01.2018 vide Annexure-L within the frame specified by this Hon'ble Court, and for such other reliefs.

The above matter came up for preliminary hearing before the Hon'ble Court (C.H.No.23) on 16.04.2019. After hearing for some time, the Hon'ble Court was pleased to direct the undersigned to take notice on behalf of Respondent No.1. Accordingly, I have taken Notice. Further the Hon'ble Court has directed the undersigned to secure original records pertaining to the above case.

Hence, you are hereby requested to come over to this office and contact the undersigned along with necessary instructions, parawise remarks and original records and depute an official who is well conversant with the facts of the case, so as to enable me to prepare and file the statement of objections immediately.

Treat this matter as most urgent.

Yours faithfully,

(M.S.PRATHIMA)

ADDL. GOVT. ADVOCATE

NMV/

22/4/19

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

ಗೆ,
TO,

The Principal Secretary to Government,
Department of Energy,
Vikasa Soudha,
Bengaluru-560 001.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-೫೬೦ ೦೦೧
OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.04.2019

ಮಾನ್ಯರೇ,
SIR,

SUB: W.P.No.14085/2019-(S) on the file
of High Court of Karnataka at Bengaluru
- Sri.H.S.Manjunath, Bengaluru V/s The
State of Karnataka and others.

** *

In the above Writ Petition, the Petitioner has sought for direction, directing the respondents to consider the case of the petitioner for promotion to the post of Assistant Executive Engineer from the date his juniors were promoted and consider the representations dated 06.12.2014 vide Annexure-K and representation dated 11.01.2018 vide Annexure-L within the frame specified by this Hon'ble Court, and for such other reliefs.

The above matter came up for preliminary hearing before the Hon'ble Court (C.H.No.23) on 16.04.2019. After hearing for some time, the Hon'ble Court was pleased to direct the undersigned to take notice on behalf of Respondent No.1. Accordingly, I have taken Notice. Further the Hon'ble Court has directed the undersigned to secure original records pertaining to the above case.

Hence, you are hereby requested to come over to this office and contact the undersigned along with necessary instructions, parawise remarks and original records and depute an official who is well conversant with the facts of the case, so as to enable me to prepare and file the statement of objections immediately.

Treat this matter as most urgent.

Yours faithfully,

(M.S.PRATHIMA)

ADDL. GOVT. ADVOCATE

NMV/